The Evidence Act, 1872

[Act 1 of 1872]

with

Case Law

HIGH COURT OF TRIPURA
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23. Criminal Law (Amendment) Act, 2013 (13 of 2013)
24. Criminal Law (Amendment) Act, 2018 (22 of 2018)
25. Jammu and Kashmir Reorganisation Act, 2019 (34 of 2019)

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The Evidence Act, 1872

[Act 1 of 1872[1]]

[*15th March, 1872*]

Preamble.—Whereas it is expedient to consolidate, define and amend the Law of Evidence; It is hereby enacted as follows:—

CASE LAW ▸ Common Law.—Our law of evidence which is a complete code does not permit the importation of any principle of English Common Law relating to evidence in criminal cases to the contrary, *Hira H. Advani* v. *State of Maharashtra*, (1969) 2 SCC 662.

PART I
RELEVANCY OF FACTS

CHAPTER I
PRELIMINARY

1. Short title, extent and commencement.—This Act may be called the Indian Evidence Act, 1872.

It extends[2] to [3][the whole of India] [4][* * *] and applies to all judicial proceedings in or before any Court, including Courts-martial, [5][other than Courts-martial convened under the Army Act] (44 & 45 Vict., c. 58), the [6][Naval Discipline Act (29 & 30 Vict., c. 109) or [7][* * *] the Indian Navy (Discipline) Act, 1934 (XXXIV of 1934)[8],] or the [9][Air Force Act] (7 Geo. 5, c. 51) but not to affidavits[10] presented to any Court or Officer, nor to proceedings before an arbitrator;

And it shall come into force on the first day of September, 1872.

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1. For Statement of Objects and Reasons, *see* Gazette of India, 1868, p. 1574; for the draft or preliminary Report of the Select Committee, dated 31st March, 1871, *see* Gazette of India, 1871, Pt. V, p. 273 and for the Second Report of the Select Committee, dated 30th January, 1872, *see* Gazette of India, 1872, Pt. V, p. 34; for discussions in Council, *see* Gazette of India, 1868, Supplement, pp. 1060 and 1209, Gazette of India, 1871, Extra. Supplement, p. 42 and Supplement, p. 1641, and Gazette of India, 1872, pp. 136 and 230.
2. The Act now extends to the union territories of (*a*) Dadra and Nagar Haveli (*vide* Reg. 6 of 1963)(w.e.f. 1-7-1965)(*b*) Goa, Daman and Diu (*vide* Ref. 11 of 1963)(*c*) Pondicherry (*vide* Reg. 7 of 1963)(w.e.f. 1-10-1963) and (*d*) Lakshdweep (*vide* Reg. 8 of 1965).
3. *Subs.* for "all the Provinces of India" by the A.O. 1950 (w.e.f. 26-1-1950). Earlier *substituted* for "the whole of British India" by the A.O. 1948 (w.e.f. 23-3-1948).
4. The words "except the State of Jammu and Kashmir" *omitted* by Act 34 of 2019, Ss. 95 & 96 and Sch. V (w.e.f. 31-10-2019).
5. *Ins.* by Act 18 of 1919, S. 2 and Sch. I (w.e.f. 17-9-1919). *See* S. 127 of the Army Act (44 and 45 Vict., C. 58).
6. *Ins.* by Act 35 of 1934, S. 2 and Sch. I.
7. The words "that Act as modified by" *repealed* by the A.O. 1950 (w.e.f. 26-1-1950).
8. *See* the Navy Act, 1957 (64 of 1957).
9. *Ins.* by Act 10 of 1927, S. 2 and Sch. I (w.e.f. 4-4-1927).
10. As to practice relating to affidavits, *see* Code of Civil Procedure, 1908 (Act 5 of 1908), S. 30(*c*) and Sch. I, Or. XIX, *See* also Code of Criminal Procedure, 1973 (Act 2 of 1974), Section 295 & 297.

CASE LAW ▸ Applicability.—The Evidence Act has no application to enquiries conducted by tribunals even though they may be judicial in character. The law requires that such tribunals should observe rules of natural justice in the conduct of the enquiry and if they do so their decision is not liable to be impeached on the ground that the procedure followed was not in accordance with that which obtains in a court of law, *Union of India* v. *T.R. Verma*, AIR 1957 SC 882.

In a domestic enquiry all the strict and sophisticated rules of the Evidence Act may not apply. All materials which are logically probative for a prudent mind are permissible, though departmental authorities and administrative tribunals must be careful in evaluating such material and should not glibly swallow what is, strictly speaking not relevant under the Evidence Act, *State of Haryana* v. *Rattan Singh*, (1977) 2 SCC 491, 493 : 1977 SCC (L&S) 298.

The provisions of Evidence Act do not apply to the proceedings under the Foreign Exchange Regulation Act, 1947, *Shanti Prasad Jain* v. *Director of Enforcement*, AIR 1962 SC 1764.

Income-tax authorities are not strictly bound by the rules of evidence, *CIT* v. *E.C. Commercial Co.*, AIR 1967 SC 768.

Section 1 is inapplicable to arbitration proceedings, *Municipal Corpn. of Delhi* v. *Jagan Nath Ashok Kumar*, (1987) 4 SCC 497.

Section 1 does not apply to a quasi-judicial proceeding, *Union of India* v. *T.R. Varma*, AIR 1957 SC 882.

▸ **Natural Justice.**—Technical rules of evidence do not apply in domestic enquiry, but rules of evidence embodied in natural justice cannot however be ignored, *Central Bank of India Ltd.* v. *Prakash Chand Jain*, AIR 1969 SC 983.

2. Repeal of enactments.—[11][* * *]

3. Interpretation clause.—In this Act the following words and expressions are used in the following senses, unless a contrary intention appears from the context:

"Court".—"Court" includes all Judges[12] and Magistrates[13], and all persons, except arbitrators, legally authorised to take evidence.

"Fact".—"Fact" means and includes—

(1) any thing, state of things, or relation of things, capable of being perceived by the senses;

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11. *Omitted* by the Repealing Act, 1938 (1 of 1938), S. 2 and Sch. (w.e.f. 26-2-1938). Prior to omission it read as:
"2. *Repeal of Enactments.*—On and from that day the following laws shall be repealed:—
(1) All rules of evidence not contained in any Statute, Act or Regulation in force in any part of British India;
(2) All such rules, laws and regulations as have acquired the force of law under the twenty-fifth section of 'The Indian Councils' Act, 1861, in so far as they relate to any matter herein provided for; and
(3) The enactments mentioned in the schedule hereto, to the extent specified in the third column of the said Schedule.
But nothing herein contained shall be deemed to affect any provision of any Statute, Act or Regulation in force in any part of British India and not hereby expressly repealed."

12. *Cf.* the Code of Civil Procedure, 1908 (Act 5 of 1908), S. 2, the Indian Penal Code (Act 45 of 1860), S. 19; and, for a definition of "District Judge", the General Clauses Act, 1897 (10 of 1897), S. 3(17).

13. *Cf.* the General Clauses Act, 1897 (10 of 1897), S. 3(32) and Code of Criminal Procedure, 1973 (Act 2 of 1974).

(2) any mental condition of which any person is conscious.

Illustrations

(*a*) That there are certain objects arranged in a certain order in a certain place, is a fact.

(*b*) That a man heard or saw something, is a fact.

(*c*) That a man said certain words, is a fact.

(*d*) That a man holds a certain opinion, has a certain intention, acts in good faith or fraudulently, or uses a particular word in a particular sense, or is or was at a specified time conscious of a particular sensation, is a fact.

(*e*) That a man has a certain reputation, is a fact.

"Relevant".—One fact is said to be relevant to another when the one is connected with the other in any of the ways referred to in the provisions of this Act relating to the relevancy of facts.

"Facts in issue".—The expression "facts in issue" means and includes—

any fact from which, either by itself or in connection with other facts, the existence, non-existence, nature or extent of any right, liability, or disability, asserted or denied in any suit or proceeding, necessarily follows.

Explanation.—Whenever, under the provisions of the law for the time being in force relating to Civil Procedure[14], any Court records an issue of fact, the fact to be asserted or denied in the answer to such issue is a fact in issue.

Illustrations

A is accused of the murder of *B*.

At his trial the following facts may be in issue:—

that *A* caused *B*'s death;

that *A* intended to cause *B*'s death;

that *A* had received grave and sudden provocation from *B*;

that *A*, at the time of doing the act which caused *B*'s death, was, by reason of unsoundness of mind, incapable of knowing its nature.

"Document"[15].—"Document" means any matter expressed or described upon any substance by means of letters, figures or marks, or by more than one of those means, intended to be used, or which may be used, for the purpose of recording that matter.

Illustrations

A writing[16] is a document;

[17]Words printed, lithographed or photographed are documents;

A map or plan is a document;

An inscription on a metal plate or stone is a document;

A caricature is a document.

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14. *See* Code of Civil Procedure, 1908 (Act 5 of 1908); as to settlement of issues, *see* Sch. I, Order XIV.
15. *Cf.* the Indian Penal Code (Act 45 of 1860), S. 29 and the General Clauses Act, 1897 (10 of 1897), S. 3(18).
16. *Cf.* definition of "writing" in the General Clauses Act, 1897 (10 of 1897), S. 3(65).
17. *Cf.* definition of "writing" in the General Clauses Act, 1897 (10 of 1897), S. 3(65).

"Evidence".—"Evidence" means and includes—

(1) all statements which the Court permits or requires to be made before it by witnesses, in relation to matters of fact under inquiry;

such statements are called oral evidence;

(2) all documents [18][including electronic records] produced for the inspection of the Court;

such documents are called documentary evidence.

"Proved".—A fact is said to be proved when, after considering the matters before it, the Court either believes it to exist, or considers its existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it exists.

"Disproved".—A fact is said to be disproved when, after considering the matters before it, the Court either believes that it does not exist, or considers its non-existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it does not exist.

"Not proved".—A fact is said not to be proved when it is neither proved nor disproved.

[19][**"India".**—"India" means the territory of India excluding the State of Jammu and Kashmir*].

[20][the expressions "Certifying Authority", "[21][electronic signature]", "[22][Electronic Signature Certificate]", "electronic form", "electronic records", "information", "secure electronic record", "secure digital signature" and "subscriber" shall have the meanings respectively assigned to them in the Information Technology Act, 2000.]

CASE LAW ▸**"Evidence".**—Definition of "Evidence" is exhaustive. Use of words "means and includes" in definition indicates it is exhaustive, *Hardeep Singh* v. *State of Punjab*, (2014) 3 SCC 92.

▸ **Interpretation/Construction.**—Expression "proved", "disproved" and "not proved", lays down the standard of proof, namely, about existence or non-existence of circumstances from the point of view of a prudent man, so much so that while adopting the said requirement, as an appropriate concrete standard to measure "proof", full effect has to be given to the circumstances or conditions of probability or improbability. It is such degree of certainty, existence of which should be arrived at from the attendant circumstances, before a fact can be said to be proved, *Kuna* v. *State of Odisha*, (2018) 1 SCC 296.

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18. *Ins.* by Act 21 of 2000, S. 92 & Sch. H (w.e.f. 17-10-2000).
19. *Subs.* for the definition of "State" and "States" by Act 3 of 1951, S. 3 and Sch. (w.e.f. 1-4-1951). Earlier, *inserted* by the A.O. 1950 (w.e.f. 26-1-1950).

* Central laws now extended and applicable to the Union Territory of Jammu and Kashmir. [*Vide* S.O. 1123(E), dt. 18-3-2020 (w.e.f. 31-10-2019)].

20. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
21. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
22. *Subs.* for "Digital Signature Certificate" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).

▸ **Standard of proof.**—Section 3 of the Evidence Act enables a court to apply only the standards of a prudent man in judging what is to be deemed to be proved according to law. Garib Singh v. State of Punj, (1972) 3 SCC 418 : 1972 SCC (Cri) 568.

▸ **Fact.**—The expression "fact" includes not only the physical act which can be perceived by the senses but also the psychological fact or mental condition of which any person is conscious and that it is in the former sense that the word used by the Legislature refers to a material and not to a mental fact, *H.P. Administration* v. *Om Prakash*, (1972) 1 SCC 249 : 1972 SCC (Cri) 88.

▸ **Evaluation of evidence.**—Men may lie, but circumstances do not, is the cardinal principle of evaluation of evidence, *State of Assam* v. *Ramen Dowarah*, (2016) 3 SCC 19.

▸ **Circumstantial Evidence.**—In cases where the evidence is of a substantial nature, the circumstances from which the conclusion of guilt is to be drawn should, in the first instance, be fully established and all the facts so established should be consistent only with the hypothesis of the guilt of the accused. The circumstances should be of a conclusive nature and tendency and they should be such as to exclude every hypothesis but the one proposed to be proved, *Govinda Reddy* v. *State of Mysore*, AIR 1960 SC 29.

▸ **Benefit of doubt.**—The benefit of doubt to which the accused is entitled is reasonable doubt, the doubt which rational thinking men will reasonably, honestly and conscientiously entertain and not the doubt of a timid mind which fights shy though unwittingly it may be—or is afraid of the logical consequences, if that benefit was not given, *State of U.P.* v. *Iftikhar Khan*, (1973) 1 SCC 512 : 1973 SCC (Cri) 384.

▸ **"Document".**—Basis of classifying an article as document depends upon information which is inscribed and not on where it is inscribed, *P. Gopalkrishnan* v. *State of Kerala*, (2020) 9 SCC 161.

4. "May presume".—Whenever it is provided by this Act that the Court may presume a fact, it may either regard such fact as proved, unless and until it is disproved, or may call for proof of it:

"Shall presume".—Whenever it is directed by this Act that the Court shall presume a fact, it shall regard such fact as proved, unless and until it is disproved:

"Conclusive proof".—When one fact is declared by this Act to be conclusive proof of another, the Court shall, on proof of the one fact, regard the other as proved, and shall not allow evidence to be given for the purpose of disproving it.

CASE LAW ▸ Meaning and Purpose of presumption.—When a presumption is rebuttable, it only points out that the party on whom lies the duty of going forward with evidence on the fact presumed, and when that party has produced evidence fairly and reasonably tending to show that the real fact is not as presumed, the purpose of the presumption is over, *Kumar Exports* v. *Sharma Carpets*, (2009) 2 SCC 513.

▸ **Presumptions—When may not be invoked.**—While the truth or fact is known, there is no need or room for any presumption. The interest of justice is best served by ascertaining the truth and the court should be furnished with the best available science and may not be left to bank upon presumptions, unless science has no answer to the facts in issue. When there is a conflict between a "conclusive proof" envisaged under law based on a presumption and a proof based on scientific advancement accepted by the world community to be correct, the latter must prevail over the former, *Nandlal Wasudeo Badwaik* v. *Lata Nandlal Badwaik*, (2014) 2 SCC 576.

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▸ **Rebuttability.**—'Shall presume' conveys a rebuttable presumption, *Sodhi Transport Co.* v. *State of U.P.*, (1986) 2 SCC 486.

▸ **Conclusive Proof.**—When Act enjoins that any evidence would be treated as conclusive proof of certain factual situations or legal hypothesis, law would forbid other evidence to be adduced for purpose of contradicting or varying such conclusiveness, *State of Kerala* v. *Mohd. Basheer*, (2019) 4 SCC 260.

CHAPTER II
OF THE RELEVANCY OF FACTS

5. Evidence may be given of facts in issue and relevant facts.—Evidence may be given in any suit or proceeding of the existence or non-existence of every fact in issue and of such other facts as are hereinafter declared to be relevant, and of no others.

Explanation.—This section shall not enable any person to give evidence of a fact which he is disentitled to prove by any provision of the law for the time being in force relating to Civil Procedure.[23]

Illustrations

(*a*) *A* is tried for the murder of *B* by beating him with a club with the intention of causing his death. At *A*'s trial the following facts are in issue:—

A's beating B with the club;
A's causing B's death by such beating;
A's intention to cause B's death.

(*b*) A suitor does not bring with him, and have in readiness for production at the first hearing of the case, a bond on which he relies. This section does not enable him to produce the bond or prove its contents at a subsequent stage of the proceedings, otherwise than in accordance with the conditions prescribed by the Code of Civil Procedure[24].

CASE LAW ▸ Admissibility of evidence.—Evidence may be given "of every fact in issue" and of such other facts which are expressly "declared to be relevant" and of no other facts, *State of Maharashtra* v. *Kamal Ahmed Mohammed Vakil Ansari*, (2013) 12 SCC 17 : (2013) 4 SCC (Cri) 202.

▸ **Principal rules of exclusion where evidence becomes inadmissible.**—Evidence is admissible and should be received by the Court to which it is tendered unless there is a legal reason for its rejection. Admissibility presupposes relevancy. Admissibility also denotes the absence of any applicable rule of exclusion. Facts should not be received in evidence unless they are both relevant and admissible. The principal rule of exclusion under which evidence becomes inadmissible are two-fold. First, evidence of relevant fact is inadmissible when its reception offends against public policy or a particular rule of law. Some matters are privileged from disclosure. A party is sometimes estopped from proving facts and these facts are therefore inadmissible. The exclusion of evidence of opinion and of extrinsic evidence of the contents of some documents is again a rule of law. Second, relevant facts are subject to recognised exceptions inadmissible, unless they are proved by the best or the prescribed evidence, *State of U.P.* v. *Raj Narain*, (1975) 4 SCC 428.

6. Relevancy of facts forming part of same transaction.—Facts which, though not in issue, are so connected with a fact in issue as to form part of the same

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23. *See* the Code of Civil Procedure, 1908 (5 of 1908).
24. *See* the Code of Civil Procedure, 1908 (5 of 1908).

transaction, are relevant, whether they occurred at the same time and place or at different times and places.

Illustrations

(*a*) *A* is accused of the murder of *B* by beating him. Whatever was said or done by *A* or *B* or the by-standers at the beating, or so shortly before or after it as to form part of the transaction, is a relevant fact.

(*b*) *A* is accused of waging war against the [25][Government of India] by taking part in an armed insurrection in which property is destroyed, troops are attacked and gaols are broken open. The occurrence of these facts is relevant, as forming part of the general transaction, though *A* may not have been present at all of them.

(*c*) *A* sues *B* for a libel contained in a letter forming part of a correspondence. Letters between the parties relating to the subject out of which the libel arose, and forming part of the correspondence in which it is contained, are relevant facts, though they do not contain the libel itself.

(*d*) The question is, whether certain goods ordered from *B* were delivered to *A*. The goods were delivered to several intermediate persons successively. Each delivery is a relevant fact.

CASE LAW ▸ **Nature.**—Section 6 is an exception to rule of evidence that hearsay evidence is not admissible. Test for applying rule of res gestae is that statement (or fact) should be spontaneous and should form part of the same transaction ruling out any possibility of concoction, *Javed Alam* v. *State of Chhattisgarh*, (2009) 6 SCC 450.

▸ **Extra-judicial confession.**—Confessional statements made to police by accused, cannot be the basis to prove guilt of accused but, at the same time, there is no reason to discard confessions made to independent witnesses, prior to arrival of police, *Ishwari Lal Yadav* v. *State of Chhattisgarh*, (2019) 10 SCC 437.

Extra-judicial confession is, on the face of it, weak evidence and court is reluctant, in the absence of a chain of cogent circumstances, to rely on it, for the purpose of recording a conviction. Though extra-judicial confession can be used against its maker but as a matter of caution, advisable for court to look for corroboration with other evidence on record, *Devi Lal* v. *State of Rajasthan*, (2019) 19 SCC 447.

▸ **Repudiation/Rescission of Insurance Policy.**—Information obtained by insurer after decision of competent forum (National Consumer Commission) had awarded claim, held, not admissible when such information could easily have been obtained prior thereto and a proper investigation report had also been submitted before competent forum. Furthermore, certain hearsay information could also not be relied on by the insurer, *Bharti AXA General Insurance Co. Ltd.* v. *Priya Paul*, (2020) 12 SCC 167.

▸ **Doctrine of res gestae.**—Essence of this doctrine is that a fact which, though not in issue, is so connected with the fact in issue "as to form part of the same transaction" that it becomes relevant by itself. Thus, conduct of the accused after the incident may become admissible under Section 6, though not in issue, if it is so connected with the fact in issue. A different approach in reappreciating the evidence would have defeated dispensation of justice, as in cases based on circumstantial evidence also it is not the quantity of the evidence that counts, but it is its quality. In other words, the question is only whether a complete chain of circumstantial evidence of such a character that the same is wholly inconsistent with the innocence of the accused and is consistent only with his guilt, is available, *Veerendra* v. *State of M.P.*, (2022) 8 SCC 668.

7. Facts which are the occasion, cause or effect of facts in issue.—Facts which are the occasion, cause or effect, immediate or otherwise, of relevant facts,

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25. *Subs.* for "Queen" by the A.O. 1950 (w.e.f. 26-1-1950).

or facts in issue, or which constitute the state of things under which they happened, or which afforded an opportunity for their occurrence or transaction, are relevant.

Illustrations

(*a*) The question is, whether *A* robbed *B*.

The facts that, shortly before the robbery, *B* went to a fair with money in his possession, and that he showed it, or mentioned the fact that he had it, to third persons, are relevant.

(*b*) The question is, whether *A* murdered *B*.

Marks on the ground, produced by a struggle at or near the place where the murder was committed, are relevant facts.

(*c*) The question is, whether *A* poisoned *B*.

The state of *B*'s health before the symptoms ascribed to poison, and habits of *B*, known to *A*, which afforded an opportunity for the administration of poison, are relevant facts.

CASE LAW ▸ Conditions for admissibility of tape recording.—A tape-recorded statement is admissible in evidence, subject to the following conditions:—

(1) The voice of the speaker must be identified by the maker of the record or other persons recognising his voice. Where the maker is unable to identify the voice, strict proof will be required to determine whether or not it was the voice of the alleged speaker.

(2) The accuracy of the tape-recorded statement must be proved by the maker of the record by satisfactory evidence: direct or circumstantial.

(3) Possibility of tampering with, or erasure of any part of, the tape-recorded statement must be totally excluded.

(4) The tape-recorded statement must be relevant.

(5) The recorded cassette must be sealed and must be kept in safe or official custody.

(6) The voice of the particular speaker must be clearly audible and must not be lost or distorted by other sounds or disturbances, *Ram Singh* v. *Col. Ram Singh*, 1985 Supp SCC 611. *See also R.M. Malkani* v. *State of Maharashtra*, (1973) 1 SCC 471 : 1973 SCC (Cri) 399.

The tape and its contents are to be relied on not only for corroborating the evidence of the maker thereof and the person whose statement he recorded but also as res gestae under Sections 6, 7 & 8 of the Evidence Act, *Ram Singh* v. *Col. Ram Singh*, 1985 Supp SCC 611.

8. Motive, preparation and previous or subsequent conduct.—Any fact is relevant which shows or constitutes a motive or preparation for any fact in issue or relevant fact.

The conduct of any party, or of any agent to any party, to any suit or proceeding, in reference to such suit or proceeding, or in reference to any fact in issue therein or relevant thereto, and the conduct of any person an offence against whom is the subject of any proceeding, is relevant, if such conduct influences or is influenced by any fact in issue or relevant fact, and whether it was previous or subsequent thereto.

Explanation 1.—The word "conduct" in this section does not include statements, unless those statements accompany and explain acts other than statements; but this explanation is not to affect the relevancy of statements under any other section of this Act.

Explanation 2.—When the conduct of any person is relevant, any statement made to him or in his presence and hearing, which affects such conduct, is relevant.

Illustrations

(*a*) *A* is tried for the murder of *B*.

The facts that *A* murdered *C*, that *B* knew that *A* had murdered *C*, and that *B* had tried to extort money from *A* by threatening to make his knowledge public, are relevant.

(*b*) *A* sues *B* upon a bond for the payment of money. *B* denies the making of the bond.

The fact that, at the time when the bond was alleged to be made, *B* required money for a particular purpose, is relevant.

(*c*) *A* is tried for the murder of *B* by poison.

The fact that, before the death of *B*, *A* procured poison similar to that which was administered to *B*, is relevant.

(*d*) The question is, whether a certain document is the will of *A*.

The facts that, not long before the date of the alleged will, *A* made inquiry into matters to which the provisions of the alleged will relate, that he consulted vakils in reference to making the will, and that he caused drafts of other wills to be prepared, of which he did not approve, are relevant.

(*e*) *A* is accused of a crime.

The facts that, either before, or at the time of, or after the alleged crime, *A* provided evidence which would tend to give to the facts of the case an appearance favourable to himself, or that he destroyed or concealed evidence, or prevented the presence or procured the absence of persons who might have been witnesses, or suborned persons to give false evidence respecting it, are relevant.

(*f*) The question is, whether *A* robbed *B*.

The facts that, after *B* was robbed, *C* said in *A*'s presence—"the police are coming to look for the man who robbed *B*", and that immediately afterwards *A* ran away, are relevant.

(*g*) The question is, whether *A* owes *B* rupees 10,000.

The facts that *A* asked *C* to lend him money, and that *D* said to *C* in *A*'s presence and hearing —"I advise you not to trust *A*, for he owes *B* 10,000 rupees," and that *A* went away without making any answer, are relevant facts.

(*h*) The question is, whether *A* committed a crime.

The fact that *A* absconded after receiving a letter warning him that inquiry was being made for the criminal, and the contents of the letter, are relevant.

(*i*) *A* is accused of a crime.

The facts that, after the commission of the alleged crime, he absconded, or was in possession of property or the proceeds of property acquired by the crime, or attempted to conceal things which were or might have been used in committing it, are relevant.

(*j*) The question is, whether *A* was ravished.

The facts that, shortly after the alleged rape, she made a complaint relating to the crime, the circumstances under which, and the terms in which, the complaint was made, are relevant.

The fact that, without making a complaint, she said that she had been ravished is, not relevant, as conduct under this section, though it may be relevant as a dying declaration under Section 32, clause (1), or as corroborative evidence under Section 157.

(*k*) The question is, whether *A* was robbed.

The fact that, soon after the alleged robbery, he made a complaint relating to the offence, the circumstances under which, and the terms in which, the complaint was made, are relevant.

The fact that he said he had been robbed without making any complaint, is not relevant, as conduct under this section, though it may be relevant as a dying declaration under Section 32, clause (1), or as corroborative evidence under Section 157.

CASE LAW ▸ Motive or preparation.—Where motive is neither alleged nor proved, the same would ipso facto not affect the prosecution case but in case there are other circumstances to create doubt regarding veracity of the prosecution case, this may also become material, *Dhananjay Shanker Shetty* v. *State of Maharashtra*, (2002) 6 SCC 596 : 2002 SCC (Cri) 1444.

▸ Conduct and Subsequent Conduct.—In criminal proceedings a man's character is often a matter of importance in explaining his conduct and in judging his innocence or criminality, *Habeeb Mohammad* v. *State of Hyderabad*, AIR 1954 SC 51 : 1954 Cri LJ 338.

Conduct admissible under Section 8 of Evidence Act must be such that it has a close nexus with a fact in issue or relevant fact, *State (NCT of Delhi)* v. *Navjot Sandhu*, (2005) 11 SCC 600 : 2005 SCC (Cri) 1715.

▸ Conduct as a fact.—When a party makes a claim based upon revocation of earlier will, as indicated in a subsequent will, said acknowledgment of former would form part of conduct leading to a relevant fact vis-à-vis a fact in issue, *V. Prabhakara* v. *Basavaraj K.*, (2022) 1 SCC 115.

9. Facts necessary to explain or introduce relevant facts.—Facts necessary to explain or introduce a fact in issue or relevant fact, or which support or rebut an inference suggested by a fact in issue or relevant fact, or which establish the identity of any thing or person whose identity is relevant, or fix the time or place at which any fact in issue or relevant fact happened, or which show the relation of parties by whom any such fact was transacted, are relevant in so far as they are necessary for that purpose.

Illustrations

(*a*) The question is, whether a given document is the will of *A*.

The state of *A*'s property and of his family at the date of the alleged will may be relevant facts.

(*b*) *A* sues *B* for a libel imputing disgraceful conduct to *A*; *B* affirms that the matter alleged to be libellous is true.

The position and relations of the parties at the time when the libel was published may be relevant facts as introductory to the facts in issue.

The particulars of a dispute between *A* and *B* about a matter unconnected with the alleged libel are irrelevant, though the fact that there was a dispute may be relevant if it affected the relations between *A* and *B*.

(*c*) *A* is accused of a crime.

The fact that, soon after the commission of the crime, *A* absconded from his house, is relevant under Section 8, as conduct subsequent to and affected by facts in issue.

The fact that, at the time when he left home, he had sudden and urgent business at the place to which he went, is relevant, as tending to explain the fact that he left home suddenly.

The details of the business on which he left are not relevant, except in so far as they are necessary to show that the business was sudden and urgent.

(*d*) *A* sues *B* for inducing *C* to break a contract of service made by him with *A*. *C*, on leaving *A*'s service, says to *A*—"I am leaving you because *B* has made me a better offer". This statement is a relevant fact as explanatory of *C*'s conduct, which is relevant as a fact in issue.

(*e*) *A*, accused of theft, is seen to give the stolen property to *B*, who is seen to give it to *A*'s wife. *B* says as he delivers it—"*A* says you are to hide this". *B*'s statement is relevant as explanatory of a fact which is part of the transaction.

(*f*) *A* is tried for a riot and is proved to have marched at the head of a mob. The cries of the mob are relevant as explanatory of the nature of the transaction.

CASE LAW ▸ Object of Identification Parade.—Object of TI Parade is (*i*) to enable witnesses to satisfy themselves that the person whom they suspect is really the one who was seen by them committing the offence; and (*ii*) to satisfy investigating authorities that suspect is the real person whom witnesses had seen in connection with said occurrence, *Ankush Maruti Shinde* v. *State of Maharashtra*, (2009) 6 SCC 667.

▸ **Process and Nature of Identification Tests/Parade.**—The evidence of test identification is admissible under Section 9 of the Evidence Act; it is, at best, supporting evidence. It can be used only to corroborate the substantive evidence given by the witnesses in court regarding identification of the accused as the doer of the criminal act. The earlier identification made by the witnesses at the test identification parade, by itself, has no independent value. Nor is test identification the only type of evidence that can be tendered to confirm the evidence of a witness regarding identification of the accused, in Court, as the perpetrator of the crime. The identity can be fixed by circumstantial evidence also, *Sampat Tatyada Shinde* v. *State of Maharashtra*, (1974) 4 SCC 213 : 1974 SCC (Cri) 382.

Court cannot accept identification by style of writing, *Harasing Charan Mohanty* v. *Sh. Surendra Mohanty*, (1974) 3 SCC 680.

▸ **Validity of Identification Tests/Parade.**—Even if identification of accused is by one witness only and other witness who was also present at the crime scene does not participate, investigation is not vitiated, *Mohd. Kalam* v. *State of Rajasthan*, (2008) 11 SCC 352.

Photograph of accused even if assumed to be published, did not affect validity of parade, even if there was long gap between publication and holding of TI parade, *Munna Kumar Upadhyay* v. *State of A.P.*, (2012) 6 SCC 174 : (2012) 3 SCC (Cri) 42.

▸ **Test identification parade.**—The identification in the course of a TIP is intended only to lend assurance to the identity of the accused and the finding of guilt cannot be based purely on the refusal of the accused to undergo an identification parade. Test identification parade is not material, when the accused not only found earlier known to the alleged eyewitnesses, but these witnesses and ballistics evidence found not reliable, *Rajesh* v. *State of Haryana*, (2021) 1 SCC 118.

10. Things said or done by conspirator in reference to common design.—Where there is reasonable ground to believe that two or more persons have conspired together to commit an offence or an actionable wrong, anything said, done or written by any one of such persons in reference to their common intention, after the time when such intention was first entertained by any one of them, is a relevant fact as against each of the persons believed to be so conspiring, as well for the purpose of proving the existence of the conspiracy as for the purpose of showing that any such person was a party to it.

Illustration

Reasonable ground exists for believing that *A* has joined in a conspiracy to wage war against the [26][Government of India].

The facts that *B* procured arms in Europe for the purpose of the conspiracy, *C* collected money in Calcutta for a like object, *D* persuaded persons to join the conspiracy in Bombay, *E* published writings advocating the object in view at Agra, and *F* transmitted from Delhi to *G* at Kabul the money which *C* had collected at Calcutta, and the contents of a letter written by *H* giving an account of the conspiracy, are each relevant, both to prove the existence of the conspiracy, and to prove *A*'s complicity in it, although he may have been ignorant of all of them, and although the persons by whom they were done were strangers to him, and although they may have taken place before he joined the conspiracy or after he left it.

CASE LAW ▸ Ingredients of.—Section 10 provides unique and special rule of evidence to be followed in case of conspiracy. Once conditions given therein are fulfilled, statement made by one conspirator will be taken as evidence against all other co-conspirators, *Yakub Abdul Razak Memon* v. *State of Maharashtra*, (2013) 13 SCC 1.

▸ **Accused appearing as witness for defence.**—An accused cannot be compelled to give evidence as a prosecution witness in view of the expression "in disproof of the charges" in Section 342-A, CrPC, 1898. But once his evidence as a witness for defence is on record, under Section 10 of the Evidence Act, evidence, as to communications between one conspirator and the other during the time that the conspiracy is going on and relating to implementing that conspiracy, is relevant evidence. The statements by one accused to another and the evidence as to the acts done by him disclosing participation by the other accused in the conspiracy are also relevant, *Tribhuvan Nath* v. *State of Maharashtra*, (1972) 3 SCC 511 : 1972 SCC (Cri) 604.

▸ **Relevant time.**—Statement made by conspirators after they are arrested are not admissible, because by that time conspiracy would have ended, *State (NCT of Delhi)* v. *Navjot Sandhu*, (2005) 11 SCC 600 : 2005 SCC (Cri) 1715.

11. When facts not otherwise relevant become relevant.—Facts not otherwise relevant are relevant—

(1) if they are inconsistent with any fact in issue or relevant fact;

(2) if by themselves or in connection with other facts they make the existence or non-existence of any fact in issue or relevant fact highly probable or improbable.

Illustrations

(*a*) The question is whether *A* committed a crime at Calcutta on a certain day. The fact that, on that day, *A* was at Lahore is relevant.

The fact that, near the time when the crime was committed, *A* was at a distance from the place where it was committed, which would render it highly improbable, though not impossible, that he committed it, is relevant.

(*b*) The question is, whether *A* committed a crime.

The circumstances are such that the crime must have been committed either by *A*, *B*, *C* or *D*. Every fact which shows that the crime could have been committed by no one else, and that it was not committed by either *B*, *C* or *D*, is relevant.

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26. *Subs.* for "Queen" by the A.O. 1950 (w.e.f. 26-1-1950).

CASE LAW ▸ Plea of alibi — Nature of.—Word alibi means "elsewhere". Plea of alibi is not one of the General Exceptions contained in Chapter IV IPC. It is rule of evidence recognised under Section 11, Evidence Act. However, plea of alibi taken by defence is required to be proved only after prosecution has proved its case against accused, *Darshan Singh* v. *State of Punjab*, (2016) 3 SCC 37.

▸ **Standard of proof.**—A plea of alibi must be proved with absolute certainty so as to completely exclude the possibility of the presence of the person concerned at the place of occurrence, *State of Maharashtra* v. *Narsingrao Gangaram Pimple*, (1984) 1 SCC 446 : 1984 SCC (Cri) 109.

It is well settled that a plea of alibi has to be proved to the satisfaction of the court, *Soma Bhai* v. *State of Gujarat*, (1975) 4 SCC 257 : 1975 SCC (Cri) 515.

12. In suits for damages, facts tending to enable Court to determine amount are relevant.—In suits in which damages are claimed, any fact which will enable the Court to determine the amount of damages which ought to be awarded, is relevant.

13. Facts relevant when right or custom is in question.—Where the question is as to the existence of any right or custom, the following facts are relevant:—

(*a*) any transaction by which the right or custom in question was created, claimed, modified, recognized, asserted or denied, or which was inconsistent with its existence;

(*b*) particular instances in which the right or custom was claimed, recognized or exercised, or in which its exercise was disputed, asserted or departed from.

Illustration

The question is whether *A* has a right to a fishery. *A* deed conferring the fishery on *A*'s ancestors, a mortgage of the fishery by *A*'s father, a subsequent grant of the fishery by *A*'s father, irreconcilable with the mortgage, particular instances in which *A*'s father exercised the right, or in which the exercise of the right was stopped by *A*'s neighbours, are relevant facts.

CASE LAW ▸ Admissibility and relevance of evidence.—Judgment in a previous suit between same parties is a relevant piece of evidence if it has a material bearing on the controversy arising for decision in the subsequent suit, *Madhukar D. Shende* v. *Tarabai Aba Shedage*, (2002) 2 SCC 85.

Judgment not inter partes admissible in evidence under Section 13 as evidence of assertion of a right to property in dispute, *Tirumala Tirupati Devasthanams* v. *K.M. Krishnaiah*, (1998) 3 SCC 331.

▸ **Presumption.**—The particular right should be asserted by the transaction and not in the transaction, *Bhagwati Prasad Sah* v. *Rameshwari Kuer*, AIR 1952 SC 72.

14. Facts showing existence of state of mind, or of body, or bodily feeling.—Facts showing the existence of any state of mind, such as intention, knowledge, good faith, negligence, rashness, ill-will or good-will towards any particular person, or showing the existence of any state of body or bodily feeling, are relevant, when the existence of any such state of mind or body or bodily feeling is in issue or relevant.

[27][*Explanation 1*.—A fact relevant as showing the existence of a relevant state of mind must show that the state of mind exists, not generally, but in reference to the particular matter in question.

Explanation 2.—But where, upon the trial of a person accused of an offence, the previous commission by the accused of an offence is relevant within the meaning of this section, the previous conviction of such person shall also be a relevant fact.]

Illustrations

(*a*) *A* is accused of receiving stolen goods knowing them to be stolen. It is proved that he was in possession of a particular stolen article.

The fact that, at the same time, he was in possession of many other stolen articles is relevant, as tending to show he knew each and all of the articles of which he was in possession to be stolen.

[28][(*b*) *A* is accused of fraudulently delivering to another person a counterfeit coin which, at the time when he delivered it, he knew to be counterfeit.

The fact that, at the time of its delivery, *A* was possessed of a number of other pieces of counterfeit coin is relevant.

The fact that *A* had been previously convicted of delivering to another person as genuine a counterfeit coin knowing it to be counterfeit is relevant.]

(*c*) *A* sues *B* for damage done by a dog of *B*'s which *B* knew to be ferocious.

The facts that the dog had previously bitten *X*, *Y* and *Z*, and that they had made complaints to *B*, are relevant.

(*d*) The question is, whether *A*, the acceptor of a bill of exchange, knew that the name of the payee was fictitious.

The fact that *A* had accepted other bills drawn in the same manner before they could have been transmitted to him by the payee if the payee had been a real person, is relevant, as showing that *A* knew that the payee was a fictitious person.

(*e*) *A* is accused of defaming *B* by publishing an imputation intended to harm the reputation of *B*.

The fact of previous publications by *A* respecting *B*, showing ill-will on the part of *A* towards *B*, is relevant, as proving *A*'s intention to harm *B*'s reputation by the particular publication in question.

The facts that there was no previous quarrel between *A* and *B*, and that *A* repeated the matter complained of as he heard it, are relevant, as showing that *A* did not intend to harm the reputation of *B*.

(*f*) *A* is sued by *B* for fraudulently representing to *B* that *C* was solvent, whereby *B*, being induced to trust *C*, who was insolvent, suffered loss.

The fact that at the time when *A* represented *C* to be solvent, *C* was supposed to be solvent by his neighbours and by persons dealing with him, is relevant, as showing that *A* made the representation in good faith.

(*g*) *A* is sued by *B* for the price of work done by *B*, upon a house of which *A* is owner, by the order of *C*, a contractor.

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27. *Subs.* by Act 3 of 1891, S. 1(1). Prior to substitution it read as:
"*Explanation.*—A fact relevant as showing the existence of a relevant state of mind must show that it exists, not generally, but in reference to the particular matter in question."

28. *Subs.* by Act 3 of 1891, S. 1(2). Prior to substitution it read as:
"(*b*) *A* is accused of fraudulently delivering to another person a piece of counterfeit coin which, at the time when he delivered it, he knew to be counterfeit.
The fact that, at the time of its delivery, *A* was possessed of a number of other pieces of counterfeit coin is relevant."

A's defence is that *B*'s contract was with *C*.

The fact that *A* paid *C* for the work in question is relevant, as proving that *A* did, in good faith, make over to *C* the management of the work in question, so that *C* was in a position to contract with *B* on *C*'s own account, and not as agent for *A*.

(*h*) *A* is accused of the dishonest misappropriation of property which he had found, and the question is whether, when he appropriated it, he believed in good faith that the real owner could not be found.

The fact that public notice of the loss of the property had been given in the place where *A* was, is relevant, as showing that *A* did not in good faith believe that the real owner of the property could not be found.

The fact that *A* knew, or had reason to believe, that the notice was given fraudulently by *C*, who had heard of the loss of the property and wished to set up a false claim to it, is relevant as showing that the fact that *A* knew of the notice did not disprove *A*'s good faith.

(*i*) *A* is charged with shooting at *B* with intent to kill him. In order to show *A*'s intent, the fact of *A*'s having previously shot at *B* may be proved.

(*j*) *A* is charged with sending threatening letters to *B*. Threatening letters previously sent by *A* to *B* may be proved, as showing the intention of the letters.

(*k*) The question is, whether *A* has been guilty of cruelty towards *B*, his wife.

Expressions of their feeling towards each other shortly before or after the alleged cruelty, are relevant facts.

(*l*) The question is, whether *A*'s death was caused by poison.

Statements made by *A* during his illness as to his symptoms, are relevant facts.

(*m*) The question is, what was the state of *A*'s health at the time when an assurance on his life was effected.

Statements made by *A* as to the state of his health at or near the time in question, are relevant facts.

(*n*) *A* sues *B* for negligence in providing him with a carriage for hire not reasonably fit for use, whereby *A* was injured.

The fact that *B*'s attention was drawn on other occasions to the defect of that particular carriage, is relevant.

The fact that *B* was habitually negligent about the carriages which he let to hire, is irrelevant.

(*o*) *A* is tried for the murder of *B* by intentionally shooting him dead.

The fact that *A*, on other occasions, shot at *B* is relevant, as showing his intention to shoot *B*.

The fact that *A* was in the habit of shooting at people with intent to murder them, is irrelevant.

(*p*) *A* is tried for a crime.

The fact that he said something indicating an intention to commit that particular crime, is relevant.

The fact that he said something indicating a general disposition to commit crimes of that class, is irrelevant.

CASE LAW ▸ Reaction of eyewitness.—Reaction of an eyewitness on seeing an attack on a person is a normal human conduct and has to be taken into consideration, *Surinder Singh* v. *State of U.P.*, (2003) 10 SCC 26 : 2004 SCC (Cri) 717.

▸ **Establishment of fraud/defendant's state of mind.**—Though passing off is, in essence, an action based on deceit, fraud is not a necessary element of a right of action, and that the defendant's state of mind is wholly irrelevant to the existence of a cause of action for passing off, if otherwise the defendant has imitated or adopted the plaintiff's mark, *Wockhardt Ltd.* v. *Torrent Pharmaceuticals Ltd.*, (2018) 18 SCC 346.

15. Facts bearing on question whether act was accidental or intentional.—When there is a question whether an act was accidental or intentional, [29][or done with a particular knowledge or intention], the fact that such act formed part of a series of similar occurrences, in each of which the person doing the act was concerned, is relevant.

Illustrations

(*a*) *A* is accused of burning down his house in order to obtain money for which it is insured.

The facts that *A* lived in several houses successively, each of which he insured, in each of which fire occurred, and after each of which fires *A* received payment from a different insurance office, are relevant, as tending to show that fires were not accidental.

(*b*) *A* is employed to receive money from the debtors of *B*. It is *A*'s duty to make entries in a book showing the amounts received by him. He makes an entry showing that on a particular occasion he received less than he really did receive.

The question is, whether this false entry was accidental or intentional.

The facts that other entries made by *A* in the same book are false, and that the false entry is in each case in favour of *A*, are relevant.

(*c*) *A* is accused of fraudulently delivering to *B* a counterfeit rupee. The question is, whether the delivery of the rupee was accidental.

The fact that, soon before or soon after the delivery to *B*, *A* delivered counterfeit rupees to *C*, *D* and *E* are relevant, as showing that the delivery to *B* was not accidental.

16. Existence of course of business when relevant.—When there is a question whether a particular act was done, the existence of any course of business, according to which it naturally would have been done, is a relevant fact.

Illustrations

(*a*) The question is, whether a particular letter was despatched.

The facts that it was the ordinary course of business for all letters put in a certain place to be carried to the post, and that that particular letter was put in that place, are relevant.

(*b*) The question is, whether a particular letter reached *A*. The facts that it was posted in due course, and was not returned through the Dead Letter Office, are relevant.

Admissions

17. Admission defined.—An admission is a statement, oral or documentary [30][or contained in electronic form], which suggests any inference as to any fact in issue or relevant fact, and which is made by any of the persons, and under the circumstances, hereinafter mentioned.

CASE LAW ▸ Meaning, nature and Scope of 'Admission'.—An admission is substantive evidence, though it is open to the person who made the admission to show that the fact admitted is not correct, *Narayanswami* v. *State of Maharashtra*, (1971) 2 SCC 182.

A prior statement in one's own interest may not be evidence, but a prior statement adverse to one's interest would be evidence, *Satrucharla Vijaya Rama Raju* v. *Nimmaka Jaya Raju*, (2006) 1 SCC 212.

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29. *Ins.* by Act 3 of 1891, S. 2.
30. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).

Admissions are not conclusive, and unless they constitute estoppel, the maker is at liberty to prove that they were mistaken or were untrue, *Kishori Lal* v. *Chaltibai*, AIR 1959 SC 504. See also *Union of India* v. *Ibrahim Uddin*, (2012) 8 SCC 148 : (2012) 4 SCC (Civ) 362.

▸ **Admissibility, voluntariness and proof of confession.**—A confession is admissible only as against the person who has made it, unless it is rendered inadmissible under some express provision i.e. Sections 24, 25 and 26. It would be inappropriate to implicate a person on the basis of a statement made by another. A person who has made the admission/confession should be a party to the proceeding because that is the only way a confession can be used against him. Hence, confessions which have been made by the accused (in another case) who are not the accused in present case are inadmissible as admissions/confessions as such, and evidence of such confessional statements recorded before witnesses (police officers) would also be inadmissible within the scheme of admissions/confessions contained in the Evidence Act, *State of Maharashtra* v. *Kamal Ahmed Mohammed Vakil Ansari*, (2013) 12 SCC 17 : (2013) 4 SCC (Cri) 202.

▸ **Admission.**—Admission is the best evidence against a litigant, unless properly explained, *Natesan Agencies (Plantations)* v. *State*, (2019) 15 SCC 70.

▸ **Admission whether amounting to a confession.**—Admission made by a person, whether amounting to a confession or not, cannot be split up and part of it used against him. An admission must be used either as a whole or not at all, *Prakash* v. *State of Karnataka*, (2014) 12 SCC 133 : (2014) 6 SCC (Cri) 642.

▸ **Admission by counsel.**—Admission of law by counsel binds neither client nor court, *Himalayan Coop. Group Housing Society* v. *Balwan Singh*, (2015) 7 SCC 373.

▸ **Statement made to court by counsel — When binding on client.**—Unequivocal statement made to court by a counsel in relation to commitment of his client qua the subject-matter of the proceedings in which that counsel was engaged and instructed to appear and where there was no case of client that he had expressly instructed his counsel not to make such a statement, the statement made to the court by the counsel in such a case, held, was binding on his client, *Om Prakash* v. *Suresh Kumar*, (2020) 13 SCC 188.

18. Admission by party to proceeding or his agent; by suitor in representative character; by party interested in subject-matter; by person from whom interest derived.—Statements made by a party to the proceeding, or by an agent to any such party, whom the Court regards, under the circumstances of the case, as expressly or impliedly authorised by him to make them, are admissions.

Statements made by parties to suits, suing or sued in a representative character, are not admissions, unless they were made while the party making them held that character.

Statements made by—

(1) persons who have any proprietary or pecuniary interest in the subject-matter of the proceeding, and who make the statement in their character of persons so interested, or

(2) persons from whom the parties to the suit have derived their interest in the subject-matter of the suit,

are admissions, if they are made during the continuance of the interest of the persons making the statements.

19. Admissions by persons whose position must be proved as against party to suit.—Statements made by persons whose position or liability it is necessary to prove as against any party to the suit, are admissions, if such statements would be relevant as against such persons in relation to such position or liability in a suit brought by or against them, and if they are made whilst the person making them occupies such position or is subject to such liability.

Illustration

A undertakes to collect rents for *B*.

B sues *A* for not collecting rent due from *C* to *B*.

A denies that rent was due from *C* to *B*.

A statement by *C* that he owed *B* rent is an admission, and is a relevant fact as against *A*, if *A* denies that *C* did owe rent to *B*.

20. Admissions by persons expressly referred to by party to suit.—Statements made by persons to whom a party to the suit has expressly referred for information in reference to a matter in dispute are admissions.

Illustration

The question is, whether a horse sold by *A* to *B* is sound.

A says to *B*—"Go and ask *C*, *C* knows all about it." *C*'s statement is an admission.

CASE LAW ▸ Manner of admission.—The reference under Section 20 may be by express words or by conduct, but in any case there must be a clear admission to refer and such admissions are generally conclusive. Admissions may operate as estoppel and they do so where parties had agreed to abide by them, *Hirachand Kothari* v. *State of Rajasthan*, 1985 Supp SCC 17.

▸ **Information.**—The word 'information' occurring in Section 20 is not to be understood in the sense that the parties desired to know something which none of them had any knowledge of. Where there is a dispute as regards a certain question and the Court is in need of information regarding the truth on that point, any statement which the referee may make is nevertheless information within the purview of Section 20 and is admissible.

21. Proof of admissions against persons making them, and by or on their behalf.—Admissions are relevant and may be proved as against the person who makes them, or his representative in interest; but they cannot be proved by or on behalf of the person who makes them or by his representative in interest, except in the following cases:—

(1) An admission may be proved by or on behalf of the person making it, when it is of such a nature that, if the person making it were dead, it would be relevant as between third persons under Section 32.

(2) An admission may be proved by or on behalf of the person making it, when it consists of a statement of the existence of any state of mind or body, relevant or in issue, made at or about the time when such state of mind or body existed, and is accompanied by conduct rendering its falsehood improbable.

(3) An admission may be proved by or on behalf of the person making it, if it is relevant otherwise than as an admission.

Illustrations

(*a*) The question between *A* and *B* is, whether a certain deed is or is not forged. *A* affirms that it is genuine, *B* that it is forged.

A may prove a statement by *B* that the deed is genuine, and *B* may prove a statement by *A* that the deed is forged; but *A* cannot prove a statement by himself that the deed is genuine, nor can *B* prove a statement by himself that the deed is forged.

(*b*) *A*, the captain of a ship, is tried for casting her away.

Evidence is given to show that the ship was taken out of her proper course.

A produces a book kept by him in the ordinary course of his business, showing observations alleged to have been taken by him from day to day, and indicating that the ship was not taken out of her proper course. *A* may prove these statements, because they would be admissible between third parties, if he were dead, under Section 32, clause (2).

(*c*) *A* is accused of a crime committed by him at Calcutta.

He produces a letter written by himself and dated at Lahore on that day, and bearing the Lahore post-mark of that day.

The statement in the date of the letter is admissible, because if *A* were dead, it would be admissible under Section 32, clause (2).

(*d*) *A* is accused of receiving stolen goods knowing them to be stolen.

He offers to prove that he refused to sell them below their value.

A may prove these statements, though they are admissions, because they are explanatory of conduct influenced by facts in issue.

(*e*) *A* is accused of fraudulently having in his possession counterfeit coin which he knew to be counterfeit.

He offers to prove that he asked a skilful person to examine the coin, as he doubted whether it was counterfeit or not, and that that person did examine it and told him it was genuine.

A may prove these facts for the reasons stated in the last preceding illustration.

22. When oral admissions as to contents of documents are relevant.—Oral admissions as to the contents of a document are not relevant, unless and until the party proposing to prove them shows that he is entitled to give secondary evidence of the contents of such document under the rules hereinafter contained, or unless the genuineness of a document produced is in question.

[31][**22-A. When oral admission as to contents of electronic records are relevant.**—Oral admissions as to the contents of electronic records are not relevant, unless the genuineness of the electronic record produced is in question.]

23. Admissions in civil cases, when relevant.—In civil cases no admission is relevant, if it is made either upon an express condition that evidence of it is not to be given, or under circumstances from which the Court can infer that the parties agreed together that evidence of it should not be given.

Explanation.—Nothing in this section shall be taken to exempt any barrister, pleader, attorney or vakil from giving evidence of any matter of which he may be compelled to give evidence under Section 126.

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31. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).

24. Confession caused by inducement, threat or promise, when irrelevant in criminal proceeding.—A confession made by an accused person is irrelevant in a criminal proceeding, if the making of the confession appears to the Court to have been caused by any inducement, threat or promise[32], having reference to the charge against the accused person, proceeding from a person in authority and sufficient, in the opinion of the Court, to give the accused person grounds, which would appear to him reasonable, for supposing that by making it he would gain any advantage or avoid any evil of a temporal nature in reference to the proceedings against him.

CASE LAW ▸ Confession, Meaning and interpretation.—A statement, whether communicated or not, admitting guilt amounts to a confession of guilt. The probative value of confessions does not depend upon their communication to another, though, just like any other piece of evidence, they can be admitted in evidence only on proof. This proof is the case of oral admissions and a confession can be offered only by witnesses who heard the admission or confession, as the case may be, *Sahoo* v. *State of U.P.*, AIR 1966 SC 40 : 1966 Cri LJ 68.

▸ **Extra-judicial confession.**—Extrajudicial confession appears to have been treated as a weak piece of evidence but there is no rule of law nor rule of prudence that it cannot be acted upon unless corroborated, *State of U.P.* v. *M.K. Anthony*, (1985) 1 SCC 505 : 1985 SCC (Cri) 105.

It is not open to any court to start with a presumption that extrajudicial confession is a weak type of evidence. It would depend on the nature of the circumstances, the time when the confession was made and the credibility of the witnesses who speak about such a confession, *Narayan Singh* v. *State of M.P.*, (1985) 4 SCC 26 : 1985 SCC (Cri) 460.

The evidence about an extra-judicial confession is in the nature of things a weak piece of evidence. If the same is lacking in probability there would be no difficulty in rejecting the same, *Jagta* v. *State of Haryana*, (1974) 4 SCC 747 : 1974 SCC (Cri) 657. See also *Sahadevan* v. *State of T.N.*, (2012) 6 SCC 403 : (2012) 3 SCC (Cri) 146.

Extra-judicial confession recorded by doctor while recording history of injuries is reliable, *M.A. Antony* v. *State of Kerala*, (2009) 6 SCC 220.

▸ **Confession — What is and when admissible.**—Law of confession is embodied in Sections 24 to 30, Evidence Act. Confession is a form of admission, consisting of direct acknowledgment of guilt in a criminal charge. A confession, which is not free from doubt about its voluntariness, is not admissible in evidence. Confession caused by inducement, threat or promise cannot be termed as voluntary confession. Whether a confession is voluntary or not is essentially a question of fact, *Raja* v. *State of T.N.*, (2020) 5 SCC 118.

▸ **Retracted confession.**—A retracted confession by an accused may form the basis of a conviction of that accused if it receives some general corroboration from other independent sources. It cannot however, be the basis for convicting a co-accused though it may be taken into consideration against a co-accused also, *Shrishail Nageshi Pare* v. *State of Maharashtra*, (1985) 2 SCC 341 : 1985 SCC (Cri) 235.

A retracted extra-judicial confession can form the basis of a conviction, though as a matter of prudence the courts try to look for corroboration from some independent source so as to satisfy their conscience that the confession is true, *Abdul Ghani* v. *State of U.P.*, (1973) 4 SCC 17 : 1973 SCC (Cri) 658. *See* also AIR 1963 SC 1094.

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32. For prohibition of such inducements, etc., *see* the Code of Criminal Procedure, 1973 (Act 2 of 1974), Section 316.

The written statement which the accused gave and the court made it as an exhibit must be treated as part of his statement under Section 313 CrPC. It is true that when an extra-judicial confession is retracted by the accused, there is no inflexible rule that the court must accept the retraction. But if the court wants to reject the retraction, the court must give cogent reasons before such rejection, *Rameshbhai Chandubhai Rathod* v. *State of Gujarat*, (2009) 5 SCC 740.

In case of retraction, probative value of original confession is not discarded but may be reduced. Even if a confession is treated as retracted, still the conviction can be on the strength of original confession, if there are corroborating evidence, *Manoharan* v. *State*, (2020) 5 SCC 782.

▸ **Mentality of accused.**—Words "appear to him" in the last part of the section-refer to the mentality of the accused, *State of Rajasthan* v. *Raja Ram*, (2003) 8 SCC 180 : 2003 SCC (Cri) 1965.

▸ **Oral dying declaration.**—To the rule of inadmissibility of hearsay evidence, oral dying declaration is an exception, *Bable* v. *State of Chhattisgarh*, (2012) 11 SCC 181.

25. Confession to police officer not to be proved.—No confession made to a police officer[33], shall be proved as against a person accused of any offence.

CASE LAW ▸ Nature.—Section 25 covers a confession made to a police officer before any investigation has begun or otherwise not in the course of an investigation, *P.N. Swami* v. *Emperor*, AIR 1939 PC 47 : 40 Cri LJ 364.

▸ **Police Officer.**—The words 'police officer' are not to be construed in a narrow way, but have to be construed in a wide and popular sense. However, the expression "police officer" does not have a wide meaning as to include persons on whom certain police powers are conferred. The Customs Officer is not primarily concerned with the detection and punishment of crime committed by a person but is mainly interested in the detection and prevention of smuggling of goods and safeguarding the recovery of the customs duties. He is more concerned with the goods and customs duty than with the offender, he is not a police officer within the meaning of Section 25, *State of Punjab* v. *Barkat Ram*, AIR 1962 SC 276 : (1962) 1 Cri LJ 217.

▸ **Distinction between Section 25 and 26.**—Sections 25 and 26 of the Evidence Act although seek to achieve the same purpose but they operate in somewhat two different fields. Section 25 raises an embargo as regards proof of confession before a police officer. The same need not be in police custody, whereas Section 26 raises a bar as regards admissibility of such confession if made by an accused in the custody of a police officer although such a confession might have been made before a person who was not a police officer. The policy underlying Sections 25 and 26 is to make it a substantive rule of law that confessions whenever and wherever made to the police, or while in the custody of the police to any person whomsoever, unless made in the immediate presence of a Magistrate, shall be presumed to have been obtained under the circumstances mentioned in Section 24 and, therefore, inadmissible except so far as is provided by Section 27 of the Act, *Commr. of Police* v. *Narender Singh*, (2006) 4 SCC 265 : 2006 SCC (L&S) 686.

▸ **Statement made by accused to police.**—A statement in order to be treated as a confession, must either admit in terms an offence, or at any rate, substantially all facts which constitute the offence, *Jarnail Singh* v. *State of Punjab*, (2011) 3 SCC 521 : (2011) 1 SCC (Cri) 1191.

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33. As to statements made to a police officer investigating a case, *see* the Code of Criminal Procedure, 1973 (Act 2 of 1974), S. 162.

HIGH COURT

▸ **Confession before Customs/Excise official.**—Confession made by an accused in custody of Customs officials for the purpose of enquiry pursuant to Magistrate's order is not barred, *Assistant Collector, Banglore* v. *C. Fernandez*, 1983 SCC (Cri) 109 : (1982) 3 SCC 512.

Excise officer is not a police officer. Hence, Section 25 of Evidence Act, 1872 is not applicable, *Om Prakash* v. *Union of India*, (2011) 14 SCC 1 : (2012) 3 SCC (Cri) 1249.

▸ **Admissibility of confession made to police officer.**—Confession made to a police officer is made inadmissible by Section 25. Section 25 of Evidence Act declares in fact that no confession made to a police officer shall be proved as against a person accused of any offence. Confession, unless it fulfils the test laid down in Pakala Narayana Swami, 1939 SCC OnLine PC 1 and as accepted by the Supreme Court, may still be used as admission under Section 21 of Evidence Act, subject to bar of admissibility under Section 162 CrPC. However, in case a statement containing not a confession but admission, which is otherwise relevant and which is made before investigation commences, may be admissible, *Dipakbhai Jagdishchandra Patel* v. *State of Gujarat*, (2019) 16 SCC 547.

▸ **Bar against admissibility of confession made to police officer.**— Where a person who is not a police officer properly so called is invested with all powers of investigation, and, the power of filing of a police report under Section 173 CrPC, such person can be said to be a police officer within the meaning of Section 25 of the Evidence Act. Where limited powers of investigation are given to officers primarily or predominantly for some purpose other than the prevention and detection of crime, such persons cannot be said to be police officers under Section 25 of the Evidence Act. Hence, officers empowered under Section 53 of the NDPS Act satisfy this test, and thus are police officers within the meaning of Section 25 of the Evidence Act. *Tofan Singh* v. *State of T.N.*, (2021) 4 SCC 1.

26. Confession by accused while in custody of police not to be proved against him.—No confession made by any person whilst he is in the custody of a police officer, unless it be made in the immediate presence of a Magistrate,[34] shall be proved as against such person.

[35][*Explanation.*—In this section "Magistrate" does not include the head of a village discharging magisterial functions in the Presidency of Fort St. George [36][* * *] or elsewhere, unless such headman is a Magistrate exercising the powers of a Magistrate under the Code of Criminal Procedure, 1882 (10 of 1882)[37].]

27. How much of information received from accused may be proved.—Provided that, when any fact is deposed to as discovered in consequence of information received from a person accused of any offence, in the custody of a police officer, so much of such information, whether it amounts to a confession or not, as relates distinctly to the fact thereby discovered, may be proved.

CASE LAW ▸ Scope.—Joint disclosures, to be more accurate, simultaneous disclosures, *per se*, are not inadmissible under Section 27. "A person accused" need not necessarily be a single person, but it could be a plurality of the accused. It seems that the real reason for not acting upon joint disclosures by taking resort to

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34. A Coroner has been declared to be a Magistrate for the purposes of this section, see the Coroners Act, 1871 (1 of 1871), S. 20.
35. *Ins.* by Act 3 of 1891, S. 3.
36. The words "or in Burma" *omitted* by the A.O. 1937.
37. *See* the Code of Criminal Procedure, 1973 (Act 2 of 1974).

Section 27 is the inherent difficulty in placing reliance on such information supposed to have emerged from the mouths of two or more accused at a time. In fact, joint or simultaneous disclosure is a myth, because two or more accused persons would not have uttered informatory words in a chorus, *State (NCT of Delhi)* v. *Navjot Sandhu*, (2005) 11 SCC 600 : 2005 SCC (Cri) 1715.

Under Section 27, it is not the discovery of every fact that is admissible but discovery of relevant fact is alone admissible. Relevancy is nothing but connection or link between facts discovered with the crime, *Digamber Vaishnav* v. *State of Chhattisgarh*, (2019) 4 SCC 522.

▸ **Ambit and scope.**—It is a settled legal position that facts need not be self-probatory and word "fact" as contemplated in Section 27, is not limited to "actual physical material object". Discovery of fact arises by reason of the fact, that information given by accused exhibited the knowledge or the mental awareness of informant as to its existence at a particular place. It includes a discovery of an object, the place from which it is produced and the knowledge of accused as to its existence, *Asar Mohd.* v. *State of U.P.*, (2019) 12 SCC 253.

▸ **Ingredients.**—The essential ingredient of Section 27 is that the information given by the accused must lead to the discovery of the fact which is the direct outcome of such information. Secondly, only such portion of the information given as is distinctly connected with the said discovery is admissible against the accused. Thirdly, the discovery of the fact must relate to the commission of some offence, *Jaffar Husain Dastgir* v. *State of Maharashtra*, (1969) 2 SCC 872.

▸ **Relevance.**—Relevance of confessional statements would depend upon discovery of unknown facts based on information supplied by accused. If any fresh facts have been discovered on basis of confessional statement made by accused, the same would be relevant. If not, confessional statement cannot be proved against accused, to the detriment of accused, *Madhu* v. *State of Kerala*, (2012) 2 SCC 399 : (2012) 1 SCC (Cri) 892.

▸ **Duty of Investigating Officer.**—If evidence otherwise confessional in character is admissible under Section 27 of the Indian Evidence Act, it is obligatory upon the Investigating Officer to state and record who gave the information; when he is dealing with more than one accused, what words were used by him so that a recovery pursuant to the information received may be connected to the person giving the information so as to provide incriminating evidence against that person, *Mohd. Abdul Hafeez* v. *State of A.P.*, (1983) 1 SCC 143 : 1983 SCC (Cri) 139.

▸ **Disclosure by multiple accused persons.**—Where there are several accused persons and several recovery dates, relationship between accused persons as well as process of arrest must be examined prior to examining conditions for applicability of Section 27, *Mukesh* v. *State (NCT of Delhi)*, (2017) 6 SCC 1.

▸ **"Fast discovered" as envisaged under.**—It embraces the place from which object was produced and knowledge of accused as to it, but information given must relate distinctly to that effect. Hence, the accused herein simply denying their role without proper explanation as to the knowledge about the incriminating material recovered on the basis of their statements in police custody, would justify the presumption drawn by the courts below as to the involvement of the accused in the crime, *Pawan Kumar* v. *State of U.P.*, (2015) 7 SCC 148.

▸ **"Fact" discovered pursuant to disclosure, Scope of.**—Facts discovered pursuant to disclosure made by accused need not be self-probatory and word "fact" contemplated by Section 27 is not limited to "actual physical material object", *Charandas Swami* v. *State of Gujarat*, (2017) 7 SCC 177.

▸ **Joint/Simultaneous/Similar disclosures**.—Joint/Simultaneous/Similar disclosures leading to discovery of same fact(s) are not inadmissible under Section 27, as there can always be more than one accused. A joint or simultaneous disclosure is a myth, because two or more accused persons would not have uttered informatory words in chorus. When two persons in custody are interrogated separately and simultaneously and both of them furnish similar information leading to discovery of fact which was reduced into writing, such disclosures by two or more persons in police custody do not go out of the purview of Section 27 altogether. What is relevant is, when information is given by one accused after other without any break, almost simultaneously (but separately), and such information is followed up by pointing out of material things by both of accused, then there is no good reason to eschew such evidence from regime of Section 27, and would be admissible against all such accused. Whether that information is credible is a matter of evaluation of evidence, *Kishore Bhadke* v. *State of Maharashtra*, (2017) 3 SCC 760

▸ **Power of arrest**.—Power of arrest under Section 41 CrPC is not governed by Section 27 of Evidence Act, 1872. Section 27 of Evidence Act may be invoked only if arrest is otherwise permissible. If exercise of power of arrest is not otherwise permissible or warranted, factum of admissibility of confession under Section 27 of Evidence Act cannot facilitate such exercise, *Ramdev Food Products (P) Ltd.* v. *State of Gujarat*, (2015) 6 SCC 439.

▸ **Recovery of weapons**.—Relevant facts discovered on basis of common memorandum of recovery prepared on basis of disclosures made by different accused, held, admissible, *Mahendran* v. *State of T.N.*, (2019) 5 SCC 67.

▸ **Proof of recovery of incriminating evidence**.—It is fairly well settled that the evidence of the investigating officer can be relied upon to prove the recovery even when the panch witnesses turned hostile, *Mallikarjun* v. *State of Karnataka*, (2019) 8 SCC 359.

▸ **Recovery evidence**.—Principles summarized regarding nature of Section 27, scope of admissibility under Section 27 and duty of prosecution and court in the matter, *Jafarudheen* v. *State of Kerala*, (2022) 8 SCC 440.

28. Confession made after removal of impression caused by inducement, threat or promise, relevant.—If such a confession as is referred to in Section 24 is made after the impression caused by any such inducement, threat or promise has, in the opinion of the Court, been fully removed, it is relevant.

29. Confession otherwise relevant not to become irrelevant because of promise of secrecy, etc.—If such a confession is otherwise relevant, it does not become irrelevant merely because it was made under a promise of secrecy, or in consequence of a deception practised on the accused person for the purpose of obtaining it, or when he was drunk, or because it was made in answer to questions which he need not have answered, whatever may have been the form of those questions, or because he was not warned that he was not bound to make such confession, and that evidence of it might be given against him.

30. Consideration of proved confession affecting person making it and others jointly under trial for same offence.—When more persons than one are being tried jointly for the same offence, and a confession made by one of such persons affecting himself and some other of such persons is proved, the Court may

take into consideration such confession as against such other person as well as against the person who makes such confession.

[38][*Explanation.*—"Offence" as used in this section, includes the abetment of, or attempt to commit, the offence.[39]]

Illustrations

(*a*) *A* and *B* are jointly tried for the murder of *C*. It is proved that *A* said—"*B* and I murdered *C*". The Court may consider the effect of this confession as against *B*.

(*b*) *A* is on his trial for the murder of *C*. There is evidence to show that *C* was murdered by *A* and *B*, and that *B* said—"*A* and I murdered *C*".

This statement may not be taken into consideration by the Court against *A*, as *B* is not being jointly tried.

CASE LAW ▸ Interpretation.—Section 30 of the Indian Evidence Act envisages that when more than one persons are being tried jointly for the same offence and a confession made by one of such persons if found to affect the maker and some other of such persons and stands sufficiently proved, the court can take into consideration such confession as against such other person as well as against the person who made such confession. This is what exactly seems to have been done by the learned trial judge, *Govt. of NCT of Delhi* v. *Jaspal Singh*, (2003) 10 SCC 586.

▸ **Confession of persons not co-accused.**—A confessional statement is relevant only and only if the author of confessional statement himself is an accused in a case where the confessional statement is being proved. For such admissibility it is imperative that the person making the confession besides implicating himself, also implicates others who are being jointly tried with him. In that situation alone is, such a confessional statement relevant even against the others who are accused/implicated. Hence, where authors of confessional statements are arrayed as the accused in a particular case confessional statements made by them are inadmissible as confessional statements, *State of Maharashtra* v. *Kamal Ahmed Mohammed Vakil Ansari*, (2013) 12 SCC 17 : (2013) 4 SCC (Cri) 202.

▸ **Confession of co-accused.**—Although confession of co-accused is not substantive evidence, it can be relied on if it is voluntary and properly recorded and other evidence sufficiently supports the prosecution case and if the confession has no non-corroborative factor and no serious contradictions, *Mohd. Jamiludin Nasir* v. *State of W.B.*, (2014) 7 SCC 443 : (2014) 3 SCC (Cri) 230.

As a result of provisions contained in Section 30, confession has no doubt to be regarded as amounting to evidence in a general way, because whatever is considered by court is evidence; circumstances which are considered by court as well as probabilities do amount to evidence in that generic sense. Thus, though confession may be regarded as evidence in that generic sense because of provisions of Section 30, fact remains that it is not evidence as defined by Section 3. Result, therefore is, that in dealing with a case against an accused person, court cannot start with confession of a co-accused person; it must begin with other evidence adduced by prosecution and after it has formed its opinion with regard to quality and effect of said evidence, then it is permissible to turn to confession in order to receive assurance to the conclusion of guilt which the judicial mind is about to reach on the said other evidence. Law so laid down has always been followed except in cases where there is a specific provision in law making such confession of a co-accused admissible against another accused, *Surinder Kumar Khanna* v. *Directorate of Revenue Intelligence*, (2018) 8 SCC 271.

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38. *Ins.* by Act 3 of 1891, S. 4.
39. *Cf.* the Indian Penal Code (Act 45 of 1860), Explanation 4 to Section 108.

▸ **Confession recorded in custody.**—A confession, recorded when accused is in custody, even when admissible, is a weak piece of evidence and there must be some corroborative evidence. Moreover, evidence of co-accused is also a very weak type of evidence which needs to be corroborated by some other evidence. No such corroborative evidence has been led in this case. Even if confession is admissible, court has to be satisfied that it is a voluntary statement, free from any pressure and also that accused was apprised of his rights before recording the confession. In this case, no such material has been brought on the record, hence, conviction reversed, *Mohd. Fasrin* v. *State*, (2019) 8 SCC 811.

31. Admissions not conclusive proof, but may estop.—Admissions are not conclusive proof of the matters admitted but they may operate as estoppels under the provisions hereinafter contained.

Statements by Persons who cannot be called as Witnesses

32. Cases in which statement of relevant fact by person who is dead or cannot be found, etc., is relevant.—Statements, written or verbal, of relevant facts made by a person who is dead, or who cannot be found, or who has become incapable of giving evidence, or whose attendance cannot be procured without an amount of delay or expense which under the circumstances of the case appears to the Court unreasonable, are themselves relevant facts in the following cases:—

(1) **When it relates to cause of death.**—When the statement is made by a person as to the cause of his death, or as to any of the circumstances of the transaction which resulted in his death, in cases in which the cause of that person's death comes into question.

Such statements are relevant whether the person who made them was or was not, at the time when they were made, under expectation of death, and whatever may be the nature of the proceeding in which the cause of his death comes into question.

(2) **Or is made in course of business.**—When the statement was made by such person in the ordinary course of business, and in particular when it consists of any entry or memorandum made by him in books kept in the ordinary course of business, or in the discharge of professional duty; or of an acknowledgment written or signed by him of the receipt of money, goods, securities or property of any kind; or of a document used in commerce written or signed by him; or of the date of a letter or other document usually dated, written or signed by him.

(3) **Or against interest of maker.**—When the statement is against the pecuniary or proprietary interest of the person making it, or when, if true, it would expose him or would have exposed him to a criminal prosecution or to a suit for damages.

(4) **Or gives opinion as to public right or custom, or matters of general interest.**—When the statement gives the opinion of any such person, as to the existence of any public right or custom or matter of public or general interest, of the existence of which, if it existed, he would have been likely to be aware, and when such statement was made before any controversy as to such right, custom or matter had arisen.

(5) **Or relates to existence of relationship.**—When the statement relates to the existence of any relationship [40][by blood, marriage or adoption] between persons as to whose relationship [41][by blood, marriage or adoption] the person making the statement had special means of knowledge, and when the statement was made before the question in dispute was raised.

(6) **Or is made in will or deed relating to family affairs.**—When the statement relates to the existence of any relationship [42][by blood, marriage or adoption] between persons deceased, and is made in any will or deed relating to the affairs of the family to which any such deceased person belonged, or in any family pedigree, or upon any tombstone, family portrait or other thing on which such statements are usually made, and when such statement was made before the question in dispute was raised.

(7) **Or in document relating to transaction mentioned in Section 13, clause (*a*).**—When the statement is contained in any deed, will or other document which relates to any such transaction as is mentioned in Section 13, clause (*a*).

(8) **Or is made by several persons and expresses feelings relevant to matter in question.**—When the statement was made by a number of persons, and expressed feelings or impressions on their part relevant to the matter in question.

Illustrations

(*a*) The question is, whether *A* was murdered by *B*; or

A dies of injuries received in a transaction in the course of which she was ravished. The question is, whether she was ravished by *B*; or

The question is, whether *A* was killed by *B* under such circumstances that a suit would lie against *B* by *A*'s widow.

Statements made by *A* as to the cause of his or her death, referring respectively to the murder, the rape and the actionable wrong under consideration, are relevant facts.

(*b*) The question is as to the date of *A*'s birth.

An entry in the diary of a deceased surgeon regularly kept in the course of business, stating that, on a given day he attended *A*'s mother and delivered her of a son, is a relevant fact.

(*c*) The question is, whether *A* was in Calcutta on a given day.

A statement in the diary of a deceased solicitor, regularly kept in the course of business, that on a given day the solicitor attended *A* at a place mentioned, in Calcutta, for the purpose of conferring with him upon specified business, is a relevant fact.

(*d*) The question is, whether a ship sailed from Bombay harbour on a given day.

A letter written by a deceased member of a merchant's firm, by which she was chartered to their correspondents in London, to whom the cargo was consigned, stating that the ship sailed on a given day from Bombay harbour, is a relevant fact.

(*e*) The question is, whether rent was paid to *A* for certain land.

A letter from *A*'s deceased agent to *A*, saying that he had received the rent on *A*'s account and held it at *A*'s orders, is a relevant fact.

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40. *Ins.* by Act 18 of 1872, S. 2 (w.e.f. 29-8-1872).
41. *Ins.* by Act 18 of 1872, S. 2 (w.e.f. 29-8-1872).
42. *Ins.* by Act 18 of 1872, S. 2 (w.e.f. 29-8-1872).

(*f*) The question is, whether *A* and *B* were legally married.

The statement of a deceased clergyman that he married them under such circumstances that the celebration would be a crime, is relevant.

(*g*) The question is, whether *A*, a person who cannot be found, wrote a letter on a certain day. The fact that a letter written by him is dated on that day, is relevant.

(*h*) The question is, what was the cause of the wreck of a ship.

A protest made by the Captain, whose attendance cannot be procured, is a relevant fact.

(*i*) The question is, whether a given road is a public way.

A statement by *A*, a deceased headman of the village, that the road was public, is a relevant fact.

(*j*) The question is, what was the price of grain on a certain day in a particular market. *A* statement of the price, made by a deceased banya in the ordinary course of his business, is a relevant fact.

(*k*) The question is, whether *A*, who is dead, was the father of *B*.

A statement by *A* that *B* was his son, is a relevant fact.

(*l*) The question is, what was the date of birth of *A*.

A letter from *A*'s deceased father to a friend, announcing the birth of *A* on a given day, is a relevant fact.

(*m*) The question is, whether, and when, *A* and *B* were married.

An entry in a memorandum-book by *C*, the deceased father of *B*, of his daughter's marriage with *A* on a given date, is a relevant fact.

(*n*) *A* sues *B* for a libel expressed in a painted caricature exposed in a shop window. The question is as to the similarity of the caricature and its libellous character. The remarks of a crowd of spectators on these points may be proved.

CASE LAW ▸ Nature.—Section 32(1) is not confined to homicide alone but includes suicide also. Hence, all the circumstances which may be relevant to prove a case of homicide would be equally relevant to prove a case of suicide, *Sharad Birdhichand Sarda* v. *State of Maharashtra*, (1984) 4 SCC 116 : 1984 SCC (Cri) 486.

▸ **Ingredients.**—The statement may be made before the cause of death has arisen, or before the deceased has any reason to anticipate being killed. But the necessary condition of admissibility under the section is that the circumstances must have some proximate relation to the actual occurrence. However, the test of proximity cannot be too literally construed and practically reduced to a cut-and-dried formula of universal application so as to be confined in a straitjacket. Distance of time would depend or vary with the circumstances of each case. Where death is a logical culmination of a long and continuous process, the statement regarding each step directly connected with the death would be admissible because the entire statement would have to be read as an organic whole not torn from the context, *Sharad Birdhichand Sarda* v. *State of Maharashtra*, (1984) 4 SCC 116 : 1984 SCC (Cri) 486.

▸ **Dying declaration.**—Law does not prescribe any format for recording dying declaration; and secondly, it also does not prescribe any specific authority to record it unless any special law or rule is enacted to that effect. On the other hand, perfect working and neatly structured dying declaration at times brings about an adverse impression and creates suspicion in the mind of court, since dying declaration need not be drawn with mathematical precision. All that law requires is that declarant should be in a fit state of mind and be able to recollect the situation resulting in the available state of affairs in relation to the incident and the court should be satisfied that reliance ought to be placed thereon rather than distrust, *Shama* v. *State of Haryana*, (2017) 11 SCC 535.

"Dying declaration" is the last statement made by a person at a stage when he is in serious apprehension of his death and expects no chances of his survival. At such time, it is expected that a person will speak the truth and only the truth. Normally in such situations, courts attach intrinsic value of truthfulness to such statement—Once such statement has been made voluntarily, it is reliable and is not an attempt by deceased to cover up truth or falsely implicate a person, then courts can safely rely on such dying declaration and it can form the basis of conviction—More so, where version given by deceased as dying declaration is supported and corroborated by other prosecution evidence, there is no reason for courts to doubt truthfulness of such dying declaration, *Shudhakar* v. *State of M.P.*, (2012) 7 SCC 569 : (2012) 3 SCC (Cri) 430.

Principle underlying Section 32 is *nemo moriturus praesumitur mentire* i.e. man will not meet his maker with a lie in his mouth. Dying declaration is one of the exceptions to the rule of hearsay. There is no absolute rule of law "that the dying declaration cannot form the sole basis of conviction unless it is corroborated". Rule requiring corroboration is merely a rule of prudence. Moreover, if person making dying declaration survives, then such statement would not be admissible under Section 32(1). Rather such statements may be admissible under Section 157, *Suresh Chandra Jana* v. *State of W.B.*, (2017) 16 SCC 466.

When dying declaration can form sole basis of conviction, principles summarised. In these cases caution must be adopted by court, *Madan* v. *State of Maharashtra*, (2019) 13 SCC 464.

▸ **Oral dying declaration.**—The oral dying declaration made by the deceased ought to be treated with care and caution since the maker of the statement cannot be subjected to any cross-examination, *Arun Bhanudas Pawar* v. *State of Maharashtra*, (2008) 11 SCC 232 : 2008 Cri LJ 1798.

▸ **Dying declaration — Conviction on basis of.**—Dying declaration is undoubtedly admissible under Section 32(1) of Evidence Act, but due care has to be taken by persons who record statement. Dying declaration is an exception to hearsay rule when it is made by declarant at the time when it is believed that declarant's death was near or certain. It may be sole evidence and hence it becomes necessary to accept the same to meet the ends of justice. There is no requirement as to corroboration of dying declaration before it is acted upon, but court has to carefully scrutinize the evidence while evaluating a dying declaration since it is not a statement made on oath and is not tested on the touchstone of cross-examination, *Bhagwan Tukaram Dange* v. *State of Maharashtra*, (2014) 4 SCC 270.

▸ **Dying declaration authenticity of.**—Once statement is found to be genuine, voluntary, consistent, credible and untutored, it assumes great probative value and can form sole basis of conviction without requiring any corroboration. There may also be other statements of deceased, written or verbal, such as in form of suicidal note, letters, communications, sign or signal, etc. But dying declaration being made in "contemplation of death", enjoys higher level of credence vis-à-vis any other statement. However, no fixed time-limit can be laid down to confine "contemplation" within which death of maker of statement must happen so as to constitute dying declaration. State of mind of maker is essential for discerning mental fitness of maker of dying declaration and whether maker actually could have contemplated death, *Ramakant Mishra* v. *State of U.P.*, (2015) 8 SCC 299.

▸ **Dying declaration — Reliability.**—A valid dying declaration may be made without obtaining a certificate of fitness of declarant by a medical officer, *Gulzari Lal* v. *State of Haryana*, (2016) 4 SCC 583.

Dying declaration is truthful when after suffering 90% burns but still retaining capacity to make detailed dying declaration, to sign it and affix her thumb impression to it, *Surinder Kumar* v. *State of Punjab*, (2012) 12 SCC 120.

The primary effort of the court is to find out whether the dying declaration is true. If it is, no question of corroboration arises. It is only if the circumstances surrounding the dying declaration are not clear or convincing that the court may, for its assurance, look for corroboration to the dying declaration, *State of U.P.* v. *Ram Sagar Yadav*, (1985) 1 SCC 552, 557 : 1985 SCC (Cri) 127.

Reliability of dying declaration in absence of doctor's certification is not fatal if person recording it was satisfied that the deceased was in a fit state of mind, *Sher Singh* v. *State of Punjab*, (2008) 4 SCC 265 : (2008) 2 SCC (Cri) 783.

There is no reason why a dying declaration which is otherwise found to be true, voluntary and correct should be rejected only because the deceased could not affix his signatures or thumb impressions on the dying declaration, *Dayaram* v. *State of M.P.*, (2020) 13 SCC 382.

▸ **Recording of dying declaration.**—Presence of Judicial or Executive Magistrate to record it is not compulsory. It is only as a rule of prudence, and if so permitted by facts and circumstances that, dying declaration may preferably be recorded by Judicial or Executive Magistrate so as to muster additional strength to prosecution case. Legal position why dying declaration ought preferably to be recorded by Judicial or Executive Magistrate, stated, *Jayamma* v. *State of Karnataka*, (2021) 6 SCC 213.

▸ **Multiple dying declarations which are divergent.**—When there are multiple dying declarations, and in the earlier dying declaration, accused is not sought to be roped in but in the later dying declaration, a somersault is made by the deceased, the case must be decided on the facts of each case. The court will not be relived of its duty to carefully examine the entirety of materials as also the circumstances surrounding the making of different dying declarations. It is the compatibility with the remaining evidence/ circumstantial evidence that will be vital in determining which dying declaration(s) are to be believed, as in present case. If the court finds that the incriminatory dying declaration brings out the truthful position in conjunction with capacity of deceased to make such declaration, and voluntariness with which it was made is established, ruling out tutoring and prompting; and the other evidence support the contents of the incriminatory dying declaration, it can be acted upon. Equally, circumstances which render earlier dying declaration, worthy or unworthy of acceptance, can be considered. However it is equally true that when there are divergent dying declarations it is not the law that the court must invariably prefer the statement which is incriminatory and must reject the statement which does not implicate the accused. The real point is to ascertain which one(s) contain the truth, *Jagbir Singh* v. *State (NCT of Delhi)*, (2019) 8 SCC 779.

▸ **Recording of dying declaration and its admissibility and reliability.**—Merely because of 100% burn injuries, it cannot be said that the victim will always be incapable to make a statement which could be acted upon as dying declaration. The fitness of the maker of the declaration and the admissibility and reliability of the dying declaration, have all to be determined in the facts and circumstances of each case, even one involving 100% burn injuries, *Purshottam Chopra* v. *State (NCT of Delhi)*, (2020) 11 SCC 489.

▸ **Duty of court in case of Multiple dying declarations.**—Each dying declaration has to be considered independently on its own merit as to its evidentiary value and one cannot be rejected because of contents of the other. Court has to consider each of them in its correct perspective and satisfy itself as to which one of them or which of them reflects true state of affairs, and accordingly adjudicate the matter, *Nagabhushan* v. *State of Karnataka*, (2021) 5 SCC 222.

▸ **Two/multiple declarations — Duty of court.**—Merely because there are two/multiple dying declarations, all the dying declarations are not to be rejected. In such situation, case must be decided on the

facts of each case and the court will not be relieved of its duty to carefully examine the entirety of the material on record as also the circumstances surrounding the making of the different dying declarations, *State of U.P. v. Veerpal*, (2022) 4 SCC 741.

33. Relevancy of certain evidence for proving, in subsequent proceeding, the truth of facts therein stated.—Evidence given by a witness in a judicial proceeding, or before any person authorised by law to take it, is relevant for the purpose of proving, in a subsequent judicial proceeding, or in a later stage of the same judicial proceeding, the truth of the facts which it states, when the witness is dead or cannot be found, or is incapable of giving evidence, or is kept out of the way by the adverse party, or if his presence cannot be obtained without an amount of delay or expense which, under the circumstances of the case, the Court considers unreasonable:

Provided—

that the proceeding was between the same parties or their representatives in interest;

that the adverse party in the first proceeding had the right and opportunity to cross-examine;

that the questions in issue were substantially the same in the first as in the second proceeding.

Explanation.—A criminal trial or inquiry shall be deemed to be a proceeding between the prosecutor and the accused within the meaning of this section.

Statements made under special circumstances

34. [43]**[Entries in books of account, including those maintained in an electronic form] when relevant.**—[44][Entries in the books of account, including those maintained in an electronic form], regularly kept in the course of business, are relevant whenever they refer to a matter into which the Court has to inquire, but such statements shall not alone be sufficient evidence to charge any person with liability.

Illustration

A sues *B* for Rs 1000 and shows entries in his account books showing *B* to be indebted to him to this amount. The entries are relevant, but are not sufficient, without other evidence to prove the debt.

35. Relevancy of entry in public record [45]**[or an electronic record], made in performance of duty.**—An entry in any public or other official book, register or record [46][or an electronic record], stating a fact in issue or relevant fact, and made by a public servant in the discharge of his official duty, or by any other person in performance of a duty specially enjoined by the law of the country in which such book, register or record [47][or an electronic record] is kept, is itself a relevant fact.

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43. *Subs.* for "Entries in the books of account" by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
44. *Subs.* for "Entries in the books of account" by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
45. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
46. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
47. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).

CASE LAW ▸ Conditions under Section 35.—Section 35 of the Evidence Act requires the following conditions to be fulfilled before a document can be admissible under it:

(1) the document must be in the nature of an entry in any public or other official book, register or record;

(2) it must state a fact in issue or a relevant fact; and

(3) the entry must be made by a public servant in the discharge of his official duties or in performance of his duties especially enjoined by the law of the country in which the relevant entry is kept, *State of Bihar* v. *Radha Krishna Singh*, (1983) 3 SCC 118, 136, 137. (See also *Babloo Pasi* v. *State of Jharkhand*, (2008) 13 SCC 133.)

▸ **Applicability in civil and criminal proceedings.**—For the purposes of this section same standard has to be applied both in civil as well as in criminal proceedings, *Ram Suresh Singh* v. *Prabhat Singh*, (2009) 6 SCC 681.

▸ **Revenue Records.**—Presumption of truth is attached to revenue record. However, this presumption is rebuttable presumption. It is the party who alleges that revenue entries are wrong who is required to lead evidence to rebut this presumption, *Vishwasrao Satwarao Naik* v. *State of Maharashtra*, (2018) 6 SCC 580.

Presumption of correctness of record-of-rights can apply only to genuine, but not to forged or fraudulent entries, *Partap Singh* v. *Shiv Ram*, (2020) 11 SCC 242.

▸ **Proof of parentage.**—Register maintained by statutory authorities, mentioning names, of plaintiff's parents, held, being public document, is a fact relevant for determining parentage of plaintiff, *Mohammed Salim* v. *Shamsudeen*, (2019) 4 SCC 130.

▸ **Proof of age.**—School leaving certificate/transfer certificate, on its own is not sufficient for proving date of birth, in the absence of examination of the official in-charge of school who recorded the date of birth in the school register. Proving of the records of School is necessary, *C. Doddanarayana Reddy* v. *C. Jayarama Reddy*, (2020) 4 SCC 659.

36. Relevancy of statements in maps, charts and plans.—Statements of facts in issue or relevant facts, made in published maps or charts generally offered for public sale, or in maps or plans made under the authority of [48][the Central Government or any [49][State] Government], as to matters usually represented or stated in such maps, charts or plans, are themselves relevant facts.

37. Relevancy of statement as to fact of public nature, contained in certain Acts or notifications.—When the Court has to form an opinion as to the existence of any fact of a public nature, any statement of it, made in a recital contained in any Act of Parliament [50][of the United Kingdom] or in any [51][Central Act, Provincial

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48. *Subs.* for "any Govt. in British India" by the A.O. 1948 (w.e.f. 26-1-1950).
49. *Subs.* for "Provincial" by the A.O. 1950 (w.e.f. 26-1-1950).
50. *Ins.* by the A.O. 1950 (w.e.f. 26-1-1950).
51. The original words were "Act of the Governor General of India in Council, or of the Governors in Council of Madras or Bombay, or of the Lieutenant-Governor in Council of Bengal or in a notification of the Govt. appearing in the Gazette of India, or in the Gazette of any L.G. or in any printed paper purporting to be the London Gazette or the Govt. Gazette of any colony or possession of the Queen, is a relevant fact". This was amended first by the Repealing and Amending Act, 1914 (10 of 1914), and then by the A.O. 1937, the A.O. 1948 and the A.O. 1950 to read as above.

Act or [52][a State Act] or in a Government notification or notification by the Crown Representative appearing in the Official Gazette or in any printed paper purporting to be the London Gazette or the Government Gazette of any Dominion, colony or possession of His Majesty is a relevant fact].

[53][* * *]

38. Relevancy of statements as to any law contained in law books.—When the Court has to form an opinion as to a law of any country, any statement of such law contained in a book purporting to be printed or published under the authority of the Government of such country and to contain any such law, and any report of a ruling of the Courts of such country contained in a book purporting to be a report of such rulings, is relevant.

How much of a statement is to be proved

[54][**39. What evidence to be given when statement forms part of a conversation, document, electronic record, book or series of letters or papers.**—When any statement of which evidence is given forms part of a longer statement, or of a conversation or part of an isolated document, or is contained in a document which forms part of a book, or is contained in part of electronic record or of a connected series of letters or papers, evidence shall be given of so much and no more of the statement, conversation, document, electronic record, book or series of letters or papers as the Court considers necessary in that particular case to the full understanding of the nature and effect of the statement, and of the circumstances under which it was made.]

Judgments of courts of justice when relevant

40. Previous judgments relevant to bar a second suit or trial.—The existence of any judgment, order or decree which by law prevents any Court from taking cognizance of a suit or holding a trial, is a relevant fact when the question is whether such Court ought to take cognizance of such suit or to hold such trial.

41. Relevancy of certain judgments in probate, etc., jurisdiction.—A final judgment, order or decree of a competent Court, in the exercise of probate, matrimonial, admiralty or insolvency jurisdiction, which confers upon or takes away from any person any legal character, or which declares any person to be entitled to any such character, or to be entitled to any specific thing, not as against any specified person but absolutely, is relevant when the existence of any such legal character, or the title of any such person to any such thing, is relevant.

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52. *Subs.* by Act 3 of 1951, S. 3 and Sch., for "an Act of the Legislature of a Part A State or a Part C State".
53. *Omitted* by Act 10 of 1914, S. 3 and Sch. II (w.e.f. 17-3-1914). Earlier, *inserted* by Act 5 of 1899, S. 2 (w.e.f. 10-2-1899).
54. *Subs.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000). Prior to substitution it read as:
"39. *What evidence to be given when statement forms part of a conversation, document, book or series of letters or papers.*—When any statement of which evidence is given forms part of a longer statement, or of a conversation or part of an isolated document, or is contained in a document which forms part of a book, or of a connected series of letters or papers, evidence shall be given of so much and no more of the statement, conversation, document, book or series of letters or papers as the Court considers necessary in that particular case to the full understanding of the nature and effect of the statement, and of the circumstances under which it was made."

Such judgment, order or decree is conclusive proof—

that any legal character which it confers accrued at the time when such judgment, order or decree came into operation;

that any legal character, to which it declares any such person to be entitled, accrued to that person at the time when such judgment, [55][order or decree] declares it to have accrued to that person;

that any legal character which it takes away from any such person ceased at the time from which such judgment, [56][order or decree] declared that it had ceased or should cease;

and that anything to which it declares any person to be so entitled was the property of that person at the time from which such judgment, [57][order or decree] declares that it had been or should be his property.

CASE LAW ▸ Judgment in rem.—A judgment rendered by a probate court is a judgment in rem. It is binding on all courts and authorities. Being a judgment in rem it will have effect over other judgments. A judgment in rem indisputably is conclusive in a criminal as well as in a civil proceeding. But, under the English law, it is a matter of some doubt as to whether a judgment in rem is conclusive in a criminal proceeding or not, *Syed Askari Hadi Ali Augustine Imam* v. *State (Delhi Admn.)*, (2009) 5 SCC 528.

42. Relevancy and effect of judgments, orders or decrees, other than those mentioned in Section 41.—Judgments, orders or decrees other than those mentioned in Section 41, are relevant if they relate to matters of a public nature relevant to the enquiry; but such judgments, orders or decrees are not conclusive proof of that which they state.

Illustration

A sues *B* for trespass on his land. *B* alleges the existence of a public right of way over the land, which *A* denies.

The existence of a decree in favour of the defendant, in a suit by *A* against *C* for a trespass on the same land, in which *C* alleged the existence of the same right of way, is relevant, but it is not conclusive proof that the right of way exists.

43. Judgments, etc., other than those mentioned in Sections 40 to 42, when relevant.—Judgments, orders or decrees, other than those mentioned in Sections 40, 41 and 42, are irrelevant, unless the existence of such judgment, order or decree, is a fact in issue, or is relevant under some other provision of this Act.

Illustrations

(*a*) *A* and *B* separately sue *C* for a libel which reflects upon each of them. *C* in each case says that the matter alleged to be libellous is true, and the circumstances are such that it is probably true in each case, or in neither.

A obtains a decree against *C* for damages on the ground that *C* failed to make out his justification. The fact is irrelevant as between *B* and *C*.

(*b*) *A* prosecutes *B* for adultery with *C*, *A*'s wife.

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55. *Ins.* by Act 18 of 1872, S. 3 (w.e.f. 29-8-1872).
56. *Ins.* by Act 18 of 1872, S. 3 (w.e.f. 29-8-1872).
57. *Ins.* by Act 18 of 1872, S. 3 (w.e.f. 29-8-1872).

B denies that *C* is *A*'s wife, but the Court convicts *B* of adultery.

Afterwards, *C* is prosecuted for bigamy in marrying *B* during *A*'s lifetime. *C* says that she never was *A*'s wife.

The judgment against *B* is irrelevant as against *C*.

(*c*) *A* prosecutes *B* for stealing a cow from him. *B* is convicted.

A, afterwards, sues *C* for the cow, which *B* had sold to him before his conviction. As between *A* and *C*, the judgment against *B* is irrelevant.

(*d*) *A* has obtained a decree for the possession of land against *B*. *C*, *B*'s son, murders *A* in consequence.

The existence of the judgment is relevant, as showing motive for a crime.

[58][(*e*) *A* is charged with theft and with having been previously convicted of theft. The previous conviction is relevant, as a fact-in-issue.

(*f*) *A* is tried for the murder of *B*. The fact that *B* prosecuted *A* for libel and that *A* was convicted and sentenced is relevant under Section 8 as showing the motive for the fact-in-issue.]

44. Fraud or collusion in obtaining judgment, or incompetency of Court, may be proved.—Any party to a suit or other proceeding may show that any judgment, order or decree which is relevant under Section 40, 41 or 42, and which has been proved by the adverse party, was delivered by a Court not competent to deliver it, or was obtained by fraud or collusion.

CASE LAW ▸ Setting aside of Judgment which has attained finality.—Judgment of competent court cannot be ignored by another court in collateral proceeding on mere suspicion of fraud or collusion. There must be direct challenge to alleged proceedings of competent court on ground of fraud or collusion by instituting suit or other appropriate legal proceedings and the fraud/collusion must be proved by party concerned, *Embassy Hotels (P) Ltd.* v. *Gajaraj & Co.*, (2015) 14 SCC 316.

▸ **Fraud.**—Fraud vitiates all actions taken consequent thereto and as such judgment based on fraud is liable to be set aside. However, before setting aside judgment there has to be definite conclusion that action was fraudulent since every wrong action is not fraudulent action, *Chandro Devi* v. *Union of India*, (2017) 9 SCC 469 : (2017) 2 SCC (L&S) 893.

Opinions of third persons, when relevant

45. Opinions of experts.—When the Court has to form an opinion upon a point of foreign law, or of science, or art, or as to identity of handwriting [59][or finger impressions], the opinions upon that point of persons specially skilled in such foreign law, science or art, [60][or in questions as to identity of handwriting] [61][or finger impressions] are relevant facts.

Such persons are called experts.

Illustrations

(*a*) The question is, whether the death of A was caused by poison.

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58. *Ins.* by Act 3 of 1891, S. 5.
59. *Ins.* by Act 5 of 1899, S. 3 (w.e.f. 10-2-1899). For discussion in Council as to whether "finger impressions" includes "thumb impression," *see* Gazette of India, 1898, Part VI, p. 24
60. *Ins.* by Act 18 of 1872, S. 4 (w.e.f. 29-8-1872).
61. *Ins.* by Act 5 of 1899, S. 3 (w.e.f. 10-2-1899). For discussion in Council as to whether "finger impressions" includes "thumb impression," *see* Gazette of India, 1898, Part VI, p. 24

The opinions of experts as to the symptoms produced by the poison by which A is supposed to have died, are relevant.

(*b*) The question is, whether A, at the time of doing a certain act, was, by reason of unsoundness of mind, incapable of knowing the nature of the act, or that he was doing what was either wrong or contrary to law.

The opinions of experts upon the question whether the symptoms exhibited by A commonly show unsoundness of mind, and whether such unsoundness of mind usually renders persons incapable of knowing the nature of the acts which they do, or of knowing that what they do is either wrong or contrary to law, are relevant.

(*c*) The question is, whether a certain document was written by A. Another document is produced which is proved or admitted to have been written by A.

The opinions of experts on the question whether the two documents were written by the same person or by different persons, are relevant.

CASE LAW ▸ Expert evidence.—An expert is not a witness of fact and his evidence is really of an advisory character and his duty is to furnish court with scientific test criteria to test accuracy of conclusions. Based on such expert opinion and appreciating facts of each case, court must give its independent judgment. Court should not subjugate its own judgment to that of expert or delegate its authority to third party but ought to access evidence of expert like any other evidence, *State of Karnataka* v. *J. Jayalalitha*, (2017) 6 SCC 263.

It is the duty of an expert witness to assist the court effectively by furnishing it with relevant report based on his expertise along with his reasons, so that the court may form its independent judgment by assessing such materials and reasons furnished by expert for coming to an appropriate conclusion. Be that as it may, it cannot be forgotten that opinion evidence is advisory in nature, and the court is not bound by the evidence of the experts, *Pattu Rajan* v. *State of T.N.*, (2019) 4 SCC 771.

Evidence of experts is not always conclusive. There is hazard in accepting the opinion of an expert, not because an expert is not reliable as a witness, but because human judgment is fallible. While the science of identification of fingerprints has attained perfection, with practically no risk of an incorrect opinion, the science of identification of handwriting is not so perfect, *Basheera Begam* v. *Mohd. Ibrahim*, (2020) 11 SCC 174.

▸ Appreciation of expert evidence.—The opinion of a handwriting expert given in evidence is no less fallible than any other expert opinion adduced in evidence with the result that such evidence has to be received with great caution. This opinion in evidence may be worthy of acceptance if there is internal or external evidence relating to the writing in question supporting the expert's view. The question in each case falls for determination on the court's appreciation of evidence, *Ram Narain* v. *State of U.P.*, (1973) 2 SCC 86 : 1973 SCC (Cri) 752.

Where ocular evidence is cogent and credible, medical evidence to the contrary cannot corrode the evidentiary value of the former, *Ravi Kumar* v. *State of Punjab*, (2005) 9 SCC 315.

Doctor who examines deceased and conducts post-mortem, is the only competent person to opine about nature of injuries and cause of death, *Sahebro Mohan Berad* v. *State of Maharashtra*, (2011) 4 SCC 249 : (2011) 2 SCC (Cri) 201.

When no expert opinion is available to court for assistance then court should seek guidance from authoritative textbook and use its own experience and knowledge. In absence of expert opinion, court should

discharge its duty with or without expert or with or without any other evidence, *Ajay Kumar Parmar* v. *State of Rajasthan*, (2012) 12 SCC 406.

▸ **Expert testimony — Departure from, by court.**—Courts give due regard to expert testimony but are not bound by it. Report when read in conjunction with other evidence on record, renders it unacceptable, *Tomaso Bruno* v. *State of U.P.*, (2015) 7 SCC 178.

▸ **Expert — Impartial opinion.**—Government scientific expert stands on different footing from expert called by a party in support of its stand, *Prem Sagar Manocha* v. *State (NCT of Delhi)*, (2016) 4 SCC 571.

▸ **Expert opinion vis-a-vis testimony of facts.**—Being based on his knowledge, expert opinion may be subject to change on coming across any authentic material subsequently. Opinion of expert witness is different from testimony of witness of fact. Duty of expert is to render his opinion along with reason and relevant material. It would then be for court to see correctness of opinion and reach its conclusion accordingly, *Prem Sagar Manocha* v. *State (NCT of Delhi)*, (2016) 4 SCC 571.

▸ **Expert witness.**—Court must be cautious while evaluating expert evidence, which is a weak type of evidence and not substantive in nature. It may not be safe to solely rely upon such evidence, and court may seek independent and reliable corroboration in the facts of a given case, as a general rule of prudence. Generally, mere expert evidence as to a fact is not regarded as conclusive proof of it, *Chennadi Jalapathi Reddy* v. *Baddam Pratapa Reddy*, (2019) 14 SCC 220.

▸ **Handwriting expert.**— Sections 45 and 47 prescribe the method by which signatures can be proved. Under Section 45, the opinion of the handwriting expert is relevant, while under Section 47, the opinion of any person acquainted with the handwriting of a person who is alleged to have signed the document, is admissible. Even assuming that the signature of the person could be legally held to be proved on substantial evidence, the principle which governs the appreciation of such circumstantial evidence cannot be ignored. It is only if the court is satisfied that the circumstantial evidence irresistibly leads to the inference that the person must have signed the document in question that the court can legitimately reach a conclusion, *Baru Ram* v. *Prasanni*, AIR 1959 SC 93.

Sole evidence of a handwriting expert is not normally sufficient for recording a definite finding about the writing being of a certain person or not. A court is competent to compare the disputed writing of a person with others which are admitted or proved to be his writings. It may not be safe for a court to record a finding about a person's writing in a certain document merely on basis of expert comparison, but a court can itself compare the writings in order to appreciate properly the other evidence produced before it in that regard, *S.P.S. Rathore* v. *CBI*, (2017) 5 SCC 817.

▸ **Opinion of handwriting expert.**—Before acting upon opinion of handwriting expert, prudence requires, that court must see that such evidence is corroborated by other evidence either direct or circumstantial evidence, *Padum Kumar* v. *State of U.P.*, (2020) 3 SCC 35.

▸ **Medical negligence.**—Courts not to defer too readily to expert opinion and must duly apply their mind to the reasonableness of the treatment/care given to the patient and/or approach adopted in the circumstances of each case, otherwise medical standards would obviously decline. Director of Hospital, when is not the treating doctor or the referring doctor, not personally liable, even when negligence is confirmed against Hospital. Standard of care which is expected of a medical professional is the treatment which is expected of one with a reasonable degree of skill and knowledge and a medical practitioner would be liable

only where the conduct falls below the standards of a reasonably competent practitioner in the field, *Arun Kumar Manglik* v. *Chirayu Health & Medicare (P) Ltd.*, (2019) 7 SCC 401.

The burden of proof is on complainant to establish medical negligence. The cause of action arises after damage has been caused. The injury caused to victim should be sufficiently proximate to breach of duty by medical practitioner. He would be liable only when his conduct falls below the standards of a reasonably competent practitioner in his field. The applicable principles also explained in detail, *Maharaja Agrasen Hospital* v. *Rishabh Sharma*, (2020) 6 SCC 501.

▸ **Carbon footprint as basis for determination of damages.**—Rejecting the contention that damages should be assessed on the basis of "carbon footprint", held, the courts cannot introduce a new concept of assessing and levying damages unless expert evidence in this behalf is led or there are some well-established principles. However, in a case where expert evidence is led or on the basis of empirical data it is established that by applying the principles of carbon footprint damages can be assessed, court may rely upon such data, *Goel Ganga Developers India (P) Ltd.* v. *Union of India*, (2018) 18 SCC 257.

▸ **Medical evidence vis-à-vis ocular evidence.**—Opinionative evidence of doctor is primarily evidence of opinion and not of fact. It is only a corroborative piece of evidence as to the possibility that the injuries could have been caused in the manner alleged by prosecution. Unless medical evidence rules out such possibility of injury being caused in the manner alleged by prosecution version, testimony of eyewitness cannot be doubted on the ground of its inconsistency with medical evidence, *Mallikarjun* v. *State of Karnataka*, (2019) 8 SCC 359.

[62][**45-A. Opinion of Examiner of Electronic Evidence.**—When in a proceeding, the court has to form an opinion on any matter relating to any information transmitted or stored in any computer resource or any other electronic or digital form, the opinion of the Examiner of Electronic Evidence referred to in Section 79-A of the Information Technology Act, 2000 (21 of 2000), is a relevant fact.

Explanation.—For the purposes of this section, an Examiner of Electronic Evidence shall be an expert.]

46. Facts bearing upon opinions of experts.—Facts, not otherwise relevant, are relevant if they support or are inconsistent with the opinions of experts, when such opinions are relevant.

Illustrations

(*a*) The question is, whether A was poisoned by a certain poison.

The fact that other persons, who were poisoned by that poison, exhibited certain symptoms which experts affirm or deny to be the symptoms of that poison, is relevant.

(*b*) The question is, whether an obstruction to a harbour is caused by a certain sea-wall.

The fact that other harbours similarly situated in other respects, but where there were no such sea-walls, began to be obstructed at about the same time, is relevant.

47. Opinion as to handwriting, when relevant.—When the Court has to form an opinion as to the person by whom any document was written or signed, the opinion of any person acquainted with the handwriting of the person by whom it

62. *Ins.* by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).

is supposed to be written or signed that it was or was not written or signed by that person, is a relevant fact.

Explanation.—A person is said to be acquainted with the handwriting of another person when he has seen that person write, or when he has received documents purporting to be written by that person in answer to documents written by himself or under his authority and addressed to that person, or when, in the ordinary course of business, documents purporting to be written by that person have been habitually submitted to him.

Illustration

The question is, whether a given letter is in the handwriting of *A*, a merchant in London.

B is a merchant in Calcutta, who has written letters addressed to A and received letters purporting to be written by him. *C* is *B*'s clerk, whose duty it was to examine and file *B*'s correspondence. *D* is *B*'s broker, to whom *B* habitually submitted the letters purporting to be written by *A* for the purpose of advising with him thereon.

The opinions of *B*, *C* and *D* on the question whether the letter is in the handwriting of A are relevant, though neither *B*, *C* nor *D* ever saw *A* write.

[63][**47-A. Opinion as to** [64][**electronic signature] when relevant.**—When the Court has to form an opinion as to the [65][electronic signature] of any person, the opinion of the Certifying Authority which has issued the [66][Electronic Signature Certificate] is a relevant fact.]

48. Opinion as to existence of right or custom, when relevant.—When the Court has to form an opinion as to the existence of any general custom or right, the opinions, as to the existence of such custom or right, of persons who would be likely to know of its existence if it existed, are relevant.

Explanation.—The expression "general custom or right" includes customs or rights common to any considerable class of persons.

Illustration

The right of the villagers of a particular village to use the water of a particular well is a general right within the meaning of this section.

49. Opinions as to usages, tenets, etc., when relevant.—When the Court has to form an opinion as to—

the usages and tenets of any body of men or family,

the constitution and government of any religious or charitable foundation, or

the meaning of words or terms used in particular districts or by particular classes of people,

the opinions of persons having special means of knowledge thereon, are relevant facts.

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63. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
64. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
65. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
66. *Subs.* for "Digital Signature Certificate" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).

50. Opinion on relationship, when relevant.—When the Court has to form an opinion as to the relationship of one person to another, the opinion, expressed by conduct, as to the existence of such relationship, of any person who, as a member of the family or otherwise, has special means of knowledge on the subject, is a relevant fact:

Provided that such opinion shall not be sufficient to prove a marriage in proceedings under the Indian Divorce Act (4 of 1869), or in prosecutions under Sections 494, 495, 497 or 498 of the Indian Penal Code (45 of 1860).

Illustrations

(*a*) The question is, whether *A* and *B* were married.

The fact that they were usually received and treated by their friends as husband and wife, is relevant.

(*b*) The question is, whether *A* was the legitimate son of *B*. The fact that *A* was always treated as such by members of the family, is relevant.

51. Grounds of opinion, when relevant.—Whenever the opinion of any living person is relevant, the grounds on which such opinion is based are also relevant.

Illustration

An expert may give an account of experiments performed by him for the purpose of forming his opinion.

Character when relevant

52. In civil cases character to prove conduct imputed, irrelevant.—In civil cases the fact that the character of any person concerned is such as to render probable or improbable any conduct imputed to him is irrelevant, except in so far as such character appears from facts otherwise relevant.

53. In criminal cases, previous good character relevant.—In criminal proceedings, the fact that the person accused is of a good character, is relevant.

[67][**53-A. Evidence of character or previous sexual experience not relevant in certain cases.**—In a prosecution for an offence under Section 354, Section 354-A, Section 354-B, Section 354-C, Section 354-D, Section 376, [68][Section 376-A, Section 376-AB, Section 376-B, Section 376-C, Section 376-D, Section 376-DA, Section 376-DB] or Section 376-E of the Indian Penal Code (45 of 1860) or for attempt to commit any such offence, where the question of consent is in issue, evidence of the character of the victim or of such person's previous sexual experience with any person shall not be relevant on the issue of such consent or the quality of consent.]

STATE AMENDMENTS

Arunachal Pradesh.—In its application to the State of Arunanchal Pradesh, in Section 53-A, for the words, figures and letters "Section 354, Section 354-A, Section 354-B, Section 354-C, Section 354-D, Section 376, Section 376-A, Section 376-B, Section 376-C, Section 376-D or Section 376-E of the Indian Penal Code" the words, figures and letters "Section 354, Section 354-A, Section

67. *Ins.* by Act 13 of 2013, S. 25 (w.r.e.f. 3-2-2013).
68. *Subs.* for "Section 376-A, Section 376-B, Section 376-C, Section 376-D" by Act 22 of 2018, S. 8 (w.r.e.f. 21-4-2018).

354-B, Section 354-C, Section 354-D, Section 376, Section 376-A, Section 376-AA, Section 376-B, Section 376-C, Section 376-D, Section 376-DA or Section 376-E of the Indian Penal Code" shall be *substituted*. [*Vide* Arunachal Pradesh Act 3 of 2019, S. 24, dt. 2-4-2019].

[69][**54. Previous bad character not relevant, except in reply.**—In criminal proceedings the fact that the accused person has a bad character is irrelevant, unless evidence has been given that he has a good character, in which case it becomes relevant.

Explanation 1.—This section does not apply to cases in which the bad character of any person is itself a fact in issue.

Explanation 2.—A previous conviction is relevant as evidence of bad character.]

55. Character as affecting damages.—In civil cases, the fact that the character of any person is such as to affect the amount of damages which he ought to receive, is relevant.

Explanation.—In Sections 52, 53, 54 and 55, the word "character" includes both reputation and disposition; but [70][except as provided in Section 54], evidence may be given only of general reputation and general disposition, and not of particular acts by which reputation or disposition were shown.

PART II
ON PROOF

CHAPTER III
FACTS WHICH NEED NOT BE PROVED

56. Fact judicially noticeable need not be proved.—No fact of which the Court will take judicial notice need be proved.

57. Facts of which Court must take judicial notice.—The Court shall take judicial notice of the following facts:

[71][(1) All laws in force in the territory of India;]

(2) All public Acts passed or hereafter to be passed by Parliament [72][of the United Kingdom], and all local and personal Acts directed by Parliament [73][of the United Kingdom] to be judicially noticed;

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69. *Subs.* by Act 3 of 1891, S. 6. Prior to substitution it read as:
"54. *In criminal proceedings previous conviction relevant, but not previous bad character, except in reply.*—In criminal proceedings the fact that the accused person has been previously convicted of any offence is relevant, but the fact that he has a bad character is irrelevant, unless evidence has been given that he has a good character, in which case it becomes relevant.
Explanation.—This section does not apply to cases in which the bad character of any person is itself a fact in issue.".
70. *Ins.* by Act 3 of 1891, S. 7.
71. *Subs.* by the A.O. 1950. Prior to substitution it read as:
"(1) All laws or rules having the force of law now or heretofore in force, or hereafter to be in force, in any part of British India;"
72. *Ins.* by the A.O. 1950.
73. *Ins.* by the A.O. 1950.

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(3) Articles of War for [74][the Indian] Army, [75][Navy or Air Force];

[76][(4) The course of proceeding of Parliament of the United Kingdom, of the Constituent Assembly of India, of Parliament and of the legislatures established under any laws for the time being in force in a Province or in the States;]

(5) The accession and the sign manual of the Sovereign for the time being of the United Kingdom of Great Britain and Ireland;

(6) All seals of which English Courts take judicial notice: the seals of all the [77][Courts in [78][India]] and of all Courts out of [79][India] established by the authority of [80][the Central Government or the Crown Representative]: the seals of Courts of Admiralty and Maritime Jurisdiction and of Notaries Public, and all seals which any person is authorised to use by [81][the Constitution or an Act of Parliament of the United Kingdom or an] Act or Regulation having the force of law in [82][India];

(7) The accession to office, names, titles, functions and signatures of the persons filling for the time being any public office in any [83][State], if the fact of their appointment to such office is notified in [84][any Official Gazette];

(8) The existence, title, and national flag of every State or Sovereign recognized by [85][the Government of India]:

(9) The divisions of time, the geographical divisions of the world, and public festivals, fasts and holidays notified in the Official Gazette;

(10) The territories under the dominion of [86][the Government of India];

(11) The commencement, continuance and termination of hostilities between [87][the Government of India] and any other State or body of persons;

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74. *Subs.* for "Her Majesty's" by the A.O. 1950.
75. *Subs.* for "or Navy" by Act 10 of 1927, S. 2 and Sch. I (w.e.f. 4-4-1927).
76. *Subs.* by the A.O. 1950. Prior to substitution it read as:

"(4) The course of proceeding of Parliament and of the Councils for the purposes of making Laws and Regulations established under the Indian Councils' Act, or any other law for the time being relating thereto.

Explanation.—The word 'Parliament', in clauses (2) and (4), includes—

1. The Parliament of the United Kingdom of Great Britain and Ireland;
2. The Parliament of Great Britain;
3. The Parliament of England;
4. The Parliament of Scotland, and
5. The Parliament of Ireland."

77. *Subs.* for "Courts of British India" by the A.O. 1948.
78. *Subs.* for "The States" by Act 3 of 1951, S. 3 and Sch. I (w.e.f. 1-4-1951).
79. *Subs.* for "The States" by Act 3 of 1951, S. 3 and Sch. I (w.e.f. 1-4-1951).
80. *Subs.* for "the G.G. or any L.G. in Council" by the A.O. 1937.
81. *Subs.* for "any Act of Parliament or other" by the A.O. 1950.
82. *Subs.* for "The States" by Act 3 of 1951, S. 3 and Sch. I (w.e.f. 1-4-1951).
83. *Subs.* for "Province" by the A.O. 1950.
84. *Subs.* for "the Gazette of India or in the Official Gazette of any L.G." by the A.O. 1937.
85. *Subs.* for "The British Crown" by the A.O. 1950.
86. *Subs.* for "The British Crown" by the A.O. 1950.
87. *Subs.* for "The British Crown" by the A.O. 1950.

(12) The names of the members and officers of the Court, and of their deputies and subordinate officers and assistants, and also of all officers acting in execution of its process, and of all advocates, attorneys, proctors, vakils, pleaders and other persons authorized by law to appear or act before it;

(13) The rule of the road [88][on land or at sea].

In all these cases, and also on all matters of public history, literature, science or art, the Court may resort for its aid to appropriate books or documents of reference.

If the Court is called upon by any person to take judicial notice of any fact, it may refuse to do so unless and until such person produces any such book or document as it may consider necessary to enable it to do so.

CASE LAW ▸ Exercise of power by Court.—Caution must be exercised before deriving negative inferences from historical text i.e. absence of a reference to an event in a historical text as a factor to believe or disbelieve fact. Court must be circumspect in drawing negative inferences from what a historical text does not contain. Silences are sometimes best left to where they belong: the universe of silence, *M. Siddiq (Ram Janmabhumi Temple 5J)* v. *Suresh Das*, (2020) 1 SCC 1.

▸ **Travellers' accounts/travelogues, history books, gazettes and gazetteers.**—Effect of Eastern philosophical tradition of resorting to modes of transmission of history other than via written records, on probative value of statements contained in travellers' accounts/travelogues, history books, gazettes and gazetteers, discussed, *M. Siddiq (Ram Janmabhumi Temple 5J)* v. *Suresh Das*, (2020) 1 SCC 1.

58. Facts admitted need not be proved.—No fact need be proved in any proceeding which the parties thereto or their agents agree to admit at the hearing, or which, before the hearing, they agree to admit by any writing under their hands, or which by any rule of pleading in force at the time they are deemed to have admitted by their pleadings:

Provided that the Court may, in its discretion, require the facts admitted to be proved otherwise than by such admissions.

CASE LAW ▸ Admissions.— An admission enabling to infer the admission of the title of another must be clear and explicit. Admission cannot create any title, *M.P. Wakf Board* v. *Subhan Shah*, (2006) 10 SCC 696.

Admitted facts need not be proved, Vice-*Chairman, Kendriya Vidyalaya Sangathan* v. *Girdharilal Yadav*, (2004) 6 SCC 325.

Admission of fact must be during trial, before or at the hearing procedure under Order 12 CPC must also be followed, *Union of India* v. *Ibrahim Uddin*, (2012) 8 SCC 148 : (2012) 4 SCC (Civ) 362.

CHAPTER IV
OF ORAL EVIDENCE

59. Proof of facts by oral evidence.—All facts, except the contents of documents [89][or electronic records], may be proved by oral evidence.

60. Oral evidence must be direct.—Oral evidence must, in all cases whatever, be direct; that is to say—

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88. *Ins.* by Act 18 of 1872, S. 5 (w.e.f. 29-8-1872).
89. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).

if it refers to a fact which could be seen, it must be the evidence of a witness who says he saw it;

if it refers to a fact which could be heard, it must be the evidence of a witness who says he heard it;

if it refers to a fact which could be perceived by any other sense or in any other manner, it must be the evidence of a witness who says he perceived it by that sense or in that manner;

if it refers to an opinion or to the grounds on which that opinion is held, it must be the evidence of the person who holds that opinion on those grounds:

Provided that the opinions of experts expressed in any treatise commonly offered for sale, and the grounds on which such opinions are held, may be proved by the production of such treatises if the author is dead or cannot be found, or has become incapable of giving evidence, or cannot be called as a witness without an amount of delay or expense which the Court regards as unreasonable:

Provided also that, if oral evidence refers to the existence or condition of any material thing other than a document, the Court may, if it thinks fit, require the production of such material thing for its inspection.

CASE LAW ▸ Hearsay.—Testimony of the person based on information of another person is not admissible in the absence of examination of the informant as a witness. Therefore the testimony of the police officer regarding his information that the accused would be coming in a taxi behind the truck carrying the prohibited liquor would not be admissible in evidence if the informant is not examined as a witness, *Bhugdomal Gangaram* v. *State of Gujarat*, (1984) 1 SCC 319 : 1984 SCC (Cri) 67.

CHAPTER V
OF DOCUMENTARY EVIDENCE

61. Proof of contents of documents.—The contents of documents may be proved either by primary or by secondary evidence.

CASE LAW ▸ Proof of registered document.—Registration of document does not per se, ipso facto, render it impervious to challenge or and made its reception automatic in curial proceedings, *Om Prakash* v. *Shanti Devi*, (2015) 4 SCC 601.

62. Primary evidence.—Primary evidence means the document itself produced for the inspection of the court.

Explanation 1.—Where a document is executed in several parts, each part is primary evidence of the document.

Where a document is executed in counterpart, each counterpart being executed by one or some of the parties only, each counterpart is primary evidence as against the parties executing it.

Explanation 2.—Where a number of documents are all made by one uniform process, as in the case of printing, lithography, or photography, each is primary evidence of the contents of the rest; but where they are all copies of a common original, they are not primary evidence of the contents of the original.

Illustration

A person is shown to have been in possession of a number of placards, all printed at one time from one original. Any one of the placards is primary evidence of the contents of any other, but no one of them is primary evidence of the contents of the original.

CASE LAW ▸ Unregistered document.—Compulsorily registerable document which is not registered can be relied on as evidence of contract in claim for specific performance and as evidence of any collateral transaction which does not require registration of said instrument, *SMS Tea Estates (P) Ltd.* v. *Chandmari Tea Co. (P) Ltd.*, (2011) 14 SCC 66 : (2012) 4 SCC (Civ) 777.

▸ **Xerox copy/Photocopy.**—Xerox copy/Photocopy/Facsimile copy in the absence of original is not admissible in evidence, *Ram Suresh Singh* v. *Prabhat Singh*, (2009) 6 SCC 681.

▸ **Admissibility of Carbon copy.**—When carbon copy has been prepared in the same process as the original document, once such carbon copy is signed by both the parties, it assumes the character of the original document, *Mohinder Singh* v. *Jaswant Kaur*, (2020) 20 SCC 456.

63. Secondary evidence.—Secondary evidence means and includes—

(1) certified copies given under the provisions hereinafter contained[90];

(2) copies made from the original by mechanical processes which in themselves insure the accuracy of the copy, and copies compared with such copies;

(3) copies made from or compared with the original;

(4) counterparts of documents as against the parties who did not execute them;

(5) oral accounts of the contents of a document given by some person who has himself seen it.

Illustrations

(*a*) A photograph of an original is secondary evidence of its contents, though the two have not been compared, if it is proved that the thing photographed was the original.

(*b*) A copy compared with a copy of a letter made by a copying machine is secondary evidence of the contents of the letter, if it is shown that the copy made by the copying machine was made from the original.

(*c*) A copy transcribed from a copy, but afterwards compared with the original, is secondary evidence; but the copy not so compared is not secondary evidence of the original, although the copy from which it was transcribed was compared with the original.

(*d*) Neither an oral account of a copy compared with the original, nor an oral account of a photograph or machine-copy of the original, is secondary evidence of the original.

CASE LAW ▸ Secondary evidence.—Definition of "secondary evidence" in Section 63 is exhaustive as the section declares that secondary evidence "means and includes", and then follow the five kinds of secondary evidence, *J. Yashoda* v. *K. Shobha Rani*, (2007) 5 SCC 730 : (2007) 3 SCC (Cri) 9.

▸ **Rule of 'best evidence'.**—The rule which is the most universal, namely, that the best evidence the nature of the case will admit shall be produced only, means that, so long as the higher or superior evidence is within the possession of a person or may be reached by a person, that person shall give no inferior proof in relation to it. Essentially, secondary evidence is evidence which may be given in the absence of that better

90. *See* Section 76, *infra*.

evidence which law requires to be given first, when a proper explanation of its absence is given, *J. Yashoda* v. *K. Shobha Rani*, (2007) 5 SCC 730 : (2007) 3 SCC (Cri) 9.

64. Proof of documents by primary evidence.—Documents must be proved by primary evidence except in the cases hereinafter mentioned.

65. Cases in which secondary evidence relating to documents may be given.—Secondary evidence may be given of the existence, condition or contents of a document in the following cases—

(*a*) when the original is shown or appears to be in the possession or power—
of the person against whom the document is sought to be proved, or of any person out of reach of, or not subject to, the process of the Court, or
of any person legally bound to produce it,
and when, after the notice mentioned in Section 66, such person does not produce it;

(*b*) when the existence, condition or contents of the original have been proved to be admitted in writing by the person against whom it is proved or by his representative in interest;

(*c*) when the original has been destroyed or lost, or when the party offering evidence of its contents cannot, for any other reason not arising from his own default or neglect, produce it in reasonable time;

(*d*) when the original is of such a nature as not to be easily movable;

(*e*) when the original is a public document within the meaning of Section 74;

(*f*) when the original is a document of which a certified copy is permitted by this Act, or by any other law in force in [91][India], to be given in evidence;[92]

(*g*) when the originals consist of numerous accounts or other documents which cannot conveniently be examined in Court, and the fact to be proved is the general result of the whole collection.

In cases (*a*), (*c*) and (*d*), any secondary evidence of the contents of the document is admissible.

In case (*b*), the written admission is admissible.

In case (*e*) or (*f*), a certified copy of the document, but no other kind of secondary evidence, is admissible.

In case (*g*), evidence may be given as to the general result of the documents by any person who has examined them, and who is skilled in the examination of such documents.

CASE LAW ▸ Admissibility of documents.—Court is obliged to examine probative value of documents produced in the court or their contents and decide question of admissibility of a document in secondary evidence, *H. Siddiqui* v. *A. Ramlingam*, (2011) 4 SCC 240 : (2011) 2 SCC (Civ) 209.

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91. *Subs.* for "the States" by Act 3 of 1951, S. 3 and Sch. (w.e.f. 1-4-1951).
92. *Cf.* the Bankers' Books Evidence Act, 1891 (18 of 1891), S. 4.

▸ **Secondary evidence — When can be admitted.**—Factual foundational evidence must be adduced showing reasons for not furnishing evidence. Mere admission in evidence and making exhibit of a document not enough as the same has to be proved in accordance with law, *Jagmail Singh* v. *Karamjit Singh*, (2020) 5 SCC 178.

[93][**65-A. Special provisions as to evidence relating to electronic record.**—The contents of electronic records may be proved in accordance with the provisions of Section 65-B.

CASE LAW ▸ **Electronic record.**—Admissibility of secondary evidence of electronic record depends upon satisfaction of conditions as prescribed under Section 65-B, *Anvar P.V.* v. *P.K. Basheer*, (2014) 10 SCC 473 : (2014) 4 KLT 104.

▸ **Nature and scope.**—The special provisions of Sections 65-A and 65-B are a complete code in themselves when it comes to admissibility of evidence of information contained in electronic records, *Arjun Panditrao Khotkar* v. *Kailash Kushanrao Gorantyal*, (2020) 7 SCC 1.

▸ **Admissibility of electronic evidence.**—Copies of electronic evidence are sufficient when duly certified as per Section 65-B. The fact that original electronic evidence was one of the exhibits of the evidence on record, but not played in court, and only the certified copies thereof were played in court, is of no effect, *Taqdir* v. *State of Haryana*, (2022) 4 SCC 321.

▸ **Admissibility of electronic records.**—Certificate under Section 65-B(4), Evidence Act is mandatory for production of electronic evidence, oral evidence in place of such certificate cannot suffice, *Ravinder Singh* v. *State of Punjab*, (2022) 7 SCC 581.

[94]**65-B. Admissibility of electronic records.**—(1) Notwithstanding anything contained in this Act, any information contained in an electronic record which is printed on a paper, stored, recorded or copied in optical or magnetic media produced by a computer (hereinafter referred to as the computer output) shall be deemed to be also a document, if the conditions mentioned in this section are satisfied in relation to the information and computer in question and shall be admissible in any proceedings, without further proof or production of the original, as evidence of any contents of the original or of any fact stated therein of which direct evidence would be admissible.

(2) The conditions referred to in sub-section (1) in respect of a computer output shall be the following, namely—

(*a*) the computer output containing the information was produced by the computer during the period over which the computer was used regularly to store or process information for the purposes of any activities regularly carried on over that period by the person having lawful control over the use of the computer;

(*b*) during the said period, information of the kind contained in the electronic record or of the kind from which the information so contained is derived

93. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
94. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).

was regularly fed into the computer in the ordinary course of the said activities;

(*c*) throughout the material part of the said period, the computer was operating properly or, if not, then in respect of any period in which it was not operating properly or was out of operation during that part of the period, was not such as to affect the electronic record or the accuracy of its contents; and

(*d*) the information contained in the electronic record reproduces or is derived from such information fed into the computer in the ordinary course of the said activities.

(3) Where over any period, the function of storing or processing information for the purposes of any activities regularly carried on over that period as mentioned in clause (*a*) of sub-section (2) was regularly performed by computers, whether—

(*a*) by a combination of computers operating over that period; or

(*b*) by different computers operating in succession over that period; or

(*c*) by different combinations of computers operating in succession over that period; or

(*d*) in any other manner involving the successive operation over that period, in whatever order, of one or more computers and one or more combinations of computers,

all the computers used for that purpose during that period shall be treated for the purposes of this section as constituting a single computer; and references in this section to a computer shall be construed accordingly.

(4) In any proceedings where it is desired to give a statement in evidence by virtue of this section, a certificate doing any of the following things, that is to say,—

(*a*) identifying the electronic record containing the statement and describing the manner in which it was produced;

(*b*) giving such particulars of any device involved in the production of that electronic record as may be appropriate for the purpose of showing that the electronic record was produced by a computer;

(*c*) dealing with any of the matters to which the conditions mentioned in sub-section (2) relate,

and purporting to be signed by a person occupying a responsible official position in relation to the operation of the relevant device or the management of the relevant activities (whichever is appropriate) shall be evidence of any matter stated in the certificate; and for the purposes of this sub-section it shall be sufficient for a matter to be stated to the best of the knowledge and belief of the person stating it.

(5) For the purposes of this section,—

(*a*) information shall be taken to be supplied to a computer if it is supplied thereto in any appropriate form and whether it is so supplied directly or (with or without human intervention) by means of any appropriate equipment;

(*b*) whether in the course of activities carried on by any official, information is supplied with a view to its being stored or processed for the purposes of those activities by a computer operated otherwise than in the course of those activities, that information, if duly supplied to that computer, shall be taken to be supplied to it in the course of those activities;

(*c*) a computer output shall be taken to have been produced by a computer whether it was produced by it directly or (with or without human intervention) by means of any appropriate equipment.

Explanation.—For the purposes of this section any reference to information being derived from other information shall be a reference to its being derived therefrom by calculation, comparison or any other process.]

STATE AMENDMENTS

Madhya Pradesh.—In its application to the State of Madhya Pradesh, in Section 65-B, in sub-section (4), for full stop, colon shall be *substituted* and thereafter the following proviso shall be *added*, namely—

"Provided that if the Court records the evidence through audio-video electronic means, computer or any other electronic device, the provision of this sub-section shall not apply." [*Vide* M.P. Act 13 of 2022, S. 17 (w.e.f. 7-7-2022)].

CASE LAW ▸ Admissibility of electronic records.—Objections regarding admissibility of documents which are per se inadmissible can be taken even at appellate stage. Admissibility of a document which is inherently inadmissible is an issue which can be taken up at appellate stage because it is a fundamental issue. However, mode or method of proof is procedural and objections, if not taken at trial, cannot be permitted at appellate stage. If objections to mode of proof are permitted to be taken at appellate stage by a party, the other side does not have an opportunity of rectifying deficiencies, *Sonu* v. *State of Haryana*, (2017) 8 SCC 570.

▸ **Safeguards provided under Section 65-B**.—Safeguards provided under Section 65-B are to ensure the source and authenticity of electronic records. As electronic records are more susceptible to tampering, alteration, transposition, excision, etc., without such safeguards, whole trial based on proof of electronic records can lead to travesty of justice, *Anvar P.V.* v. *P.K. Basheer*, (2014) 10 SCC 473 : (2014) 4 KLT 104.

▸ **Standard of proof, authenticity and admissibility**.—Sections 65-A and 65-B of the Evidence Act, 1872, cannot be held to be a complete code on the subject. Threshold admissibility of electronic evidence cannot be ruled out on any technicality if same is relevant. Its authenticity and procedure for its admissibility may depend on fact situation such as whether person producing such evidence is in a position to furnish certificate under Section 65-B(4). If party producing electronic evidence is not in possession of device from which electronic document was produced, then such party, held, cannot be required to produce certificate under Section 65-B(4) of the Evidence Act. Requirement of certificate under Section 65-B(4) being procedural, can be relaxed by court wherever interest of justice so justifies. Thus, requirement of certificate under Section 65-B(4) is not always mandatory, *Shafhi Mohammad* v. *State of H.P.*, (2018) 2 SCC 801.

▸ **Certificate under Section 65-B(4)**.—Production of certificate under Section 65-B(4) is mandatory, but only in case of secondary evidence i.e. where primary evidence is not lead/original not produced. Oral admission e.g. by stepping into the witness box qua such document/electronic record

cannot be considered as compliance with such mandatory requirement of production of the Section 65-B(4) certificate, *Arjun Panditrao Khotkar* v. *Kailash Kushanrao Gorantyal*, (2020) 7 SCC 1.

Requirement to produce Section 65-B(4) certificate in case of secondary evidence, when can be dispensed with by court, explained, *Arjun Panditrao Khotkar* v. *Kailash Kushanrao Gorantyal*, (2020) 7 SCC 1.

The person who gives the certificate can be anyone out of several persons who occupy a "responsible official position" in relation to the operation of the relevant device, as also the person who may otherwise be in the "management of relevant activities" spoken of in Section 65-B(4). Further, the word "and" between knowledge and belief in Section 65-B(4) must be read as "or", as a person cannot testify to the best of his knowledge and belief at the same time, *Arjun Panditrao Khotkar* v. *Kailash Kushanrao Gorantyal*, (2020) 7 SCC 1.

66. Rules as to notice to produce.—Secondary evidence of the contents of the documents referred to in Section 65, clause (*a*), shall not be given unless the party proposing to give such secondary evidence has previously given to the party in whose possession or power the document is, [95][or to his attorney or pleader,] such notice to produce it as is prescribed by law; and if no notice is prescribed by law, then such notice as the Court considers reasonable under the circumstances of the case:

Provided that such notice shall not be required in order to render secondary evidence admissible in any of the following cases, or in any other case in which the Court thinks fit to dispense with it—

(1) when the document to be proved is itself a notice;

(2) when, from the nature of the case, the adverse party must know that he will be required to produce it;

(3) when it appears or is proved that the adverse party has obtained possession of the original by fraud or force;

(4) when the adverse party or his agent has the original in Court;

(5) when the adverse party or his agent has admitted the loss of the document;

(6) when the person in possession of the document is out of reach of, or not subject to, the process of the Court.

67. Proof of signature and handwriting of person alleged to have signed or written document produced.—If a document is alleged to be signed or to have been written wholly or in part by any person, the signature or the handwriting of so much of the document as is alleged to be in that person's handwriting must be proved to be in his handwriting.

[96][**67-A. Proof as to** [97][**electronic signature**].—Except in the case of a secure [98][electronic signature], if the [99][electronic signature] of any subscriber is alleged to

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95. *Ins.* by Act 18 of 1872, S. 6 (w.e.f. 29-8-1872).
96. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
97. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
98. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
99. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).

have been affixed to an electronic record the fact that such [100][electronic signature] is the [101][electronic signature] of the subscriber must be proved.]

68. Proof of execution of document required by law to be attested.—If a document is required by law to be attested, it shall not be used as evidence until one attesting witness at least has been called for the purpose of proving its execution, if there be an attesting witness alive, and subject to the process of the Court and capable of giving evidence:

[102][Provided that it shall not be necessary to call an attesting witness in proof of the execution of any document, not being a will, which has been registered in accordance with the provisions of the Indian Registration Act, 1908 (16 of 1908), unless its execution by the person by whom it purports to have been executed is specifically denied.]

69. Proof where no attesting witness found.—If no such attesting witness can be found, or if the document purports to have been executed in the United Kingdom, it must be proved that the attestation of one attesting witness at least is in his handwriting, and that the signature of the person executing the document is in the handwriting of that person.

70. Admission of execution by party to attested document.—The admission of a party to an attested document of its execution by himself shall be sufficient proof of its execution as against him, though it be a document required by law to be attested.

71. Proof when attesting witness denies the execution.—If the attesting witness denies or does not recollect the execution of the document, its execution may be proved by other evidence.

CASE LAW ▸ Succession and Inheritance.—Section 71 cannot be invoked as substitute to mandatory requirements of Section 68 of Evidence Act r/w Section 63(*c*) of Succession Act. Execution of will cannot be sought to be proved by other evidence under Section 71 on failure of attesting witness to prove by credible evidence execution and attestation as required under Section 68 of Evidence Act r/w Section 63(*c*) of Succession Act, *Jagdish Chand Sharma* v. *Narain Singh Saini*, (2015) 8 SCC 615.

72. Proof of document not required by law to be attested.—An attested document not required by law to be attested may be proved as if it was unattested.

73. Comparison of signature, writing or seal with others admitted or proved.—In order to ascertain whether a signature, writing, or seal is that of the person by whom it purports to have been written or made, any signature, writing or seal admitted or proved to the satisfaction of the Court to have been written or made by that person may be compared with the one which is to be proved, although that signature, writing, or seal has not been produced or proved for any other purpose.

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100. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
101. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
102. *Ins.* by Act 31 of 1926, S. 2.

The Court may direct any person present in Court to write any words or figures for the purpose of enabling the Court to compare the words or figures so written with any words or figures alleged to have been written by such person.

[103][This section applies also, with any necessary modifications, to finger-impressions.]

[104][**73-A. Proof as to verification of digital signature.**—In order to ascertain whether a digital signature is that of the person by whom it purports to have been affixed, the Court may direct—

(*a*) that person or the Controller or the Certifying Authority to produce the Digital Signature Certificate;

(*b*) any other person to apply the public key listed in the Digital Signature Certificate and verify the digital signature purported to have been affixed by that person.

Explanation.—For the purposes of this section, "Controller" means the Controller appointed under sub-section (1) of Section 17 of the Information Technology Act, 2000.]

Public documents

74. Public documents.—The following documents are public documents—

(1) documents forming the acts or records of the acts—

(*i*) of the sovereign authority,

(*ii*) of official bodies and tribunals, and

(*iii*) of public officers, legislative, judicial and executive, [105][of any part of India or of the Commonwealth], or of a foreign country;

(2) public records kept [106][in any State] of private documents.

CASE LAW ► Public Document.—Certified copy of annual return of a company filed with Registrar of Companies under Section 159, Companies Act, 1956 is a public document in terms of Section 74 r/w Sections 610 and 163, Companies Act, 1956, and is therefore admissible in evidence, *Anita Malhotra* v. *Apparel Export Promotion Council*, (2012) 1 SCC 520.

Public records kept in any State of private documents are public documents, but private documents of which public records are kept are not in themselves public documents. Though the entry in the register book is a public document, but the original is a private document. Hence, registered private document or conveyance is not itself a public document. Moreover, a certified copy of a registered instrument is also not a public record of a private document under Section 74(2) for the reason that the original has to be returned to the party under Section 61(2), *Deccan Paper Mills Co. Ltd.* v. *Regency Mahavir Properties*, (2021) 4 SCC 786.

► **Compromise Decree.**—Compromise merged into decree and formed part of decree. Hence, compromise deed became a public document in terms of Section 74. Its certified copy prepared under Section 76 and produced before court would be admissible in evidence under Section 77 without being

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103. *Ins.* by Act 5 of 1899, S. 3 (w.e.f. 10-2-1899).
104. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
105. *Subs.* by the A.O. 1950 (w.e.f. 26-1-1950). Prior to substitution it read as:
"whether of British India, or of any other part of Her Majesty's dominions"
106. *Subs.* for "in any Province" by the A.O. 1950 (w.e.f. 26-1-1950).

proved by calling witnesses. Presumption of genuineness of certified copy arises under Section 79. No other substitute of compromise deed produced on basis of which decree could be said to have been passed, *Jaswant Singh* v. *Gurdev Singh*, (2012) 1 SCC 425 : (2012) 1 SCC (Civ) 338.

▸ **Evidentiary value of Parliamentary Committee Reports.**—Said reports are admissible in evidence under Section 74, Evidence Act of which judicial notice shall be taken under Section 57(4), Evidence Act. Moreover, for their production in court, permission of Speaker is also not necessary as they are already in public domain. It is court and not Parliament which has to adjudicate all factual and legal issues. People also have a right to know. No exception can be taken to the petitioners obtaining 72nd and 81st Reports of Parliamentary Standing Committee, for using it as evidence in court but Parliamentary Committee Report is not substantive evidence in case of findings of misdemeanour implicating a breach of duty by public officials or private individuals or an evasion of law or any other lis or dispute. Court has to consider other evidence and adjudicate independently upon any lis/dispute(s) arising, in accordance with law. Court proceedings are independent of Parliament and based on multiple inputs and evidence. It is certainly possible for court to determine facts and form an opinion in law at variance with Parliamentary Committee report, *Kalpana Mehta* v. *Union of India*, (2018) 7 SCC 1.

75. Private documents.—All other documents are private.

76. Certified copies of public documents.—Every [107]public officer having the custody of a public document, which any person has a right to inspect, shall give that person on demand a copy of it on payment of the legal fees therefor, together with a certificate written at the foot of such copy that it is a true copy of such document or part thereof, as the case may be, and such certificate shall be dated and subscribed by such officer with his name and his official title, and shall be sealed, whenever such officer is authorized by law to make use of a seal; and such copies so certified shall be called certified copies.

Explanation.—Any officer who, by the ordinary course of official duty, is authorized to deliver such copies, shall be deemed to have the custody of such documents within the meaning of this section.

77. Proof of documents by production of certified copies.—Such certified copies may be produced in proof of the contents of the public documents or parts of the public documents of which they purport to be copies.

78. Proof of other official documents.—The following public documents may be proved as follows—

(1) acts, orders or notifications of [108][the Central Government] in any of its departments, [109][or of the Crown Representative] or of any [110][State Government] or any department of any [111][State Government],—

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107. A village-officer in the Punjab has been declared for the purposes of this Act to be a public officer having the custody of a public document—*see* the Punjab Land Revenue Act, 1887 (17 of 1887), S. 151(2).
108. *Subs.* for "the Executive Govt. of British India" by the A.O. 1937.
109. *Ins.* by the A.O. 1937.
110. *Subs.* for "Provincial Government" by the A.O. 1950 (w.e.f. 26-1-1950).
111. *Subs.* for "Provincial Government" by the A.O. 1950 (w.e.f. 26-1-1950).

by the records of the departments, certified by the heads of those departments respectively,

or by any document purporting to be printed by order of any such Government [112][or, as the case may be, of the Crown Representative];

(2) the proceedings of the Legislatures,—

by the journals of those bodies respectively, or by published Acts or abstracts, or by copies purporting to be printed [113][by order of the Government concerned];

(3) proclamations, orders or regulations issued by [114][Her Majesty] or by the Privy Council, or by any department of Her Majesty's Government,—

by copies or extracts contained in the London Gazette, or purporting to be printed by the Queen's Printer;

(4) the Acts of the Executive or the proceedings of the Legislature of a foreign country,—

by journals published by their authority, or commonly received in that country as such, or by a copy certified under the seal of the country or sovereign, or by a recognition thereof in some [115][Central Act];

(5) the proceedings of a municipal body in [116][a State],—

by a copy of such proceedings, certified by the legal keeper thereof, or by a printed book purporting to be published by the authority of such body;

(6) public documents of any other class in a foreign country,—

by the original, or by a copy certified by the legal keeper thereof, with a certificate under the seal of a Notary Public, or of [117][an Indian Consul] or diplomatic agent, that the copy is duly certified by the officer having the legal custody of the original, and upon proof of the character of the document according to the law of the foreign country.

STATE AMENDMENT

West Bengal.—In its application to the State of West Bengal, after Section 78 *insert* the following new section:

"78-A. *Copies of public documents to be as good as original documents in certain cases.*—Notwithstanding anything contained in this Act or any other law for the time being in force, where any public documents concerning any areas within West Bengal have been kept in Pakistan, then copies of such public documents, shall, on being authenticated in such manner as may be prescribed from time to time by the State Government by notification in the official Gazette, be deemed to have taken the place of, and to be, the original documents from which such copies were made and all references to the original documents shall be construed as including references to such copies." [*Vide* Act 20 of 1960, S. 3, w.e.f. 5-1-1961.]

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112. *Ins.* by the A.O. 1937.
113. *Subs.* for "by order of Govt." by the A.O. 1937.
114. The words "Her Majesty" shall stand unmodified, *vide* the A.O. 1950.
115. *Subs.* for "Public Act of the Governor General of India in Council" by the A.O. 1937.
116. *Subs.* for "a Province" by the A.O. 1950 (w.e.f. 26-1-1950).
117. *Subs.* for "a British Consul" by the A.O. 1950 (w.e.f. 26-1-1950).

Presumptions as to documents

79. Presumption as to genuineness of certified copies.—The Court shall presume [118][to be genuine] every document purporting to be a certificate, certified copy or other document, which is by law declared to be admissible as evidence of any particular fact and which purports to be duly certified by any officer [119][of the Central Government or of a State Government, or by any officer [120][in the State of Jammu and Kashmir] who is duly authorised thereto by the Central Government]:

Provided that such document is substantially in the form and purports to be executed in the manner directed by law in that behalf.

The Court shall also presume that any officer by whom any such document purports to be signed or certified, held, when he signed it, the official character which he claims in such paper.

CASE LAW ▸ Permissibility of presumption.—A presumption of fact or law, which has gained recognition in statute or by successive judicial pronouncements spread over the years, cannot be stretched beyond the limits permitted by the statute or beyond the contemplation spelled out from the logic, reason and sense prevailing with the judges, having written opinions valued as precedents, so as to draw such other inferences as are not contemplated, *LIC of India* v. *Anuradha*, (2004) 10 SCC 131.

80. Presumption as to documents produced as record of evidence.—Whenever any document is produced before any Court, purporting to be a record or memorandum of the evidence, or of any part of the evidence, given by a witness in a judicial proceeding or before any officer authorised by law to take such evidence, or to be a statement or confession by any prisoner or accused person, taken in accordance with law, and purporting to be signed by any Judge or Magistrate, or by any such officer as aforesaid, the Court shall presume—

that the document is genuine; that any statement as to the circumstances under which it was taken, purporting to be made by the person signing it, are true, and that such evidence, statement or confession was duly taken.

81. Presumption as to Gazettes, newspapers, private Acts of Parliament and other documents.—The Court shall presume the genuineness of every document purporting to be the London Gazette or [121][any Official Gazette, or the Government Gazette] of any colony, dependency or possession of the British Crown, or to be a newspaper or journal, or to be a copy of a private Act of Parliament [122][of the United Kingdom] printed by the Queen's Printer and of every document purporting to be a document directed by any law to be kept by any person, if such document is kept substantially in the form required by law and is produced from proper custody.

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118. *Ins.* by the A.O. 1948.
119. *Subs.* by the A.O. 1950 (w.e.f. 26-1-1950). Earlier, *substituted* by the A.O. 1937 and A.O. 1948.
120. *Subs.* for "in a Part B State" by Act 3 of 1951, S. 3 and Sch.
121. *Subs.* for "the Gazette of India, or the Govt. Gazette of any L.G. or" by the A.O. 1937.
122. *Ins.* by the A.O. 1950 (w.e.f. 26-1-1950).

CASE LAW ► Travellers' accounts/travelogues, history books, gazettes and gazetteers.— Section 81 raises a presumption of the genuineness of documents mentioned in travellers' accounts/ travelogues, history books, gazettes and gazetteers, and not of contents of the documents. It is necessary to distinguish between what a traveller may have heard from others, from what he has actually noticed and observed. The former is hearsay, but the latter may have probative value, *M. Siddiq (Ram Janmabhumi Temple 5J)* v. *Suresh Das*, (2020) 1 SCC 1.

► **Contents of a Gazette/Gazetteer's Report.**—The genuineness of a Gazette is presumed under Section 81. Any entry made by a Gazetteer in discharge of his official duty is a relevant fact under Section 35. The fact recorded by the Gazetteer may also be considered as expert opinion under Section 45. Hence, contents of a Gazette can be taken into account to discover historical materials contained therein, which the court may consider in conjunction with other evidence and circumstances in adjudicating a dispute, even if it may not be conclusive evidence of the fact in issue. Such a record cannot be challenged merely on ground that it is not a recent publication, *Aliyathammuda Beethathebiyyappura Pookoya* v. *Pattakal Cheriyakoya*, (2019) 16 SCC 1.

[123][**81-A. Presumption as to Gazettes in electronic forms.**—The Court shall presume the genuineness of every electronic record purporting to be the Official Gazette, or purporting to be electronic record directed by any law to be kept by any person, if such electronic record is kept substantially in the form required by law and is produced from proper custody.]

82. Presumption as to document admissible in England without proof of seal or signature.—When any document is produced before any Court, purporting to be a document which, by the law in force for the time being in England or Ireland, would be admissible in proof of any particular in any Court of Justice in England or Ireland, without proof of the seal or stamp or signature authenticating it, or of the judicial or official character claimed by the person by whom it purports to be signed, the Court shall presume that such seal, stamp or signature is genuine, and that the person signing it held, at the time when he signed it, the judicial or official character which he claims,

and the document shall be admissible for the same purpose for which it would be admissible in England or Ireland.

83. Presumption as to maps or plans made by authority of Government.— The Court shall presume that maps or plans purporting to be made by the authority of [124][the Central Government or any State Government] were so made, and are accurate; but maps or plans made for the purposes of any cause must be proved to be accurate.

84. Presumption as to collections of laws and reports of decisions.—The Court shall presume the genuineness of every book purporting to be printed or published under the authority of the Government of any country, and to contain any of the laws of that country,

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123. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
124. The original word "Government" has successively been amended by the A.O. 1937, A.O. 1948, Act 40 of 1949 and the A.O. 1950 to read as above.

S. 85-C]

and of every book purporting to contain reports of decisions of the Courts of such country.

CASE LAW ▸ Misleading/wrong/fake reporting judicial orders.—In case any wrong or misleading reporting is made by the media, in any form, at the instance of any person about the order passed by the Supreme Court, the person so responsible for such wrong reporting, misrepresentation about the order shall be liable to be dealt with in accordance with law, *Sarika* v. *Shri Mahakaleshwar Mandir Committee*, (2018) 17 SCC 112.

85. Presumption as to powers-of-attorney.—The Court shall presume that every document purporting to be a power-of-attorney, and to have been executed before, and authenticated by, a Notary Public, or any Court, Judge, Magistrate, [125][Indian] Consul or Vice-Consul, or representative [126][* * *] of the [127][Central Government], was so executed and authenticated.

[128][**85-A. Presumption as to electronic agreements.**—The Court shall presume that every electronic record purporting to be an agreement containing the [129][electronic signatures] of the parties was so concluded by affixing the [130][electronic signature] of the parties.

[131]**85-B. Presumption as to electronic records and [132][electronic signatures].**—(1) In any proceedings involving a secure electronic record, the Court shall presume unless contrary is proved, that the secure electronic record has not been altered since the specific point of time to which the secure status relates.

(2) In any proceedings, involving secure [133][electronic signature], the Court shall presume unless the contrary is proved that—

(*a*) the secure [134][electronic signature] is affixed by subscriber with the intention of signing or approving the electronic record;

(*b*) except in the case of a secure electronic record or a secure [135][electronic signature], nothing in this section shall create any presumption relating to authenticity and integrity of the electronic record or any [136][electronic signature].

85-C. Presumption as to [137][Electronic Signature Certificates].—The Court shall presume, unless contrary is proved, that the information listed in a

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125. *Subs.* for "British" by the A.O. 1950 (w.e.f. 26-1-1950).
126. The words "of Her Majesty, or" *omitted* by the A.O. 1950 (w.e.f. 26-1-1950).
127. *Subs.* for "G. of I" by the A.O. 1937.
128. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
129. *Subs.* for "digital signatures" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
130. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
131. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
132. *Subs.* for "digital signatures" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
133. *Subs.* for "digital signatures" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
134. *Subs.* for "digital signatures" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
135. *Subs.* for "digital signatures" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
136. *Subs.* for "digital signatures" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
137. *Subs.* for "Digital Signature Certificates" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).

[138][Electronic Signature Certificate] is correct, except for information specified as subscriber information which has not been verified, if the certificate was accepted by the subscriber.]

86. Presumption as to certified copies of foreign judicial records.—The Court may presume that any document purporting to be a certified copy of any judicial record of [139][[140][* * *] any country not forming part of India or] of Her Majesty's dominions is genuine and accurate, if the document purports to be certified in any manner which is certified by any representative of [141][* * *] the [142][Central Government] [143][in or for] [144][such country] to be the manner commonly in use in [145][that country] for the certification of copies of judicial records.

[146][An officer who, with respect to [147][* * *] any territory or place not forming part of [148][India or] Her Majesty's dominions, is a Political Agent therefor, as defined in Section 3, [149][clause (43)], of the General Clauses Act, 1897 (10 of 1897), shall, for the purposes of this section, be deemed to be a representative of the [150][Central Government] [151][in and for the country] comprising that territory or place.]

87. Presumption as to books, maps and charts.—The Court may presume that any book to which it may refer for information on matters of public or general interest, and that any published map or chart, the statements of which are relevant facts and which is produced for its inspection, was written and published by the person and at the time and place, by whom or at which it purports to have been written or published.

88. Presumption as to telegraphic messages.—The Court may presume that a message, forwarded from a telegraph office to the person to whom such message purports to be addressed, corresponds with a message delivered for transmission at the office from which the message purports to be sent; but the Court shall not make any presumption as to the person by whom such message was delivered for transmission.

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138. *Subs.* for "Digital Signature Certificate" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
139. *Subs.* for "any country not forming part" by the A.O. 1950 (w.e.f. 26-1-1950).
140. The words "a Part B State or of" *omitted* by Act 3 of 1951, S. 3 and Sch. (w.e.f. 1-4-1951).
141. The words "Her Majesty or of" *omitted* by the A.O. 1950 (w.e.f. 1-4-1951).
142. *Subs.* for "G. of I" by the A.O. 1937.
143. *Subs.* for "resident in" by Act 3 of 1891, S. 8.
144. *Subs.* for "such Part B State or country" by the Act 3 of 1951, S. 3 and Sch. (w.e.f. 1-4-1951).
145. *Subs.* for "that State or Country" by the by the Act 3 of 1951, S. 3 and Sch. (w.e.f. 1-4-1951).
146. *Subs.* by Act 5 of 1899, S. 4 (w.e.f. 10-2-1899). Earlier, *inserted* by Act 3 of 1891, S. 3.
147. The words "a Part B State or" *omitted* by Act 3 of 1951, S. 3 and Sch. (w.e.f. 1-4-1951). Earlier, *inserted* by the A.O. 1950 (w.e.f. 26-1-1950).
148. *Ins.* by the A.O. 1950 (w.e.f. 26-1-1950).
149. *Subs.* for "clause (40)" by the A.O. 1950 (w.e.f. 26-1-1950).
150. *Subs.* for "G. of I" by the A.O. 1937.
151. *Subs.* for "in and for that Part B State or country" by Act 3 of 1951, S. 3 and Sch. (w.e.f. 1-4-1951).

[152][**88-A. Presumption as to electronic messages.**—The Court may presume that an electronic message forwarded by the originator through an electronic mail server to the addressee to whom the message purports to be addressed corresponds with the message as fed into his computer for transmission; but the Court shall not make any presumption as to the person by whom such message was sent.

Explanation.—For the purposes of this section, the expressions "addressee" and "originator" shall have the same meanings respectively assigned to them in clauses (*b*) and (*za*) of sub-section (1) of Section 2 of the Information Technology Act, 2000.]

89. Presumption as to due execution, etc., of documents not produced.—The Court shall presume that every document, called for and not produced after notice to produce, was attested, stamped and executed in the manner required by law.

90. Presumption as to documents thirty years old.—Where any document, purporting or proved to be thirty years old, is produced from any custody which the Court in the particular case considers proper, the Court may presume that the signature and every other part of such document, which purports to be in the handwriting of any particular person, is in that person's handwriting, and, in the case of a document executed or attested, that it was duly executed and attested by the persons by whom it purports to be executed and attested.

Explanation.—Documents are said to be in proper custody if they are in the place in which, and under the care of the person with whom, they would naturally be; but no custody is improper if it is proved to have had a legitimate origin, or if the circumstances of the particular case are such as to render such an origin probable.

This explanation applies also to Section 81.

Illustrations

(*a*) *A* has been in possession of landed property for a long time. He produces from his custody deeds relating to the land showing his titles to it. The custody is proper.

(*b*) A produces deed relating to landed property of which he is the mortgagee. The mortgagor is in possession. The custody is proper.

(*c*) A, a connection of *B*, produces deeds relating to lands in *B*'s possession which were deposited with him by *B* for safe custody. The custody is proper.

STATE AMENDMENTS

Uttar Pradesh.—In its application to the State of Uttar Pradesh, the existing section shall be *renumbered* as Section 90(1), and

(*a*) For the words 'thirty years' the words 'twenty years' shall be *substituted*, and

(*b*) The following shall be *inserted* thereafter as a new sub-section (2):

'(2) Where any such document as is referred to in sub-section (1) was registered in accordance with the law relating to registration of documents and a duly certified copy thereof is produced, the Court may presume that the signature and every other part of such document which purports to be in the handwriting of any particular person, is in that person's handwriting, and in the case of a document executed or attested, that it was duly

152. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).

executed by the person by whom it purports to have been executed or attested.' [*Vide* U.P. Act 24 of 1954].

CASE LAW ▸ Extent of Presumption.—Presumption under, this section does not relate to corrections of statements contained in document, *Union of India* v. *Ibrahim Uddin*, (2012) 8 SCC 148 : (2012) 4 SCC (Civ) 362.

▸ **Document over 30 years old, presumption as to.**—Presumption regarding documents which are 30 years old does not apply to will. A will has to be proved in terms of Section 63(*c*) of Succession Act r/w Section 68 of Evidence Act. Merely because will is more than 30 years old, no presumption under Section 90 can be drawn that said document has been duly executed and attested by persons by whom it purports to have been executed and attested, *M.B. Ramesh* v. *K.M. Veeraje Urs*, (2013) 7 SCC 490 : (2013) 3 SCC (Civ) 576.

Presumption regarding documents thirty years old is not applicable to will. A will must be proved in terms of Section 63(c), Succession Act, 1925 and Section 68, Evidence Act, *Bharpur Singh* v. *Shamsher Singh*, (2009) 3 SCC 687.

▸ **Proof of document thirty-years old or more.**—Thirty-year period is to be reckoned backwards not from the date upon which the deed is filed in court but from the date on which, it having been tendered in evidence/exhibited, its genuineness or otherwise becomes the province of proof for the first time. Further held, the document should be produced at the earliest so that it is not looked upon askance and with suspicion so far as its authenticity is concerned, since even if the document is purported or is proved to be thirty-years old, person claiming benefit of Section 90 would not axiomatically receive a favourable presumption, Section 90 presumption being a discretionary one. Lastly held, date of judgment of trial court cannot possibly be the date from which thirty-year period could be reckoned, *Om Prakash* v. *Shanti Devi*, (2015) 4 SCC 601.

▸ **Relaxation.**—Relaxation of thirty-years period even by a few months, held, not permissible, *Om Prakash* v. *Shanti Devi*, (2015) 4 SCC 601.

[153][**90-A. Presumption as to electronic records five years old.**—Where any electronic record, purporting or proved to be five years old, is produced from any custody which the Court in the particular case considers proper, the Court may presume that the [154][electronic signature] which purports to be the [155][electronic signature] of any particular person was so affixed by him or any person authorised by him in this behalf.

Explanation.—Electronic records are said to be in proper custody if they are in the place in which, and under the care of the person with whom, they naturally be; but no custody is improper if it is proved to have had a legitimate origin, or the circumstances of the particular case are such as to render such an origin probable.

This *Explanation* applies also to Section 81-A.]

STATE AMENDMENTS

SECTION 90-A

Uttar Pradesh.—In its application to the State of Uttar Pradesh, after Section 90, *add* the following as a new Section 90-A:

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153. *Ins.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000).
154. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).
155. *Subs.* for "digital signature" by Act 10 of 2009, S. 52 (w.e.f. 27-10-2009).

"90-A. (1) Where any registered document or a duly certified copy thereof or any certified copy of a document which is part of the record of a court of justice, is produced from any custody which the court in the particular case considers proper, the court may presume that the original was executed by the person by whom it purports to have been executed.

(2) This presumption shall not be made in respect of any document which is the basis of a suit or of a defence or is relied upon in the plaint or written statement.

The explanation to sub-section (1) of Section 90 will also apply to the section." [*Vide* U.P. Act 24 of 1954.]

CHAPTER VI

OF THE EXCLUSION OF ORAL BY DOCUMENTARY EVIDENCE

91. Evidence of terms of contracts, grants and other dispositions of property reduced to form of document.—When the terms of a contract, or of a grant, or of any other disposition of property, have been reduced to the form of a document, and in all cases in which any matter is required by law to be reduced to the form of a document, no evidence[156] shall be given in proof of the terms of such contract, grant or other disposition of property, or of such matter, except the document itself, or secondary evidence of its contents in cases in which secondary evidence is admissible under the provisions hereinbefore contained.

Exception 1.—When a public officer is required by law to be appointed in writing, and when it is shown that any particular person has acted as such officer, the writing by which he is appointed need not be proved.

Exception 2.—Wills [157][admitted to probate in [158][India]] may be proved by the probate.

Explanation 1.—This section applies equally to cases in which the contracts, grants or dispositions of property referred to are contained in one document, and to cases in which they are contained in more documents than one.

Explanation 2.—Where there are more originals than one, one original only need be proved.

Explanation 3.—The statement, in any document whatever, of a fact other than the facts referred to in this section, shall not preclude the admission of oral evidence as to the same fact.

Illustrations

(*a*) If a contract be contained in several letters, all the letters in which it is contained must be proved.

(*b*) If a contract is contained in a bill of exchange, the bill of exchange must be proved.

(*c*) If a bill of exchange is drawn in a set of three, one only need be proved.

(*d*) *A* contracts, in writing, with *B*, for the delivery of indigo upon certain terms. The contract mentions the fact that *B* had paid *A* the price of other indigo contracted for verbally on another occasion.

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156. Where, however, a Criminal Court finds that a confession or other statement of an accused person has not been recorded in the manner prescribed, evidence may be taken that the recorded statement was duly made—*see* the Code of Criminal Procedure, 1973 (2 of 1974), S. 463.
157. *Subs.* for "under the Indian Succession Act" by Act 18 of 1872, S. 7 (w.e.f. 29-8-1872).
158. *Subs.* for "the States" by Act 3 of 1951, S. 3 and Sch. (w.e.f. 1-4-1951).

Oral evidence is offered that no payment was made for the other indigo. The evidence is admissible.

(*e*) *A* gives *B* a receipt for money paid by *B*.

Oral evidence is offered of the payment. The evidence is admissible.

CASE LAW ▸ Best Evidence Rule.—"Best-evidence rule" is exclusively associated with the rule embodied in Section 91, *Roop Kumar* v. *Mohan Thedani*, (2003) 6 SCC 595.

Section 92 is supplementary to Section 91 and corollary to the rule contained in Section 91. The rule contained in Section 92 will apply only to the parties to the instrument or their successors-in-interest. Strangers to the contract (which would include the prosecution in a criminal proceeding) are not barred from establishing a contemporaneous oral agreement contradicting or varying the terms of the instrument, *R. Janakiraman* v. *State*, (2006) 1 SCC 697 : (2006) 1 SCC (Cri) 442.

Section 91 of the Evidence Act mainly forbids proving of the contents of a writing otherwise than by writing itself and merely lays down the "best evidence rule". It, however, does not prohibit the parties to adduce evidence in a case the deed is capable of being construed differently to show how they understood the same, *Tulsi* v. *Chandrika Prasad*, (2006) 8 SCC 322.

▸ **Oral Evidence.**—When the true character of a document is questioned, extrinsic evidence by way of oral evidence is admissible, *Vimal Chand Ghevarchand Jain* v. *Ramakant Eknath Jadoo*, (2009) 5 SCC 713.

▸ **Unregistered document.**—Though an unregistered rent deed cannot be legally accepted in evidence, claim arising therefrom can be granted on basis of other uncontraverted evidence available on record supporting the claim, *Ahmedsaheb* v. *Sayed Ismail*, (2012) 8 SCC 516 : (2012) 4 SCC (Civ) 532.

92. Exclusion of evidence of oral agreement.—When the terms of any such contract, grant or other disposition of property, or any matter required by law to be reduced to the form of a document, have been proved according to the last section, no evidence of any oral agreement or statement shall be admitted, as between the parties to any such instrument or their representatives in interest, for the purpose of contradicting, varying, adding to, or subtracting from, its terms:

Proviso (1).—Any fact may be proved which would invalidate any document, or which would entitle any person to any decree or order relating thereto; such as fraud, intimidation, illegality, want of due execution, want of capacity in any contracting party, [159][want or failure] of consideration, or mistake in fact or law.

Proviso (2).—The existence of any separate oral agreement as to any matter on which a document is silent, and which is not inconsistent with its terms, may be proved. In considering whether or not this proviso applies, the Court shall have regard to the degree of formality of the document.

Proviso (3).—The existence of any separate oral agreement, constituting a condition precedent to the attaching of any obligation under any such contract, grant or disposition of property, may be proved.

Proviso (4).—The existence of any distinct subsequent oral agreement to rescind or modify any such contract, grant or disposition of property, may be proved, except in cases in which such contract, grant or disposition of property is

159. *Subs.* for "want of failure" by Act 18 of 1872, S. 8 (w.e.f. 29-8-1872).

by law required to be in writing, or has been registered according to the law in force for the time being as to the registration of documents.

Proviso (5).—Any usage or custom by which incidents not expressly mentioned in any contract are usually annexed to contracts of that description, may be proved:

Provided that the annexing of such incident would not be repugnant to, or inconsistent with, the express terms of the contract.

Proviso (6).—Any fact may be proved which shows in what manner the language of a document is related to existing facts.

Illustrations

(*a*) A policy of insurance is effected on goods "in ships from Calcutta to London". The goods are shipped in a particular ship which is lost. The fact that that particular ship was orally excepted from the policy, cannot be proved.

(*b*) *A* agrees absolutely in writing to pay *B* Rs 1000 on the 1st March, 1873. The fact that, at the same time, an oral agreement was made that the money should not be paid till the thirty-first March, cannot be proved.

(*c*) An estate called "the Rampur tea estate" is sold by a deed which contains a map of the property sold. The fact that land not included in the map had always been regarded as part of the estate and was meant to pass by the deed, cannot be proved.

(*d*) *A* enters into a written contract with *B* to work certain mines, the property of *B*, upon certain terms. *A* was induced to do so by a misrepresentation of *B*'s as to their value. This fact may be proved.

(*e*) *A* institutes a suit against *B* for the specific performance of a contract, and also prays that the contract may be reformed as to one of its provisions, as that provision was inserted in it by mistake. *A* may prove that such a mistake was made as would by law entitle him to have the contract reformed.

(*f*) *A* orders goods of *B* by a letter in which nothing is said as to the time of payment, and accepts the goods on delivery. *B* sues *A* for the price. *A* may show that the goods were supplied on credit for a term still unexpired.

(*g*) *A* sells *B* a horse and verbally warrants him sound. *A* gives *B* a paper in these words "Bought of *A* a horse for Rs 500". *B* may prove the verbal warranty.

(*h*) *A* hires lodgings of *B*, and gives *B* a card on which is written—"Rooms, Rs 200 a month". *A* may prove a verbal agreement that these terms were to include partial board.

A hires lodgings of *B* for a year, and a regularly stamped agreement, drawn up by an attorney, is made between them. It is silent on the subject of board. *A* may not prove that board was included in the terms verbally.

(*i*) *A* applies to *B* for a debt due to *A* by sending a receipt for the money. *B* keeps the receipt and does not send the money. In a suit for the amount, *A* may prove this.

(*j*) *A* and *B* make a contract in writing to take effect upon the happening of a certain contingency. The writing is left with *B*, who sues *A* upon it. *A* may show the circumstances under which it was delivered.

CASE LAW ▸ Applicability.—If terms of agreement are clear and unambiguous, same should be acted upon. When terms of agreement deed are clear, Section 92 precludes adduction of oral evidence to show that terms of agreement are different from those expressed in the document. Proviso (6) to Section 92 not attracted in such case. Section 95 which is based on this proviso, also not attracted, *Mangala Waman Karandikar* v. *Prakash Damodar Ranade*, (2021) 6 SCC 139.

▸ **Entirety of correspondence, as opposed to a single/some correspondence(s).**—When there are a number of documents exchanged between the parties in the performance of a contract, all of them must be read as a connected whole, relating each particular document to "existing facts", which include how particular words are used in a particular sense, given the entirety of correspondence between the parties. Further, after the application of Proviso (6) to Section 92, the adjudicating authority must be very careful when it applies provisions dealing with patent ambiguity, as it must first ascertain whether the plain language of a particular document applies accurately to existing facts. If, however, it is ambiguous or unmeaning in reference to existing facts, evidence may then be given to show that the words used in a particular document were used in a sense that would make the aforesaid words meaningful in the context of the entirety of the correspondence between the parties, *Anglo American Metallurgical Coal Pty Ltd.* v. *MMTC Ltd.*, (2021) 3 SCC 308.

▸ **Latent ambiguity and patent ambiguity.**—By patent ambiguity must be understood an ambiguity inherent in the words, and incapable of being dispelled, either by any legal rules of construction applied to the instrument itself, or by evidence showing that terms in themselves unmeaning or unintelligible are capable of receiving a known conventional meaning. While a latent ambiguity arises when the words of the instrument are clear, but their application to the circumstances is doubtful: here the ambiguity, being raised solely by extrinsic evidence, is allowed to be removed by the same means. A "patent ambiguity" provision, as contained in Section 94 is only applicable when a document applies accurately to existing facts, which includes how a particular word is used in a particular sense, *Anglo American Metallurgical Coal Pty Ltd.* v. *MMTC Ltd.*, (2021) 3 SCC 308.

93. Exclusion of evidence to explain or amend ambiguous document.—When the language used in a document is, on its face, ambiguous or defective, evidence may not be given of facts which would show its meaning or supply its defects.

Illustrations

(*a*) *A* agrees, in writing, to sell a horse to *B* for "Rs 1000, or Rs 1500".

Evidence cannot be given to show which price was to be given.

(*b*) *A* deed contains blanks. Evidence cannot be given of facts which would show how they were meant to be filled.

94. Exclusion of evidence against application of document to existing facts.—When language used in a document is plain in itself, and when it applies accurately to existing facts, evidence may not be given to show that it was not meant to apply to such facts.

Illustration

A sells to *B*, by deed, "my estate at Rampur containing 100 bighas". *A* has an estate at Rampur containing 100 bighas. Evidence may not be given of the fact that the estate meant to be sold was one situated at a different place and of a different size.

95. Evidence as to document in unmeaning reference to existing facts.—When language used in a document is plain in itself, but is unmeaning in reference to existing facts, evidence may be given to show that it was used in a peculiar sense.

Illustration

A sells to *B*, by deed, "my house in Calcutta".

A had no house in Calcutta, but it appears that he had a house at Howrah, of which *B* had been in possession since the execution of the deed.

These facts may be proved to show that the deed related to the house at Howrah.

96. Evidence as to application of language which can apply to one only of several persons.—When the facts are such that the language used might have been meant to apply to any one, and could not have been meant to apply to more than one, of several persons or things, evidence may be given of facts which show which of those persons or things it was intended to apply to.

Illustrations

(*a*) *A* agrees to sell to *B*, for Rs 1000, "my white horse". *A* has two white horses. Evidence may be given of facts which show which of them was meant.

(*b*) *A* agrees to accompany *B* to Hyderabad. Evidence may be given of facts showing whether Hyderabad in the Deccan or Hyderabad in Sind was meant.

97. Evidence as to application of language to one of two sets of facts, to neither of which the whole correctly applies.—When the language used applies partly to one set of existing facts, and partly to another set of existing facts, but the whole of it does not apply correctly to either, evidence may be given to show to which of the two it was meant to apply.

Illustration

A agrees to sell to *B* "my land at *X* in the occupation of *Y*". *A* has land at *X*, but not in the occupation of *Y*, and he has land in the occupation of *Y*, but it is not at *X*. Evidence may be given of facts showing which he meant to sell.

98. Evidence as to meaning of illegible characters, etc.—Evidence may be given to show the meaning of illegible or not commonly intelligible characters, of foreign, obsolete, technical, local, and provincial expressions, of abbreviations and of words used in a peculiar sense.

Illustration

A, a sculptor, agrees to sell to *B*, "all my mods". *A* has both models and modelling tools. Evidence may be given to show which he meant to sell.

CASE LAW ▸ Notes of speech in shorthand.—Notes in shorthand may be said to be in "not commonly intelligible characters" and "abbreviations" under Section 98. Evidence can be given to show their meaning. It is a matter of everyday experience that commercial documents recorded in mahajani are admitted in the Civil Courts. Claims are even founded on these documents. Courts go by English translations of documents on record. The report of a shorthand writer is, strictly speaking, not substantive evidence as such, and so the document can only be used as a part of the oral evidence sanctified by oath, *Laxminarayan* v. *Returning Officer*, (1974) 3 SCC 425.

99. Who may give evidence of agreement varying terms of document.—Persons who are not parties to a document, or their representatives in interest, may give evidence of any facts tending to show a contemporaneous agreement varying the terms of the document.

Illustration

A and *B* make a contract in writing that *B* shall sell *A* certain cotton, to be paid for on delivery. At the same time they make an oral agreement that three months' credit shall be given to *A*. This could not be shown as between *A* and *B*, but it might be shown by *C*, if it affected his interests.

100. Saving of provisions of Indian Succession Act relating to wills.—Nothing in this Chapter contained shall be taken to affect any of the provisions of the Indian Succession Act (10 of 1865)[160] as to the construction of wills.

PART III
PRODUCTION AND EFFECT OF EVIDENCE

CHAPTER VII
OF THE BURDEN OF PROOF

101. Burden of proof.—Whoever desires any Court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts, must prove that those facts exist.

When a person is bound to prove the existence of any fact, it is said that the burden of proof lies on that person.

Illustrations

(*a*) *A* desires a Court to give judgment that B shall be punished for a crime which *A* says *B* has committed.

A must prove that *B* has committed the crime.

(*b*) *A* desires a Court to give judgment that he is entitled to certain land in the possession of *B*, by reason of facts which he asserts, and which *B* denies, to be true.

A must prove the existence of those facts.

CASE LAW ▸ Burden of proof.—Held, burden of proving mala fides lies on shoulders of the one who is alleging it, *Uniworth Textiles Ltd.* v. *CCE*, (2013) 9 SCC 753.

The question as to whether burden of proof has been discharged by a party to the lis or not would depend upon the facts and circumstances of the case. If the facts and circumstances of the case are admitted or, if otherwise, sufficient materials have been brought on record so as to enable a court to arrive at a definite conclusion, it is idle to contend that the party on whom the burden of proof lay would still be liable to produce direct evidence to establish the facts, *National Insurance Co. Ltd.* v. *Rattani*, (2009) 2 SCC 75.

▸ **Burden of proof and onus of proof.**—The onus of proving all the ingredients of an offence is always upon the prosecution and at no stage does it shift to the accused. It is no part of the prosecution's duty to somehow hook the crook. Even in cases where the defence of the accused does not appear to be credible or is palpably false that burden does not become any less, *S.L. Goswami* v. *State of M.P.*, (1972) 3 SCC 22 : 1972 SCC (Cri) 258.

No adverse inference can be drawn from accused's failure to explain his conduct; such an approach is impermissible. The burden is on the prosecution to establish its case. Moreover, an accused cannot while being examined under Section 342, CrPC be subjected to cross-examination, and a bold assertion to explain a piece of conduct almost always fails to convince, *Sri Ram* v. *State of U.P.*, (1975) 3 SCC 495 : 1975 SCC (Cri) 87.

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160. *See* now the Indian Succession Act, 1925 (39 of 1925), Pt. VI, Ch. VI.

▸ **Burden of proof in criminal case.**—General rule is that burden of proof is on prosecution. However, Section 106 was introduced not to relieve prosecution of their duty, but it is designed to meet situation, in which it would be impossible or difficult for prosecution to establish facts which are especially within knowledge of accused, *Ranjit Kumar Haldar* v. *State of Sikkim*, (2019) 7 SCC 684.

▸ **Presumptions — When may not be invoked.**—While the truth or fact is known, there is no need or room for any presumption. The interest of justice is best served by ascertaining the truth and the court should be furnished with the best available science and may not be left to bank upon presumptions, unless science has no answer to the facts in issue. When there is a conflict between a "conclusive proof" envisaged under law based on a presumption and a proof based on scientific advancement accepted by the world community to be correct, the latter must prevail over the former, *Nandlal Wasudeo Badwaik* v. *Lata Nandlal Badwaik*, (2014) 2 SCC 576 : (2014) 4 SCC (Cri) 65.

▸ **Presumption of constitutionality.**—One who questions the constitutional validity of a law as being ultra vires, takes the onus of proving the same before the court, *Offshore Holdings (P) Ltd.* v. *Bangalore Development Authority*, (2011) 3 SCC 139 : (2011) 1 SCC (Civ) 662.

▸ **Pardanashin illiterate lady.**—In *Ali Hussain* v. *Rabiya*, (2019) 9 SCC 353, there were no pleadings by plaintiff as to her being pardanashin illiterate lady entitled to protection of law and that burden of proof should be shifted onto defendant to establish absence of fraud. Thus, it was held that protection of law afforded to such ladies could not be given, and onus of proof to establish that there was no fraud, could not be shifted onto defendant.

▸ **Standard of proof in civil suit/trial.**—The law recognises that within standard of preponderance of probabilities, there could be different degrees of probability within that standard, which depend on the subject-matter of the suit/trial. There is an unmistakable subjective element in the evaluation of degrees of probability and the quantum of proof. Forensic probability must, in the last analysis, rest on a robust commonsense and, ultimately on the trained intuitions of the Judge, *M. Siddiq (Ram Janmabhumi Temple 5J)* v. *Suresh Das*, (2020) 1 SCC 1.

▸ **Burden of proof regarding Hindu Undivided Family (HUF) property.**—The burden is on person who alleges existence of HUF to prove the same. The proof is required not only with respect to jointness of family but also with respect to fact that property concerned belongs to joint Hindu family, unless there is material on record to show that the property is the nucleus of joint Hindu family or that it was purchased through funds coming out of this nucleus, *Bhagwat Sharan* v. *Purushottam*, (2020) 6 SCC 387.

▸ **Proof of relationship.**—In circumstances where other evidence is available to prove or dispute the relationship, held, court should ordinarily refrain from ordering blood tests like DNA test, against the will of the party who is to be subjected to such test. It is the burden on a litigating party to prove his case adducing evidence in support of his plea and court cannot compel the party to prove his case in the manner suggested by the contesting party, subject to drawing of adverse inference if so warranted in the facts of the case, *Ashok Kumar* v. *Raj Gupta*, (2022) 1 SCC 20.

102. On whom burden of proof lies.—The burden of proof in a suit or proceeding lies on that person who would fail if no evidence at all were given on either side.

Illustrations

(*a*) *A* sues *B* for land of which *B* is in possession, and which, as *A* asserts, was left to *A* by the will of *C*, *B*'s father.

If no evidence were given on either side, *B* would be entitled to retain his possession. Therefore the burden of proof is on *A*.

(*b*) *A* sues *B* for money due on a bond.

The execution of the bond is admitted, but *B* says that it was obtained by fraud, which *A* denies. If no evidence were given on either side, *A* would succeed, as the bond is not disputed and the fraud is not proved.

Therefore the burden of proof is on *B*.

CASE LAW ▸ Breach of contract.—If a breach of a term of contract permits a party to the contract not to perform the contract, the burden is squarely on that party which complains of breach to prove that the breach has been committed by the other party to the contract. The test in such a situation would be who would fail if no evidence is led, *Narchinva V. Kamat* v. *Alfredo Antonio Doe Martins*, (1985) 2 SCC 574, 578, 579 : 1985 SCC (Cri) 274.

103. Burden of proof as to particular fact.—The burden of proof as to any particular fact lies on that person who wishes the Court to believe in its existence, unless it is provided by any law that the proof of that fact shall lie on any particular person.

Illustration

[161](*a*) *A* prosecutes *B* for theft, and wishes the Court to believe that *B* admitted the theft to *C*. *A* must prove the admission.

B wishes the Court to believe that, at the time in question, he was elsewhere. He must prove it.

CASE LAW ▸ Shifting of burden of proof.—Where the custom authorities have first discharged their burden of proof by falsifying in many particulars the story put forward by the appellant, from whom the imported watches were seized and then in their confiscation order have referred to evidence on record which militates against the version of the appellant and have stated that the appellant had not been able to meet the adverse inference arising therefrom, the burden of proof shifts from the customs authorities to the appellant after the authorities had informed the party of the results of investigation and enquiries, *Kanungo & Co.* v. *Collector of Customs*, (1973) 2 SCC 438 : 1973 SCC (Cri) 846.

104. Burden of proving fact to be proved to make evidence admissible.—The burden of proving any fact necessary to be proved in order to enable any person to give evidence of any other fact is on the person who wishes to give such evidence.

Illustrations

(*a*) *A* wishes to prove a dying declaration by *B*. *A* must prove *B*'s death.

(*b*) *A* wishes to prove, by secondary evidence, the contents of a lost document. *A* must prove that the document has been lost.

105. Burden of proving that case of accused comes within exceptions.—When a person is accused of any offence, the burden of proving the existence of circumstances bringing the case within any of the General Exceptions in the Indian Penal Code (XLV of 1860), or within any special exception or proviso contained

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161. *Sic*. In the Act as published in Gazette of India, 1872, Pt. IV, p. 1, there is no illustration (*b*).

in any other part of the same Code, or in any law defining the offence, is upon him, and the Court shall presume the absence of such circumstances.

Illustrations

(*a*) *A*, accused of murder, alleges that, by reason of unsoundness of mind, he did not know the nature of the act.

The burden of proof is on *A*.

(*b*) *A*, accused of murder, alleges that, by grave and sudden provocation, he was deprived of the power of self-control.

The burden of proof is on *A*.

(*c*) Section 325 of the Indian Penal Code (XLV of 1860) provides that whoever, except in the case provided for by Section 335, voluntarily causes grievous hurt, shall be subject to certain punishments.

A is charged with voluntarily causing grievous hurt under Section 325.

The burden of proving the circumstances bringing the case under Section 335 lies on *A*.

CASE LAW ▸ Right of private defence.—The burden which rests on the prosecution to establish its case beyond a reasonable doubt is neither neutralised nor shifted because the accused pleads the right of private defence. The prosecution must discharge its initial traditional burden to establish the complicity of the accused and not until it does so can the question arise whether the accused has acted in self-defence, *State of U.P.* v. *Ram Swarup*, (1974) 4 SCC 764 : 1974 SCC (Cri) 674.

▸ **Unsoundness of mind/Insanity.**—Burden of proving that case of accused come within exceptions, lies on accused, *Mariappan* v. *State of T.N.*, (2013) 12 SCC 270.

106. Burden of proving fact especially within knowledge.—When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him.

Illustrations

(*a*) When a person does an act with some intention other than that which the character and circumstances of the act suggest, the burden of proving that intention is upon him.

(*b*) *A* is charged with travelling on a railway without a ticket. The burden of proving that he had a ticket is on him.

CASE LAW ▸ Applicability.—Section 106 cannot be applied to undermine the well-established rule of law that, save in very exceptional cases, burden is on prosecution to establish its case. Facts "especially" within knowledge of accused means that it would be impossible or extremely difficult for prosecution to establish such facts, but which accused could prove without difficulty or inconvenience, *Arvind Singh* v. *State of Maharashtra*, (2021) 11 SCC 1 : AIR 2020 SC 2451.

▸ **Scope and applicability.**—Section 106 does not absolve prosecution of its primary burden, *Gargi* v. *State of Haryana*, (2019) 9 SCC 738.

▸ **Object and applicability.**—In a criminal case, burden of proof is on prosecution and Section 106 is certainly not intended to relieve it of that duty. On the contrary, Section 106 is designed to meet certain exceptional cases in which it would be impossible, or at any rate disproportionately difficult, for prosecution to establish facts which are "especially" within knowledge of accused and which he could prove without difficulty or inconvenience, *Shaf Broadcast (P) Ltd.* v. *Doordarshan*, (2019) 10 SCC 447.

▸ **Nature and scope.**—The provisions of Section 106 of the Evidence Act itself are unambiguous and categoric in laying down that when any fact is especially within the knowledge of a person, the burden of proving that fact is upon him. Thus, if a person is last seen with the deceased, he must offer an explanation as to how and when he parted company with the deceased. He must furnish an explanation which appears to the court to be probable and satisfactory. If he does so he must be held to have discharged his burden. If he fails to offer an explanation on the basis of facts within his special knowledge, he fails to discharge the burden cast upon him by Section 106 of the Evidence Act, *State of Rajasthan* v. *Kashi Ram,* (2006) 12 SCC 254 : (2007) 1 SCC (Cri) 688.

▸ **Onus of proof.**—Question as to on whom the onus lies would depend upon facts of each case, *Badshah* v. *State of U.P.*, (2008) 3 SCC 681 : (2008) 2 SCC (Cri) 712.

▸ **Burden of proving fact especially within knowledge.**—In cose of murder committed in secrecy inside a house, initial burden to establish case lies on prosecution. But in view of Section 106 of Evidence Act, 1872 corresponding burden also lies on inmates of house to cogently explain how crime was committed. If males of house cannot get away by simply keeping quiet and offering no explanation on supposed premise that burden to establish its case lies entirely upon prosecution and there is no duty at all on accused to offer explanation, *Gajanan Dashrath Kharate* v. *State of Maharashtra*, (2016) 4 SCC 604.

Section 106 is not intended to relieve prosecution from discharging its duty to prove guilt of accused. Prosecution must discharge its primary onus of proof and establish the basic facts against the accused in accordance with law. Only thereafter may Section 106 be resorted to, depending on the facts and circumstances of each case, *Satye Singh* v. *State of Uttarakhand*, (2022) 5 SCC 438.

▸ **Theory of Last seen together.**—Last seen theory is a weak kind of evidence by itself to find conviction upon the same singularly, but when it is coupled with other circumstances such as time when deceased was last seen with accused, and recovery of corpse being in very close proximity of time, accused owes an explanation under Section 106, Evidence Act, with regard to circumstances under which death may have taken place. If accused offers no explanation, or furnishes a wrong explanation, absconds, motive is established, and there is corroborative evidence available inter alia in the form of recovery or otherwise forming a chain of circumstances leading to the only inference for guilt of accused, incompatible with any possible hypothesis of innocence, conviction can be based on the same. If there be any doubt or break in the link of chain of circumstances, benefit of doubt must go to accused. Each case will therefore have to be examined on its own facts for invocation of the doctrine, *Satpal* v. *State of Haryana*, (2018) 6 SCC 610.

▸ **Incriminating circumstance.**—If accused does not throw light on fact which is within his knowledge, his failure to offer any explanation would be a strong militating circumstance against him, *State of H.P.* v. *Raj Kumar*, (2018) 2 SCC 69.

107. Burden of proving death of person known to have been alive within thirty years.—When the question is whether a man is alive or dead, and it is shown that he was alive within thirty years, the burden of proving that he is dead is on the person who affirms it.

108. Burden of proving that person is alive who has not been heard of for seven years.—[162][Provided that when] the question is whether a man is alive or dead, and it is proved that he has not been heard of for seven years by those who

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162. *Subs.* for "When" by Act 18 of 1872, S. 9 (w.e.f. 29-8-1872).

would naturally have heard of him if he had been alive, the burden of proving that he is alive is [163][shifted to] the person who affirms it.

109. Burden of proof as to relationship in the cases of partners, landlord and tenant, principal and agent.—When the question is whether persons are partners, landlord and tenant, or principal and agent, and it has been shown that they have been acting as such, the burden of proving that they do not stand, or have ceased to stand, to each other in those relationships respectively, is on the person who affirms it.

CASE LAW ▸ Applicability of rule under Section 109.—Precondition thereof being that "it has been shown that they have been acting as such", can be satisfied if there is a valid and reliable entry of the tenancy in the record-of-rights, as held in Harish Chander, (1981) 1 SCC 431., but not in the case of a fraudulent entry or in the absence of any such entry recording the tenancy, *Partap Singh* v. *Shiv Ram*, (2020) 11 SCC 242.

110. Burden of proof as to ownership.—When the question is whether any person is owner of anything of which he is shown to be in possession, the burden of proving that he is not the owner is on the person who affirms that he is not the owner.

CASE LAW ▸ Nature and applicability.—Matters to be established for application of — Explained, *M. Siddiq (Ram Janmabhumi Temple 5J)* v. *Suresh Das*, (2020) 1 SCC 1.

111. Proof of good faith in transactions where one party is in relation of active confidence.—Where there is a question as to the good faith of a transaction between parties, one of whom stands to the other in a position of active confidence, the burden of proving the good faith of the transaction is on the party who is in a position of active confidence.

Illustrations

(*a*) The good faith of a sale by a client to an attorney is in question in a suit brought by the client. The burden of proving the good faith of the transaction is on the attorney.

(*b*) The good faith of a sale by a son just come of age to a father is in question in a suit brought by the son. The burden of proving the good faith of the transaction is on the father.

[164][**111-A. Presumption as to certain offences.**—(1) Where a person is accused of having committed any offence specified in sub-section (2), in—

(*a*) any area declared to be a disturbed area under any enactment, for the time being in force, making provision for the suppression of disorder and restoration and maintenance of public order; or

(*b*) any area in which there has been, over a period of more than one month, extensive disturbance of the public peace,

and it is shown that such person had been at a place in such area at a time when fire-arms or explosives were used at or from that place to attack or resist the members of any armed forces or the forces charged with the maintenance of public order acting in the discharge of their duties, it shall be presumed, unless the contrary is shown, that such person had committed such offence.

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163. *Subs.* for "on" by Act 18 of 1872, S. 9 (w.e.f. 29-8-1872).
164. *Ins.* by Act 61 of 1984, S. 20 (w.e.f. 14-7-1984).

(2) The offences referred to in sub-section (1) are the following, namely:—

(*a*) an offence under Section 121, Section 121-A, Section 122 or Section 123 of the Indian Penal Code (45 of 1860);

(*b*) criminal conspiracy or attempt to commit, or abetment of, an offence under Section 122 or Section 123 of the Indian Penal Code (45 of 1860).]

112. Birth during marriage, conclusive proof of legitimacy.—The fact that any person was born during the continuance of a valid marriage between his mother and any man, or within two hundred and eighty days after its dissolution, the mother remaining unmarried, shall be conclusive proof that he is the legitimate son of that man, unless it can be shown that the parties to the marriage had no access to each other at any time when he could have been begotten.

CASE LAW ▸ Legitimacy of child.—Orders directing DNA tests when attaining finality, not open to challenge by wife subsequently on ground that issue of access had not been considered, *Nandlal Wasudeo Badwaik* v. *Lata Nandlal Badwaik*, (2014) 2 SCC 576 : (2014) 4 SCC (Cri) 65.

113. Proof of cession of territory.—A notification in the [165][Official Gazette] that any portion of British territory has [166][before the commencement of Part III of the Government of India Act, 1935 (26 Geo. 5 ch. 2)] been ceded to any Native State, Prince or Ruler, shall be conclusive proof that a valid cession of such territory took place at the date mentioned in such notification.

[167][**113-A. Presumption as to abetment of suicide by a married woman.**—When the question is whether the commission of suicide by a woman had been abetted by her husband or any relative of her husband and it is shown that she had committed suicide within a period of seven years from the date of her marriage and that her husband or such relative of her husband had subjected her to cruelty, the court may presume, having regard to all the other circumstances of the case, that such suicide had been abetted by her husband or by such relative of her husband.

Explanation.—For the purposes of this section, "cruelty" shall have the same meaning as in Section 498-A of the Indian Penal Code (45 of 1860).]

CASE LAW ▸ Presumption as to abetment of suicide.—Prerequisites as stated in Section 113-A, Evidence Act must be established by prosecution before presumption thereunder can be invoked. Then only does burden shift on to accused to rebut the presumption, *Pinakin Mahipatray Rawal* v. *State of Gujarat*, (2013) 10 SCC 48 : (2013) 3 SCC (Cri) 801.

▸ Presumption in respect of Abetment of suicide by married woman.—Deceased committing suicide by consuming poison at her in-laws place/matrimonial home, would not itself lead to presumption that deceased was subjected to physical/mental cruelty, to commit suicide. As case of abetment of suicide not established against accused even otherwise, acquittal was confirmed, *State of M.P.* v. *Shriram*, (2019) 14 SCC 430.

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165. *Subs.* for "Gazette of India" by the A.O. 1937.
166. *Ins.* by the A.O. 1937 (Part III of the Govt. of India Act, 1935, came into force on 1st April, 1937).
167. *Ins.* by Act 46 of 1983, S. 7.

[168][**113-B. Presumption as to dowry death.**—When the question is whether a person has committed the dowry death of a woman and it is shown that soon before her death such woman had been subjected by such person to cruelty or harassment for, or in connection with, any demand for dowry, the Court shall presume that such person had caused the dowry death.

Explanation.—For the purposes of this section, "dowry death" shall have the same meaning as in Section 304-B of Indian Penal Code (45 of 1860).]

CASE LAW ▸ Interpretation of expression "soon before".—The term "soon before" under Section 113-B is not synonymous with the term "immediately before". The said term would normally imply that the interval should not be much between the cruelty or harassment concerned and the death in question i.e. there must be existence of a proximate and live link between the two. The determination of the period which can come within the term "soon before" is left to be determined by the courts, depending upon the facts and circumstances of each case, *Thakkan Jha* v. *State of Bihar*, (2004) 13 SCC 348.

▸ **Words "shown" and "deemed" — Interpretation of.**—"Shown" should be read as "proved" and "deemed" should be read as "presumed". Initial burden is on prosecution to prove by preponderance of probabilities the ingredients of Section 304-B. Requiring prosecution to prove these ingredients beyond reasonable doubt would defeat purpose of Section 304-B. Once such initial burden is discharged by prosecution, initial presumption of innocence of accused would get replaced by deemed presumption of guilt of accused. Burden would then be shifted on accused to rebut that deemed presumption of guilt by proving beyond reasonable doubt his innocence. Right to life and liberty of accused cannot be jeopardised without providing accused opportunity to prove his innocence, *Sher Singh* v. *State of Haryana*, (2015) 3 SCC 724.

▸ **Presumption under Section 113-B.**—Presumption under Section 113-B of the Evidence Act is attracted only in case of suicidal or homicidal death and not in case of an accidental death, *Sultan Singh* v. *State of Haryana*, (2014) 14 SCC 664.

Burden to prove innocence is more on the accused under Section 113-B than under Section 113-A, which places a far lighter burden on the accused. In Section 113-A, which relates to Section 306 IPC, the court "may presume", "having regard to all the other circumstances of the case", but in Section 113-B, which is relatable to Section 304-B, the court "shall presume" and further there is no reference to the circumstances of the case, *Anand Kumar* v. *State of M.P.*, (2009) 3 SCC 799.

▸ **Presumption as to dowry death.**—Cruelty or harassment differs from case of case. It relates to mindset of people which varies from person to person. Cruelty can be mental or it can be physical. Mental cruelty is also of different shades. It can be verbal or emotional like insulting or ridiculing or humiliating a woman. It can be giving threats of injury to her or her near and dear ones. It can be depriving her of economic resources or essential amenities of life. It can be putting restraints on her movements. It can be not allowing her to talk to outside world. The list is illustrative and not exhaustive. Physical cruelty could be actual beating or causing pain and harm to the person of a woman. Every such instance of cruelty and related harassment has a different impact on mind of a woman. Some instances may be so grave as to have a lasting impact on a woman. Some instances which degrade her dignity may remain etched in her memory for a long time. Therefore, "soon before" is a relative term. In matters of emotions there cannot be a fixed formulae. The time-lag may differ from case to case. This must be kept in mind while examining each case of dowry death.

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168. *Ins.* by Act 43 of 1986, S. 12 (w.e.f. 19-11-1986).

Thus, there must be a nexus between demand of dowry, cruelty or harassment, based upon such demand and the date of death. Test of proximity will have to be applied. But, it is not a rigid test. It depends on facts and circumstances of each case and calls for a pragmatic and sensitive approach of court within confines of law, *Surinder Singh* v. *State of Haryana*, (2014) 4 SCC 129.

114. Court may presume existence of certain facts.—The Court may presume the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the particular case.

Illustrations

The Court may presume—

(*a*) that a man who is in the possession of stolen goods soon after the theft is either the thief or has received the goods knowing them to be stolen, unless he can account for his possession;

(*b*) that an accomplice is unworthy of credit, unless he is corroborated in material particulars;

(*c*) that a bill of exchange, accepted or endorsed, was accepted or endorsed for good consideration;

(*d*) that a thing or state of things which has been shown to be in existence within a period shorter than that within which such things or state of things usually cease to exist, is still in existence;

(*e*) that judicial and official acts have been regularly performed;

(*f*) that the common course of business has been followed in particular cases;

(*g*) that evidence which could be and is not produced would, if produced, be unfavourable to the person who withholds it;

(*h*) that if a man refuses to answer a question which he is not compelled to answer by law, the answer, if given, would be unfavourable to him;

(*i*) that when a document creating an obligation is in the hands of the obligor, the obligation has been discharged.

But the Court shall also have regard to such facts as the following, in considering whether such maxims do or do not apply to the particular case before it—

as to *illustration (a)*—A shop-keeper has in his till a marked rupee soon after it was stolen, and cannot account for its possession specifically, but is continually receiving rupees in the course of his business;

as to *illustration (b)*—A, a person of the highest character, is tried for causing a man's death by an act of negligence in arranging certain machinery. B, a person of equally good character, who also took part in the arrangement, describes precisely what was done, and admits and explains the common carelessness of A and himself;

as to *illustration (b)*—a crime is committed by several persons. A, B and C, three of the criminals, are captured on the spot and kept apart from each other. Each gives an account of the crime implicating D, and the accounts corroborate each other in such a manner as to render previous concert highly improbable;

as to *illustration (c)*—A, the drawer of a bill of exchange, was a man of business. B, the acceptor was a young and ignorant person, completely under A's influence.

as to *illustration (d)*—it is proved that a river ran in a certain course five years ago, but it is known that there have been floods since that time which might change its course;

as to *illustration (e)*—a judicial act, the regularity of which is in question, was performed under exceptional circumstances;

as to *illustration (f)*—the question is whether a letter was received. It is shown to have been posted, but the usual course of the post was interrupted by disturbances;

as to *illustration (g)*—a man refuses to produce a document which would bear on a contract of small importance on which he is sued, but which might also injure the feelings and reputation of his family;

as to *illustration (h)*—a man refuses to answer a question which he is not compelled by law to answer, but the answer to it might cause loss to him in matters unconnected with the matter in relation to which it is asked;

as to *illustration (i)*—a bond is in possession of the obligor, but the circumstances of the case are such that he may have stolen it.

CASE LAW ▸ Purpose of presumptions.—Section 114 of the Evidence Act covers a wide range of presumptions of fact which can be used by courts in the course of administration of justice to remove lacunae in the chain of direct evidence before it. It is, therefore, said that the function of a presumption often is to "fill a gap" in evidence, *Narayan Govind Gavate* v. *State of Maharashtra*, (1977) 1 SCC 133 : 1977 SCC (Cri) 49.

▸ **Time lapse between arrest and recovery of stolen item.**—The question as to what amounts to recent possession sufficient to justify the presumption of guilt varies according as the stolen article is or is not calculated to pass readily from hand to hand. If the stolen articles are of the latter kind, the period of one year that elapsed cannot be said to be too long particularly when the appellant had been absconding during that period. There was no lapse of time between the date of his arrest and the recovery of the stolen property, *Earabhadrappa* v. *State of Karnataka*, (1983) 2 SCC 330, 340, 341 : 1983 SCC (Cri) 447.

▸ **Presumption under, when arises.—**It is a settled canon of appreciation of evidence that a presumption cannot be raised against accused either of fact or in evidence, *Govindaraju* v. *State*, (2012) 4 SCC 722 : (2012) 2 SCC (Cri) 533.

▸ **Presumption of continuance.**—Presumption of continuance of any state of affairs in past can be drawn by court unless discontinuity is proved. Discontinuity cannot be proved merely on basis of stray revenue entry where subject matter is immovable property, *Salem Municipality* v. *P. Kumar*, (2019) 13 SCC 307.

▸ **Presumption regarding official acts.**—The official acts of police should be presumed to be regularly performed. Court cannot start with presumption that police records are untrustworthy. As a proposition of law, presumption should be the other way around. Archaic notion to approach actions of police with initial distrust should be discarded, *Surinder Kumar* v. *State of Punjab*, (2020) 2 SCC 563.

▸ **Presumption as to official acts or acts of public officers.**—If an official act is proved to have been done, it must be presumed to be regularly done. Credit must be given to public officers in absence of any proof to the contrary of their not acting with honesty or within limits of their authority. Hence, merely because the complainant officer conducted the investigation that would not be sufficient to cast doubt on the entire prosecution version. Matter in this regard must be decided on case-to-case basis without any universal generalization, *Mukesh Singh* v. *State (NCT of Delhi)*, (2020) 10 SCC 120.

▸ **Adverse presumption.**—Adverse presumption against defendant can be drawn if he does not present himself for cross-examination and refuses to enter witness box in order to refute allegations made against him or to support his pleading in his written statement, *Iqbal Basith* v. *N. Subbalakshmi*, (2021) 2 SCC 718.

[169][**114-A. Presumption as to absence of consent in certain prosecution for rape.**—In a prosecution for rape under clause (*a*), clause (*b*), clause (*c*), clause (*d*), clause (*e*), clause (*f*), clause (*g*), clause (*h*), clause (*i*), clause (*j*), clause (*k*), clause (*l*), clause (*m*) or clause (*n*) of sub-section (2) of Section 376 of the Indian Penal Code (45 of 1860), where sexual intercourse by the accused is proved and the question is whether it was without the consent of the woman alleged to have been raped and such woman states in her evidence before the court that she did not consent, the court shall presume that she did not consent.

Explanation.—In this section, "sexual intercourse" shall mean any of the acts mentioned in clauses (*a*) to (*d*) of Section 375 of the Indian Penal Code (45 of 1860).]

STATE AMENDMENTS

SECTION 114-B

Chhattisgarh.—In its application to the State of Chhattisgarh, after Section 114-A, the following shall be *inserted*, namely:—

"114-B. Presumption as to offences committed under Section 354, Section 354-A, Section 354-B, Section 354-C, Section 354-D, Section 509, Section 509-A or Section 509-B of the Indian Penal Code, 1860.—When the question is whether a person has committed an offence under Section 354, Section 354-A, Section 354-B, Section 354-C, Section 354-D, Section 509, Section 509-A or Section 509-B of the Indian Penal Code and if the victim deposes before the court that she has been subjected to sexual harassment or her modesty was outraged or she was disrobed or she was stalked or her privacy was intruded or she was sexually harassed by any means, as the case may be, the court may, unless contrary is proved, presume that such offence has been committed by that person." [*Vide* Chhattisgarh Act 25 of 2015, S. 14 (w.e.f. 21-7-2015)]

CHAPTER VIII
ESTOPPEL

115. Estoppel.—When one person has, by his declaration, act or omission, intentionally caused or permitted another person to believe a thing to be true and to act upon such belief, neither he nor his representative shall be allowed, in any suit or proceeding between himself and such person or his representative, to deny the truth of that thing.

Illustration

A intentionally and falsely leads *B* to believe that certain land belongs to *A*, and thereby induces *B* to buy and pay for it.

The land afterwards becomes the property of *A*, and *A* seeks to set aside the sale on the ground that, at the time of the sale, he had no title. He must not be allowed to prove his want of title.

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169. *Subs.* by Act 13 of 2013, S. 26 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
"114-A. *Presumption as to absence of consent in certain prosecutions for rape.*—In a prosecution for rape under clause (*a*) or clause (*b*) or clause (*c*) or clause (*d*) or clause (*e*) or clause (*g*) of sub-section (2) of Section 376 of the Indian Penal Code (45 of 1860), where sexual intercourse by the accused is proved and the question is whether it was without the consent of the woman alleged to have been raped and she states in her evidence before the Court that she did not consent, the Court shall presume that she did not consent."

CASE LAW ▸ **Doctrine of Estoppel**.—Applicability of Doctrine of Estoppel/Election/Approbate or Reprobate is subject to exceptions. There is no estoppel against statute, *Sneh Gupta* v. *Devi Sarup*, (2009) 6 SCC 194.

▸ **Rule of Issue Estoppel**.—The basic principle underlying the rule of issue estoppel is that the same issue of fact and law must have been determined in the previous litigation, *G.P. Sinha* v. *State of Bihar*, (1970) 2 SCC 905 : 1970 SCC (Cri) 584.

▸ **General principles and Applicability**.—Estoppel is based on the maxim allegans contraria non est audiendus (a party is not to be heard to allege the contrary) and is that species of presumption juries et de jure (absolute or conclusive or irrebuttable presumption), where the fact presumed is taken to be true, not as against all the world, but against a particular party, and that only by reason of some act done, it is in truth a kind of argumentum ad hominem, *B.L. Sreedhar* v. *K.M. Munireddy*, (2003) 2 SCC 355.

When plaintiff claimed title and ownership right over land he would be estopped from claiming right of tenancy over it. He cannot be owner as well as tenant of the same property, *State of M.P.* v. *Ushadevi*, (2015) 8 SCC 672.

▸ **Waiver of a right**.—A person may waive a right either expressly or by necessary implication. He may in a given case disentitle himself from obtaining an equitable relief particularly when he allows a thing to come to an irreversible situation, *Babulal Badriprasad Varma* v. *Surat Municipal Corpn.*, (2008) 12 SCC 401.

▸ **Approbate and reprobate**.—When a person knowingly accepts benefits of a document subsequently he is estopped from denying validity or binding effect of such document. Such plea would be contrary to principles of right and good conscience, *V. Chandrasekaran* v. *Administrative Officer*, (2012) 12 SCC 133.

▸ **Repudiation/Rescission of Insurance Policy**.— Delay in intimation/lodgment of insurance claim, in violation of clause in insurance policy providing for period within which insurance claim was to be lodged/intimated, could not be taken as a ground to reject the insurance claim, when no such plea/ground was raised by the insurer in its communication repudiating the claim, *Saurashtra Chemicals Ltd.* v. *National Insurance Co. Ltd.*, (2019) 19 SCC 70.

▸ **Estoppel and abandonment of right**.—If abandonment of right and estoppel against person claiming vested interest in share of property is established, that may result in estopping such person or his representative from seeking legal redress or setting up claim in court. But mere waiver, acquiescence or laches, held, are not sufficient to extinguish his title. Abandonment of right can be proved from conduct of such person, *Prabhakar Gones Prabhu Navelkar* v. *Saradchandra Suria Prabhu Navelkar*, (2020) 20 SCC 465.

116. Estoppel of tenant; and of licensee of person in possession.—No tenant of immovable property, or person claiming through such tenant, shall, during the continuance of the tenancy, be permitted to deny that the landlord of such tenant had, at the beginning of the tenancy, a title to such immovable property; and no person who came upon any immovable property by the licence of the person in possession thereof, shall be permitted to deny that such person had a title to such possession at the time when such licence was given.

CASE LAW ▸ **Estoppel of tenant**.—Tenant cannot be allowed to approbate and reprobate at the same time. Tenant, after being put in possession of suit premises under a lease deed, sought amendment of written

statement in eviction petition filed by landlord, so as to deny or dispute his status as landlord. It was held that tenant should be estopped from denying title of eviction petitioner as landlord. Amendment of written statement to raise plea denying or disputing petitioner's ownership is not permissible, *Jaspal Kaur Cheema* v. *Industrial Trade Links*, (2017) 8 SCC 592.

▸ **Estoppel on tenant from denial of title of landlord.**—In a landlord-tenant suit, the landlord is not required to prove his title in the subject property as in a title suit but when the landlord's derivative title is challenged, the same has to be established in some form. Estoppel under Section 116 of the Evidence Act, held, would bind tenant even in case of landlord with derivative title, once such landlord can establish the change of ownership in its favour, and that it had adequately brought the change of ownership of the landlord's interest to the notice of the tenant. When locus standi of plaintiff landlords who alleged a derivative title from the original landlord and their derivative title to suit premises was questioned by defendant tenant, plaintiffs, held, were required to establish the same, *Vinay Eknath Lad* v. *Chiu Mao Chen*, (2019) 20 SCC 182.

▸ **Tenant estoppel doctrine.**—Doctrine of tenant estoppel, held, continues to operate even after termination of the tenancy. It debars tenant from disputing lessor's title, however defective it may be, or pleading adverse possession without first openly and actually surrendering possession and restoring it to lessor. Tenant at sufferance i.e. lessee who continues in possession even after determination of lease without any assent of lessor by his mere continuance in possession, is deemed to acknowledge both the landlord's title and his (tenant's) liability to pay mesne profits for use and occupation of the property, *Nand Ram* v. *Jagdish Prasad*, (2020) 9 SCC 393.

117. Estoppel of acceptor of bill of exchange, bailee or licensee.—No acceptor of a bill of exchange shall be permitted to deny that the drawer had authority to draw such bill or to endorse it; nor shall any bailee or licensee be permitted to deny that his bailor or licensor had, at the time when the bailment or licence commenced, authority to make such bailment or grant such licence.

Explanation (1).—The acceptor of a bill of exchange may deny that the bill was really drawn by the person by whom it purports to have been drawn.

Explanation (2).—If a bailee delivers the goods bailed to a person other than the bailor, he may prove that such person had a right to them as against the bailor.

CHAPTER IX
OF WITNESSES

118. Who may testify.—All persons shall be competent to testify unless the Court considers that they are prevented from understanding the questions put to them, or from giving rational answers to those questions, by tender years, extreme old age, disease, whether of body or mind, or any other cause of the same kind.

Explanation.—A lunatic is not incompetent to testify, unless he is prevented by his lunacy from understanding the questions put to him and giving rational answers to them.

CASE LAW ▸ Testimony/Evidence by a child.—It would be prudent to seek corroboration of the evidence of a young boy, *Bharvad Bhika Valu* v. *State of Gujarat*, 1971 SCC (Cri) 500 : (1972) 4 SCC (N) 48.

Where the witness was not only a teenager but the only witness claimed to be an eyewitness, her evidence had to be scrutinised with care and caution, *S.G. Mohite* v. *State of Maharashtra*, 1973 SCC (Cri) 214 : (1973) 3 SCC 219.

▸ **Child witness.**—Section 118 deals with the competence of a person to testify before the court. Section 4 of the Oaths Act, 1969 requires all witnesses to take oath or affirmation, with an exception for child witnesses under the age of twelve years. Therefore, if the court is satisfied that the child witness below the age of twelve years is a competent witness, such a witness can be examined without oath or affirmation. A child has to be a competent witness first, only then is her/his statement admissible - In order to determine the competency of a child witness, the Judge has to form her or his opinion. The Judge is at liberty to test the capacity of a child witness and no precise rule can be laid down regarding the degree of intelligence and knowledge which will render the child a competent witness. The competency of a child witness can be ascertained by questioning her/him to find out the capability to understand the occurrence witnessed and to speak the truth before the court, *P. Ramesh* v. *State*, (2019) 20 SCC 593.

Legal principles regarding evidentiary value, effect of discrepancies, duty of court and corroboration when necessary, summarized. *Hari Om* v. *State of U.P.*, (2021) 4 SCC 345.

[170][**119. Witness unable to communicate verbally.**—A witness who is unable to speak may give his evidence in any other manner in which he can make it intelligible, as by writing or by signs; but such writing must be written and the signs made in open court, evidence so given shall be deemed to be oral evidence:

Provided that if the witness is unable to communicate verbally, the court shall take the assistance of an interpreter or a special educator in recording the statement, and such statement shall be videographed.]

120. Parties to civil suit, and their wives or husbands, Husband or wife of person under criminal trial.—In all civil proceedings the parties to the suit, and the husband or wife of any party to the suit, shall be competent witnesses. In criminal proceedings against any person, the husband or wife of such person, respectively, shall be competent witness.

121. Judges and Magistrates.—No Judge or Magistrate shall, except upon the special order of some Court to which he is subordinate, be compelled to answer any questions as to his own conduct in Court as such Judge or Magistrate, or as to anything which came to his knowledge in Court as such Judge or Magistrate; but he may be examined as to other matters which occurred in his presence whilst he was so acting.

Illustrations

(*a*) *A*, on his trial before the Court of Session, says that a deposition was improperly taken by *B*, the Magistrate. *B* cannot be compelled to answer questions as to this, except upon the special order of a superior Court.

(*b*) *A* is accused before the Court of Session of having given false evidence before *B*, a Magistrate. *B* cannot be asked what *A* said, except upon the special order of the superior Court.

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170. *Subs.* by Act 13 of 2013, S. 27 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
"119. *Dumb witnesses.*—A witness who is unable to speak may give his evidence in any other manner in which he can make it intelligible, as by writing or by signs; but such writing must be written and the signs made in open Court. Evidence so given shall be deemed to be oral evidence."

(*c*) *A* is accused before the Court of Session of attempting to murder a police-officer whilst on his trial before *B*, a Sessions Judge. *B* may be examined as to what occurred.

122. Communications during marriage.—No person who is or has been married, shall be compelled to disclose any communication made to him during marriage by any person to whom he is or has been married; nor shall he be permitted to disclose any such communication, unless the person who made it, or his representative in interest, consents, except in suits between married persons, or proceedings in which one married person is prosecuted for any crime committed against the other.

123. Evidence as to affairs of State.—No one shall be permitted to give any evidence derived from unpublished official records relating to any affairs of State, except with the permission of the officer at the head of the department concerned, who shall give or withhold such permission as he thinks fit.

CASE LAW ▸ Applicability.—This section applies to unpublished official documents. It does not apply where document is already in public domain, fact that document obtained by illegal or improper manner, immaterial. But if copy of document is obtained improperly, and attempt is made by production thereof to compel State to produce original, then question may arise before court whether it would be bound to order production of officer concerned. However, in this case document was published in newspaper, though allegedly, improperly, and correctness as to its contents not questioned by State, *Yashwant Sinha* v. *CBI*, (2019) 6 SCC 1.

▸ **Official secrecy.**—Government privilege regarding official secrecy of documents is based on candour principle and possibility of informed criticism. Claim of privilege may arise in absence of any statutory framework for such claim. In India, there are statutory provisions under Sections 123, 124 and 162 of Evidence Act which govern the matter, *Yashwant Sinha* v. *CBI*, (2019) 6 SCC 1.

124. Official communications.—No public officer shall be compelled to disclose communications made to him in official confidence, when he considers that the public interests would suffer by the disclosure.

[171][**125. Information as to commission of offences.**—No Magistrate or police-officer, shall be compelled to say whence he got any information as to the commission of any offence, and no revenue-officer shall be compelled to say whence he got any information as to the commission of any offence against the public revenue.

Explanation.—"Revenue-officer" in this section means any officer employed in or about the business of any branch of the public revenue.]

126. Professional communications.—No barrister, attorney, pleader or vakil shall at any time be permitted, unless with his client's express consent, to disclose any communication made to him in the course and for the purpose of his employment as such barrister, pleader, attorney or vakil, by or on behalf of his client, or to state the contents or condition of any document with which he

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171. *Subs.* by Act 3 of 1887, S. 1. Prior to substitution it read as:
"125. *Information as to commission of offences.*—No Magistrate or police-officer, shall be compelled to say whence he got any information as to the commission of any offence."

has become acquainted in the course and for the purpose of his professional employment, or to disclose any advice given by him to his client in the course and for the purpose of such employment:

Provided that nothing in this section shall protect from disclosure—

(1) any such communication made in furtherance of any [172][illegal] purpose;

(2) any fact observed by any barrister, pleader, attorney or vakil, in the course of his employment as such, showing that any crime or fraud has been committed since the commencement of his employment.

It is immaterial whether the attention of such barrister, [173][pleader], attorney or vakil was or was not directed to such fact by or on behalf of his client.

Explanation.—The obligation stated in this section continues after the employment has ceased.

Illustrations

(*a*) *A*, a client, says to *B*, an attorney—"I have committed forgery, and I wish you to defend me". As the defence of a man known to be guilty is not a criminal purpose, this communication is protected from disclosure.

(*b*) *A*, a client, says to *B*, an attorney—"I wish to obtain possession of property by the use of a forged deed on which I request you to sue".

This communication, being made in furtherance of criminal purpose, is not protected from disclosure.

(*c*) *A*, being charged with embezzlement, retains *B*, an attorney, to defend him. In the course of the proceedings, *B* observes that an entry has been made in *A*'s account book, charging *A* with the sum said to have been embezzled, which entry was not in the book at the commencement of his employment.

This being a fact observed by *B* in the course of his employment, showing that a fraud has been committed since the commencement of the proceedings, it is not protected from disclosure.

127. Section 126 to apply to interpreters, etc.—The provisions of Section 126 shall apply to interpreters, and the clerks or servants of barristers, pleaders, attorneys and vakils.

128. Privilege not waived by volunteering evidence.—If any party to a suit gives evidence therein at his own instance or otherwise, he shall not be deemed to have consented thereby to such disclosure as is mentioned in Section 126; and if any party to a suit or proceeding calls any such barrister, [174][pleader], attorney or vakil as a witness, he shall be deemed to have consented to such disclosure only if he questions such barrister, attorney or vakil on matters which, but for such question, he would not be at liberty to disclose.

129. Confidential communications with legal advisers.—No one shall be compelled to disclose to the Court any confidential communication which has taken place between him and his legal professional adviser, unless he offers himself as a witness, in which case he may be compelled to disclose any such communications

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172. *Subs.* for "criminal" by Act 18 of 1872, S. 10 (w.e.f. 29-8-1872).
173. *Ins.* by Act 18 of 1872, S. 10 (w.e.f. 29-8-1872).
174. *Ins.* by Act 18 of 1872, S. 10 (w.e.f. 29-8-1872).

as may appear to the Court necessary to be known in order to explain any evidence which he has given, but no others.

130. Production of title-deeds of witness not a party.—No witness who is not a party to a suit shall be compelled to produce his title-deeds to any property, or any document in virtue of which he holds any property as pledgee or mortgagee, or any document the production of which might tend to criminate him, unless he has agreed in writing to produce them with the person seeking the production of such deeds or some person through whom he claims.

[175][**131. Production of documents or electronic records which another person, having possession, could refuse to produce.**—No one shall be compelled to produce documents in his possession or electronic records under his control, which any other person would be entitled to refuse to produce if they were in his possession or control, unless such last-mentioned person consents to their production.]

132. Witness not excused from answering on ground that answer will criminate.—A witness shall not be excused from answering any question as to any matter relevant to the matter in issue in any suit or in any civil or criminal proceeding, upon the ground that the answer to such question will criminate, or may tend directly or indirectly to criminate, such witness, or that it will expose, or tend directly or indirectly to expose, such witness to a penalty or forfeiture of any kind:

Proviso.—Provided that no such answer, which a witness shall be compelled to give, shall subject him to any arrest or prosecution, or be proved against him in any criminal proceeding, except a prosecution for giving false evidence by such answer.

CASE LAW ▸ Nature and Scope.—The Evidence Act is a complete Code repealing all rules of evidence not to be found therein. There is no scope for introduction of a rule of evidence in criminal cases unless it is within the four corners of Section 132 or some other provision of the Evidence Act. As the Act does not apply to interrogations by a Customs Officer exercising powers under Section 171-A of the Sea Customs Act, Section 132 cannot be attracted, *Hira H. Advani* v. *State of Maharashtra*, (1969) 2 SCC 662.

▸ **Policy underlying Section 132.**—Policy under Section 132 of the Evidence Act, 1872 appears to be to secure evidence from whatever sources it is available for doing justice in a case brought before the court. In the process of securing such evidence, if a witness who is under obligation to state the truth, makes any statement which will incriminate or tend to expose such a witness to a penalty or forfeiture of any kind, the proviso to Section 132 of the Evidence Act, 1872 grants immunity to such a witness by declaring that "no such answer given by the witness shall subject him to any arrest or prosecution or to be proved against him in any criminal proceeding", *R. Dineshkumar* v. *State*, (2015) 7 SCC 497.

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175. *Subs.* by Act 21 of 2000, S. 92 & Sch. II (w.e.f. 17-10-2000). Prior to substitution it read as:
"131. *Production of documents which another person, having possession, could refuse to produce.*—No one shall be compelled to produce documents in his possession, which any other person would be entitled to refuse to produce if they were in his possession, unless such last-mentioned person consents to their production.".

▸ **"Answer(s) that witness is compelled to give" — Compulsion envisaged.**—Compulsion envisaged is the obligation of law of a witness to answer every question put to him, truthfully. It is not the compulsion imposed by the Judge in the facts of a case. In India the privilege of refusing to answer questions put to a witness has been abrogated so that temptation to tell a lie may be avoided but it was necessary to give protection as provided under Section 132 proviso. Hence, mere answering of questions put to him, voluntarily by a witness without more, amounts to "answers that the witness is compelled to give". Thus, any evidence that becomes available from such answers is inadmissible against such witness under Section 132 proviso, *R. Dineshkumar* v. *State*, (2015) 7 SCC 497.

133. Accomplice.—An accomplice shall be a competent witness against an accused person; and a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.

CASE LAW ▸ Joint operation of Section 133 and Section 114.—According to Section 133 which is a rule of law, an accomplice is competent to give evidence. According to Section 114, Illustration (*b*) which is rule of practice, it is almost always unsafe to convict upon the testimony of an accomplice alone. Though the conviction of an accused on the testimony of an accomplice cannot be said to be illegal, yet the courts, as a matter of practice do not accept the evidence of such a witness without corroboration in material particulars. There should be corroboration of the approver in material particulars and qua each accused, *Bhiva Doulu Patil* v. *State of Maharashtra*, AIR 1963 SC 955.

The combined effect of Sections 133 and 114, Illustration (*b*) is that though a conviction based upon accomplice evidence is legal, the court will not accept such evidence unless it is corroborated in material particulars from an independent source. If several accomplices simultaneously and without previous concert give a consistent account of the crime implicating the accused, the court may accept the several statements as corroborating each other. But it must be established that the several statements of accomplices were given independently without previous concert. Mohammad *Hussain Umar Kodira* v. *K.S. Dalipsinghji*, (1969) 3 SCC 429 : 1970 SCC (Cri) 99.

The statute permits the conviction of an accused person on the basis of uncorroborated testimony of an accomplice but the rule of prudence embodied in Illustration (*b*) of Section 114 strikes a note of warning cautioning the court that an accomplice does not generally deserve to be believed unless corroborated in material particulars. In other words, the rule is that the necessity of corroboration as a matter of prudence except when it is safe to dispense with such corroboration must be clearly present to the mind of judge, *Ram Narain* v. *State of Rajasthan*, (1973) 3 SCC 805.

▸ **Testimony of approver.**—Though the approver is a competent witness but on the uncorroborated testimony of the approver it would be risky to base the conviction, particularly in respect of a serious charge like murder, *Abdul Sattar* v. *Union Territory, Chandigarh*, 1985 Supp SCC 599, 601, 602 : 1985 SCC (Cri) 505.

▸ **Accomplice witness - Conviction on basis of evidence of.**— There is need of corroboration of testimony of accomplice. Principles laid down by Supreme Court in various decisions in regarding effect of contradiction between provisions under Sections 133 and 114 Ill. (b) of Evidence Act, summarized. *Somasundaram* v. *State*, (2020) 7 SCC 722.

134. Number of witnesses.—No particular number of witnesses shall in any case be required for the proof of any fact.

CASE LAW ▸ Rule of quality of evidence, not quantity.—Section 134 of the Evidence Act, 1872 clearly states that no particular number of witnesses is required to establish the case. Conviction can be based on the testimony of a single witness if he is wholly reliable. Corroboration may be necessary when he is only partially reliable. If the evidence is unblemished and beyond all possible criticism and the court is satisfied that the witness was speaking the truth then on his evidence alone conviction can be maintained, *Chacko* v. *State of Kerala*, (2004) 12 SCC 269.

▸ **Testimony of sole eyewitness.**—There is no requirement under law of evidence that any particular number of witnesses is to be examined to prove/disprove a fact. It is not the number of witnesses but quality of their evidence which is important. Test is whether the evidence has a ring of truth, is cogent, credible and trustworthy or otherwise. Conviction can even be based on testimony of a sole eyewitness, if same inspires confidence, *Gulam Sarbar* v. *State of Bihar*, (2014) 3 SCC 401.

CHAPTER X

OF THE EXAMINATION OF WITNESSES

135. Order of production and examination of witnesses.—The order in which witnesses are produced and examined shall be regulated by the law and practice for the time being relating to civil and criminal procedure respectively, and, in the absence of any such law, by the discretion of the Court.

136. Judge to decide as to admissibility of evidence.—When either party proposes to give evidence of any fact, the Judge may ask the party proposing to give the evidence in what manner the alleged fact, if proved, would be relevant; and the Judge shall admit the evidence if he thinks that the fact, if proved, would be relevant, and not otherwise.

If the fact proposed to be proved is one of which evidence is admissible only upon proof of some other fact, such last-mentioned fact must be proved before evidence is given of the fact first mentioned, unless the party undertakes to give proof of such fact and the Court is satisfied with such undertaking.

If the relevancy of one alleged fact depends upon another alleged fact being first proved, the Judge may, in his discretion, either permit evidence of the first fact to be given before the second fact is proved, or require evidence to be given of the second fact before evidence is given of the first fact.

Illustrations

(*a*) It is proposed to prove a statement about a relevant fact by a person alleged to be dead, which statement is relevant under Section 32.

The fact that the person is dead must be proved by the person proposing to prove the statement, before evidence is given of the statement.

(*b*) It is proposed to prove, by a copy, the contents of a document said to be lost.

The fact that the original is lost must be proved by the person proposing to produce the copy, before the copy is produced.

(*c*) *A* is accused of receiving stolen property knowing it to have been stolen.

It is proposed to prove that he denied the possession of the property.

The relevancy of the denial depends on the identity of the property. The Court may, in its discretion, either require the property to be identified before the denial of the possession is proved, or permit the denial of the possession to be proved before the property is identified.

(*d*) It is proposed to prove a fact (*A*) which is said to have been the cause or effect of a fact in issue. There are several intermediate facts (*B*, *C* and *D*) which must be shown to exist before the fact (*A*) can be regarded as the cause or effect of the fact in issue. The Court may either permit *A* to be proved before *B*, *C* or *D* is proved, or may require proof of *B*, *C* and *D* before permitting proof of *A*.

137. Examination-in-chief.—The examination of a witness by the party who calls him shall be called his examination-in-chief.

Cross-examination.—The examination of a witness by the adverse party shall be called his cross-examination.

Re-examination.—The examination of a witness, subsequent to the cross-examination by the party who called him, shall be called his re-examination.

CASE LAW ▸ Cross-examination.—Frequent cross-examination should be avoided. Merely because a witness in examination-in-chief speaks a truth not favourable to prosecution, his cross-examination by prosecution may have effect of weakening prosecution case, *Vinod Kumar* v. *State of Kerala*, (2014) 5 SCC 678.

Failure to cross-examine witness (eyewitness of motor vehicle accident), despite adequate opportunity provided therefor to respondents, held, must lead to inference of tacit admission of testimony of such witness, *Anita Sharma* v. *New India Assurance Co. Ltd.*, (2021) 1 SCC 171.

▸ **Analysis of chief-examination alongwith cross-examination of witnesses.**—Truth in criminal trial is discovered by not merely going through cross-examination of witnesses, but, there must be analysis of chief-examination of witnesses in conjunction with cross-examination and re-examination, if any. Effect of what other witnesses have deposed, must also enter into consideration of matter, *Girish Singh* v. *State of Uttarakhand*, (2020) 18 SCC 423.

▸ **Repudiation of suggestion given to witness.**—A suggestion to a witness when repudiated can have no relevance at all in the absence of any material produced, in accordance with law, to prove the factum suggested, certainly, subject to admissibility. A different approach in reappreciating the evidence would have defeated dispensation of justice, as in cases based on circumstantial evidence also it is not the quantity of the evidence that counts, but it is its quality. In other words, the question is only whether a complete chain of circumstantial evidence of such a character that the same is wholly inconsistent with the innocence of the accused and is consistent only with his guilt, is available, *Veerendra* v. *State of M.P.*, (2022) 8 SCC 668.

138. Order of examinations.—Witnesses shall be first examined-in chief then (if the adverse party so desires) cross-examined, then (if the party calling him so desires) re-examined.

The examination and cross-examination must relate to relevant facts but the cross-examination need not be confined to the facts to which the witness testified on his examination-in-chief.

Direction of re-examination.—The re-examination shall be directed to the explanation of matters referred to in cross-examination; and if new matter is, by permission of the Court, introduced in re-examination, the adverse party may further cross-examine upon that matter.

139. Cross-examination of person called to produce a document.—A person summoned to produce a document does not become a witness by the mere fact that he produces it, and cannot be cross-examined unless and until he is called as a witness.

140. Witnesses to character.—Witnesses to character may be cross-examined and re-examined.

141. Leading questions.—Any question suggesting the answer which the person putting it wishes or expects to receive, is called a leading question.

142. When they must not be asked.—Leading questions must not, if objected to by the adverse party, be asked in an examination-in-chief, or in a re-examination, except with the permission of the Court.

The Court shall permit leading questions as to matters which are introductory or undisputed, or which have, in its opinion, been already sufficiently proved.

143. When they may be asked.—Leading questions may be asked in cross-examination.

144. Evidence as to matters in writing.—Any witness may be asked, whilst under examination, whether any contract, grant or other disposition of property, as to which he is giving evidence, was not contained in a document, and if he says that it was, or if he is about to make any statement as to the contents of any document, which, in the opinion of the Court, ought to be produced, the adverse party may object to such evidence being given until such document is produced, or until facts have been proved which entitle the party who called the witness to give secondary evidence of it.

Explanation.—A witness may give oral evidence of statements made by other persons about the contents of documents if such statements are in themselves relevant facts.

Illustration

The question is, whether *A* assaulted *B*.

C deposes that he heard *A* say to *D*—"*B* wrote a letter accusing me of theft, and I will be revenged on him". This statement is relevant, as showing *A*'s motive for the assault, and evidence may be given of it, though no other evidence is given about the letter.

[176]**145. Cross-examination as to previous statements in writing.**—A witness may be cross-examined as to previous statements made by him in writing or reduced into writing, and relevant to matters in question, without such writing being shown to him, or being proved; but, if it is intended to contradict him by the writing, his attention must, before the writing can be proved, be called to those parts of it which are to be used for the purpose of contradicting him.

CASE LAW ▸ Scope and application.—Section 145 applies only to "contradictions". If there are omissions in previous statements which do not amount to contradictions but throw some doubt on the veracity of what was omitted, the uncertainty or doubt may be capable of removal by questions in re-

176. As to the application of S. 145 to police-diaries, *see* the Code of Criminal Procedure, 1973 (2 of 1974), S. 172.

examination. Neither proof nor use of such omissions from omissions which do not amount to contradictions, is barred by Section 145, *Laxman* v. *State of Maharashtra*, (1974) 3 SCC 704.

FIR is not a substantial piece of evidence. It can only be used for the purpose of contradicting and discrediting a witness under Section 145, Evidence Act, *Nankhu Singh* v. *State of Bihar*, (1972) 3 SCC 590.

▸ **Meaning of 'contradiction'**.—Section 145 is attracted when a specific contradiction is required to be taken but in certain cases omissions are also considered as contradicitions, *Bishna* v. *State of W.B.*, (2005) 12 SCC 657.

▸ **Appreciation of evidence**.—Merely because defence witnesses were not contradicted by reference to their previous statements following provisions of Section 145, Evidence Act, would not permit court to accept version as unfolded by said witnesses to be correct version, *Balakrishnan* v. *State of T.N.*, (2018) 14 SCC 55.

146. Questions lawful in cross-examination.—When a witness is cross-examined, he may, in addition to the questions hereinbefore referred to, be asked any questions which tend—

(1) to test his veracity,

(2) to discover who he is and what is his position in life, or

(3) to shake his credit, by injuring his character, although the answer to such questions might tend directly or indirectly to criminate him, or might expose or tend directly or indirectly to expose him to a penalty or forfeiture:

[177][Provided that in a prosecution for an offence under Section 376, [178][Section 376-A, Section 376-AB, Section 376-B, Section 376-C, Section 376-D, Section 376-DA, Section 376-DB] or Section 376-E of the Indian Penal Code (45 of 1860) or for attempt to commit any such offence, where the question of consent is an issue, it shall not be permissible to adduce evidence or to put questions in the cross-examination of the victim as to the general immoral character, or previous sexual experience, of such victim with any person for proving such consent or the quality of consent.]

STATE AMENDMENTS

Arunachal Pradesh.—In its application to the State of Arunanchal Pradesh, in the proviso to Section 146, for the words, figures and letters "Section 376, Section 376-A, Section 376-B, Section 376-C, Section 376-D or Section 376-E of the Indian Penal Code" the words, figures and letters "Section 376, Section 376-A, Section 376-AA, Section 376-B, Section 376-C, Section 376-D, Section 376-DA or Section 376-E of the Indian Penal Code" shall be *substituted*. [*Vide* Arunachal Pradesh Act 3 of 2019, S. 25, dt. 2-4-2019].

CASE LAW ▸ Proof of fact.—Matters testified by one party not challenged either in pleadings or cross-examination by the other party, held, must be accepted as fully established. It is absolutely essential to the proper conduct of a cause, whether civil or criminal, where it is intended to suggest that a witness is not

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177. *Subs.* by Act 13 of 2013, S. 28 (w.r.e.f. 3-2-2013). Prior to substitution it read as:
"Provided that in a prosecution for rape or attempt to commit rape, it shall not be permissible to put questions in the cross-examination of the prosecutrix as to her general immoral character."

178. *Subs.* by Act 22 of 2018, S. 9 (w.r.e.f. 21-4-2018). Prior to substitution it read as:
"Section 376-A, Section 376-B, Section 376-C, Section 376-D"

speaking the truth on a particular point, to direct his attention that fact by some questions. It is only if the witness is unable to explain himself in terms of the questions asked that his testimony on the issue in question may be disbelieved, *Arvind Singh* v. *State of Maharashtra*, (2021) 11 SCC 1 : AIR 2020 SC 2451.

147. When witness to be compelled to answer.—If any such question relates to a matter relevant to the suit or proceeding, the provisions of Section 132 shall apply thereto.

148. Court to decide when question shall be asked and when witness compelled to answer.—If any such question relates to a matter not relevant to the suit or proceeding, except insofar as it affects the credit of the witness by injuring his character, the court shall decide whether or not the witness shall be compelled to answer it, and may, if it thinks fit, warn the witness that he is not obliged to answer it. In exercising its discretion, the Court shall have regard to the following considerations—

(1) such questions are proper if they are of such a nature that the truth of the imputation conveyed by them would seriously affect the opinion of the Court as to the credibility of the witness on the matter to which he testifies;

(2) such questions are improper if the imputation which they convey relates to matters so remote in time, or of such a character, that the truth of the imputation would not affect, or would affect in a slight degree, the opinion of the Court as to the credibility of the witness on the matter to which he testifies;

(3) such questions are improper if there is a great disproportion between the importance of the imputation made against the witness's character and the importance of his evidence;

(4) the Court may, if it sees fit, draw, from the witness's refusal to answer, the inference that the answer if given would be unfavourable.

CASE LAW ▸ Duty and authority of trial Judge.—Presiding Officer should decide objections to questions, during the course of the proceeding, or failing it at the end of the deposition of the witness concerned. In given cases, if the court is of the opinion that repeated objections have been taken, the remedy of costs, depending on the nature of obstruction, and the proclivity of the line of questioning, may be resorted to, *Criminal Trials Guidelines Regarding Inadequacies and Deficiencies, In re*, (2021) 10 SCC 598.

149. Question not to be asked without reasonable grounds.—No such question as is referred to in Section 148 ought to be asked, unless the person asking it has reasonable grounds for thinking that the imputation which it conveys is well-founded.

Illustrations

(a) A barrister is instructed by an attorney or vakil that an important witness is a dakait. This is a reasonable ground for asking the witness whether he is a dakait.

(b) A pleader is informed by a person in Court that an important witness is a dakait. The informant, on being questioned by the pleader, gives satisfactory reasons for his statement. This is a reasonable ground for asking the witness whether he is a dakait.

(*c*) A witness, of whom nothing whatever is known, is asked at random whether he is a dakait. There are here no reasonable grounds for the question.

(*d*) A witness, of whom nothing whatever is known, being questioned as to his mode of life and means of living, gives unsatisfactory answers. This may be a reasonable ground for asking him if he is a dakait.

150. Procedure of Court in case of question being asked without reasonable grounds.—If the Court is of opinion that any such question was asked without reasonable grounds, it may, if it was asked by any barrister, pleader, vakil or attorney, report the circumstances of the case to the High Court or other authority to which such barrister, pleader, vakil or attorney is subject in the exercise of his profession.

151. Indecent and scandalous questions.—The Court may forbid any questions or inquiries which it regards as indecent or scandalous, although such questions or inquiries may have some bearing on the questions before the Court unless they relate to facts in issue, or to matters necessary to be known in order to determine whether or not the facts in issue existed.

152. Questions intended to insult or annoy.—The Court shall forbid any question which appears to it to be intended to insult or annoy, or which, though proper in itself, appears to the Court needlessly offensive in form.

153. Exclusion of evidence to contradict answers to questions testing veracity.—When a witness has been asked and has answered any question which is relevant to the inquiry only insofar as it tends to shake his credit by injuring his character, no evidence shall be given to contradict him; but if he answers falsely, he may afterwards be charged with giving false evidence.

Exception 1.—If a witness is asked whether he has been previously convicted of any crime and denies it, evidence may be given of his previous conviction.

Exception 2.—If a witness is asked any question tending to impeach his impartiality, and answers it by denying the facts suggested, he may be contradicted.

Illustrations

(*a*) A claim against an underwriter is resisted on the ground of fraud.

The claimant is asked whether, in a former transaction, he had not made a fraudulent claim. He denies it.

Evidence is offered to show that he did make such a claim.

The evidence is inadmissible.

(*b*) A witness is asked whether he was not dismissed from a situation for dishonesty. He denies it. Evidence is offered to show that he was dismissed for dishonesty.

The evidence is not admissible.

(*c*) *A* affirms that on a certain day he saw *B* at Lahore.

A is asked whether he himself was not on that day at Calcutta. He denies it.

Evidence is offered to show that *A* was on that day at Calcutta.

The evidence is admissible, not as contradicting *A* on a fact which affects his credit, but as contradicting the alleged fact that *B* was seen on the day in question at Lahore.

In each of these cases the witness might, if his denial was false, be charged with giving false evidence.

(*d*) *A* is asked whether his family has not had a blood feud with the family of *B* against whom he gives evidence.

He denies it. He may be contradicted on the ground that the question tends to impeach his impartiality.

154. Question by party to his own witness.—[179][(1)] The Court may, in its discretion, permit the person who calls a witness to put any questions to him which might be put in cross-examination by the adverse party.

[180][(2) Nothing in this section shall disentitle the person so permitted under sub-section (1), to rely on any part of the evidence of such witness.]

CASE LAW ▸ Eyewitness.—If persons cited as eyewitnesses by investigating agency retract from their versions made before police, then either they have been wrongly projected as eyewitnesses or they have for right or wrong reasons resiled from their earlier narration. In both eventualities, investigation has to be faulted as inefficient, incomplete and incautions with inevitable consequence of failure of prosecution in the case in hand. Such a fallout also spells a dismal failure of State machinery as a pivotal stakeholder in process of justice dispensation to protect and assure witnesses of their safety and security so as to fearlessly testify the truth, *Pooja Pal* v. *Union of India*, (2016) 3 SCC 135.

▸ **Hostile witness.**—Whenever a prosecution witness turns hostile, his testimony cannot be discarded altogether, *Krishan Chander* v. *State of Delhi*, (2016) 3 SCC 108.

155. Impeaching credit of witness.—The credit of a witness may be impeached in the following ways by the adverse party, or, with the consent of the Court, by the party who calls him—

(1) by the evidence of persons who testify that they, from their knowledge of the witness, believe him to be unworthy of credit;

(2) by proof that the witness has been bribed, or has [181][accepted] the offer of a bribe, or has received any other corrupt inducement to give his evidence;

(3) by proof of former statements inconsistent with any part of his evidence which is liable to be contradicted.

(4) [182][* * *]

Explanation.—A witness declaring another witness to be unworthy of credit may not, upon his examination-in-chief, give reasons for his belief, but he may be asked his reasons in cross-examination, and the answers which he gives cannot be contradicted, though, if they are false, he may afterwards be charged with giving false evidence.

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179. Section 154 *renumbered* as Section 154(1) by Act 2 of 2006, S. 9 (w.e.f. 16-4-2006).
180. *Ins.* by Act 2 of 2006, S. 9 (w.e.f. 16-4-2006).
181. *Subs.* for "had" by Act 18 of 1872, S. 11 (w.e.f. 29-8-1872).
182. *Omitted* by Act 4 of 2003, S. 3 (w.e.f. 31-12-2002). Prior to omission clause (4) read as follows:
"(4) when a man is prosecuted for rape or an attempt to ravish, it may be shown that the prosecutrix was of generally immoral character."

Illustrations

(*a*) *A* sues *B* for the price of goods sold and delivered to *B*. *C* says that he delivered the goods to *B*. Evidence is offered to show that, on a previous occasion, he said that he had not delivered the goods to *B*.

The evidence is admissible.

(*b*) *A* is indicted for the murder of *B*.

C says that *B*, when dying, declared that *A* had given *B* the wound of which he died.

Evidence is offered to show that, on a previous occasion, *C* said that the wound was not given by *A* or in his presence.

The evidence is admissible.

CASE LAW ▸ Credibility of witness.—In a criminal trial, normally evidence of wife, husband, son or daughter of deceased, is given great weightage on principle that there is no reason for them not to speak truth and shield real culprit. There is no reason why same principle cannot be applied when such a witness deposes against a closely related accused and why same reverse weightage shall not be given to credibility of such a witness, *Shamim* v. *State (Government of NCT of Delhi)*, (2018) 10 SCC 509.

156. Questions tending to corroborate evidence of relevant fact, admissible.—When a witness whom it is intended to corroborate gives evidence of any relevant fact, he may be questioned as to any other circumstances which he observed at or near to the time or place at which such relevant fact occurred, if the Court is of opinion that such circumstances, if proved, would corroborate the testimony of the witness as to the relevant fact which he testifies.

Illustration

A, an accomplice, gives an account of a robbery in which he took part. He describes various incidents unconnected with the robbery which occurred on his way to and from the place where it was committed.

Independent evidence of these facts may be given in order to corroborate his evidence as to the robbery itself.

157. Former statements of witness may be proved to corroborate later testimony as to same fact.—In order to corroborate the testimony of a witness, any former statement made by such witness relating to the same fact, at or about the time when the fact took place, or before any authority legally competent to investigate the fact, may be proved.

CASE LAW ▸ First Information Report.—Unless a first information report can be tendered in evidence under any provision contained in Chapter II of the Evidence Act, it can ordinarily be used only for the purpose of corroborating, contradicting or discrediting its author, if examined and not any other witness, *Shankar* v. *State of U.P.*, (1975) 3 SCC 851 : 1975 SCC (Cri) 270.

158. What matters may be proved in connection with proved statement relevant under Section 32 or 33.—Whenever any statement, relevant under Section 32 or 33, is proved, all matters may be proved, either in order to contradict or to corroborate it, or in order to impeach or confirm the credit of the person by whom it was made, which might have been proved if that person had been called as a witness and had denied upon cross-examination the truth of the matter suggested.

159. Refreshing memory.—A witness may, while under examination, refresh his memory by referring to any writing made by himself at the time of the transaction concerning which he is questioned, or so soon afterwards that the Court considers it likely that the transaction was at that time fresh in his memory.

The witness may also refer to any such writing made by any other person, and read by the witness within the time aforesaid, if when he read it he knew it to be correct.

When witness may use copy of document to refresh memory.—Whenever a witness may refresh his memory by reference to any document, he may, with the permission of the Court, refer to a copy of such document:

Provided the Court be satisfied that there is sufficient reason for the non-production of the original.

An expert may refresh his memory by reference to professional treatises.

160. Testimony to facts stated in document mentioned in Section 159.—A witness may also testify to facts mentioned in any such document as is mentioned in Section 159, although he has no specific recollection of the facts themselves, if he is sure that the facts were correctly recorded in the document.

Illustration

A book-keeper may testify to facts recorded by him in books regularly kept in the course of business, if he knows that the books were correctly kept, although he has forgotten the particular transactions entered.

[183]**161. Right of adverse party as to writing used to refresh memory.**—Any writing referred to under the provisions of the two last preceding sections must be produced and shown to the adverse party if he requires it; such party may, if he pleases, cross-examine the witness thereupon.

162. Production of documents.—A witness summoned to produce a document shall, if it is in his possession or power, bring it to the Court, notwithstanding any objection which there may be to its production or to its admissibility. The validity of any such objection shall be decided on by the Court.

The Court, if it sees fit, may inspect the document, unless it refers to matters of State, or take other evidence to enable it to determine on its admissibility.

Translation of documents.—If for such a purpose it is necessary to cause any document to be translated, the Court may, if it thinks fit, direct the translator to keep the contents secret, unless the document is to be given in evidence: and, if the interpreter disobeys such direction, he shall be held to have committed an offence under Section 166 of the Indian Penal Code (XLV of 1860).

163. Giving, as evidence, of document called for and produced on notice.—When a party calls for a document which he has given the other party notice to produce, and such document is produced and inspected by the party

183. As to the application of S. 161 to police-diaries, *see* the Code of Criminal Procedure, 1973 (2 of 1974), S. 172.

calling for its production, he is bound to give it as evidence if the party producing it requires him to do so.

164. Using, as evidence, of document, production of which was refused on notice.—When a party refuses to produce a document which he has had notice to produce, he cannot afterwards use the document as evidence without the consent of the other party or the order of the Court.

Illustration

A sues *B* on an agreement and gives *B* notice to produce it. At the trial, *A* calls for the document and *B* refuses to produce it. *A* gives secondary evidence of its contents. *B* seeks to produce the document itself to contradict the secondary evidence given by *A*, or in order to show that the agreement is not stamped. He cannot do so.

165. Judge's power to put questions or order production.—The Judge may, in order to discover or to obtain proper proof of relevant facts, ask any question he pleases, in any form, at any time, of any witness, or of the parties, about any fact relevant or irrelevant; and may order the production of any document or thing; and neither the parties nor their agents shall be entitled to make any objection to any such question or order, nor, without the leave of the Court, to cross-examine any witness upon any answer given in reply to any such question:

Provided that the judgment must be based upon facts declared by this Act to be relevant, and duly proved:

Provided also that this section shall not authorize any Judge to compel any witness to answer any question, or to produce any document which such witness would be entitled to refuse to answer or produce under Sections 121 to 131, both inclusive, if the question were asked or the document were called for by the adverse party; nor shall the Judge ask any question which it would be improper for any other person to ask under Section 148 or 149; nor shall he dispense with primary evidence of any document, except in the cases hereinbefore excepted.

166. Power of jury or assessors to put questions.—In cases tried by jury or with assessors, the jury or assessors may put any questions to the witnesses, through or by leave of the Judge, which the Judge himself might put and which he considers proper.

CHAPTER XI

OF IMPROPER ADMISSION AND REJECTION OF EVIDENCE

167. No new trial for improper admission or rejection of evidence.—The improper admission or rejection of evidence shall not be ground of itself for a new trial or reversal of any decision in any case, if it shall appear to the Court before which such objection is raised that, independently of the evidence objected to and admitted, there was sufficient evidence to justify the decision, or that, if the rejected evidence had been received, it ought not to have varied the decision.

SCHEDULE

ENACTMENTS REPEALED

[184][* * *]

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184. *Omitted* by the Repealing Act, 1938 (1 of 1938), S. 2 and Sch. (w.e.f. 26-2-1938). Prior to omission it read as:

"SCHEDULE

ENACTMENTS REPEALED

[*See* Section 2]

Number and Year	Title	Extent of repeal
Stat. 26 Geo. III, cap. 57.	For the further regulation of the trial of persons accused of certain offences committed in the East Indies; for repealing so much of an Act, made in the twenty-fourth year of the reign of his present Majesty (intituled 'An Act for the better regulation and management of the affairs of the East India Company, and of the British possessions in India, and for establishing a court of judicature for the more speedy and effectual trial of persons accused of offences committed in the East Indies'), as requires the servants of the East India Company to deliver inventories of their estates and effects; for rendering the laws more effectual against persons unlawfully resorting to the East Indies; and for the more easy proof, in certain cases, of deeds and writings executed in Great Britain or India.	Section thirty-eight so far as it relates to Courts of justice in the East Indies.
Stat. 14 & 15 Vic., cap. 99.	To amend the Law of Evidence	Section eleven and so much of section nineteen as relates to British India.
Act XV of 1852	To amend the Law of Evidence	So much as has not been heretofore repealed.
Act XIX of 1853	To amend the Law of Evidence in the Civil Courts of the East India Company in the Bengal Presidency	Section nineteen.
Act II of 1855	For the further improvement of the Law of Evidence	So much as has not been heretofore repealed.
Act XXV of 1861	For simplifying the Procedure of the Courts of Criminal Judicature not established by Royal Charter	Section two hundred and thirty-seven.
Act I of 1868	The General Clauses' Act, 1868	Sections seven and eight."